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TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture.

Subchapter B—Loans, Purchases, and Other Operations

[1954 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Amdt. 1, Barley]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1954 CROP BARLEY LOAN AND PURCHASE AGREEMENT PROGRAM

The regulations issued by the Commodity Credit Corporation and the Commodity Stabilization Service published in 19 F. R. 1571, and containing the specific requirements for the 1954-crop barley price support program are hereby amended as follows:

Section 421.459 (a) is amended to include a table of deductions for warehouse charges so that the amended paragraph (a) reads as follows:

§ 421.459 *Warehouse charges.* (a) Warehouse receipts and the barley represented thereby stored in approved warehouses operating under the Uniform Grain Storage Agreement may be subject to liens for warehouse handling and storage charges at not to exceed the Uniform Grain Storage Agreement rates from the date the grain is deposited in the warehouse for storage. Where the date of deposit (the date of the warehouse receipt if the date of deposit is not shown) on warehouse receipts representing barley stored in warehouses operating under the Uniform Grain Storage Agreement is on or before April 30, 1955, there shall be deducted in computing the amount of the loan or purchase price the storage charges per bushel as shown in the following table unless written evidence has been submitted with the warehouse receipt that all warehouse charges, except receiving and loading out charges, have been prepaid through the maturity date, April 30, 1955:

Date of deposit (all dates inclusive):	*Amount of deduction (cents per bushel)*
Prior to May 26, 1954	15
May 26, 1954–June 24, 1954	14
June 25, 1954–July 24, 1954	13
July 25, 1954–Aug. 23, 1954	12
Aug. 24, 1954–Sept. 22, 1954	11
Sept. 23, 1954–Oct. 12, 1954	10
Oct. 13, 1954–Nov. 1, 1954	9
Nov. 2, 1954–Nov. 21, 1954	8
Nov. 22, 1954–Dec. 11, 1954	7
Dec. 12, 1954–Dec. 31, 1954	6
Jan. 1, 1955–Jan. 20, 1955	5
Jan. 21, 1955–Feb. 9, 1955	4
Feb. 10, 1955–Mar. 1, 1955	3
Mar. 2, 1955–Mar. 21, 1955	2
Mar. 22, 1955–April 30, 1955	1

* * * * *

(Sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. 714b)

Issued this 19th day of April 1954.

[SEAL] J. A. McCONNELL,
Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 54-3043; Filed, Apr. 21, 1954; 8:51 a. m.]

[1954 C. C. C. Grain Price Support Bulletin 1, Supp. 1, Amdt. 1, Oats]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1954 CROP OATS LOAN AND PURCHASE AGREEMENT PROGRAM

The regulations issued by the Commodity Credit Corporation and the Commodity Stabilization Service published in 19 F. R. 1631, and containing the specific requirements for the 1954-crop oats price support program are hereby amended as follows:

Section 421.559 (a) is amended to include a table of deductions for warehouse charges so that the amended paragraph (a) reads as follows:

§ 421.559 *Warehouse charges.* (a) Warehouse receipts and the oats represented thereby stored in approved warehouses operating under the Uniform Grain Storage Agreement may be subject to liens for warehouse handling and storage charges at not to exceed the Uniform Grain Storage Agreement rates from the date the grain is deposited in the warehouse for storage. Where the date of deposit (the date of the warehouse receipt if the date of deposit is

(Continued on p. 2339)

CONTENTS

Agricultural Marketing Service Page
Proposed rule making:
Milk handling in San Antonio, Tex. 2357
Rules and regulations:
Grain standards, official U. S.:
Barley 2339
Wheat 2339
Mixed vegetables, frozen; U. S. standards for grades 2340
Poultry and edible products thereof, inspection, grading, classes and standards; inspection in official plants 2343

Agriculture Department
See Agricultural Marketing Service; Commodity Credit Corporation; Commodity Stabilization Service.

Army Department
See Engineers Corps.

Civil Aeronautics Administration
Rules and regulations:
Standard instrument approach procedures; procedure alterations 2344

Civil Aeronautics Board
Notices:
Tuya Cuban Express Corp.; hearing on application for foreign air carrier permit 2378

Commerce Department
See Civil Aeronautics Administration.

Commodity Credit Corporation
Notices:
Domestic and export price lists for April 1954; sales of certain commodities at fixed prices 2378
Rules and regulations:
1954 crop loan and purchase agreement program; warehouse charges:
Barley 2337
Oats 2337

Commodity Stabilization Service
Proposed rule making:
Cotton, 1954 crop; proposed formulation of marketing quota regulations:
Extra long staple 2366
Upland 2357

FEDERAL REGISTER

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CFR SUPPLEMENTS

(For use during 1954)

The following Supplements are now available:

Titles 30–31 ($1.00)
Title 33 ($1.25)
Titles 44–45 ($0.75)

Previously announced: Title 3, 1953 Supp. ($1.50); Title 8 ($0.35); Titles 10–13 ($0.50); Title 16 ($1.00); Title 18 ($0.45); Titles 22–23 ($1.00); Title 24 ($0.75); Title 25 ($0.45); Titles 40–42 ($0.50); Title 49: Parts 1 to 70 ($0.60); Parts 71 to 90 ($0.65); Parts 91 to 164 ($0.45); Parts 165 to end ($0.60)

Order from Superintendent of Documents, Government Printing Office, Washington 25, D. C.

CONTENTS—Continued

Commodity Stabilization Service—Continued Page
Proposed rule making—Con.
Wheat; proposed marketing quotas, national, state, and county acreage allotments, and formulation of regulations pertaining to farm acreage allotments and county normal yields for 1955 crop... 2374

Engineers Corps
Rules and regulations:
Navigation regulations; Duluth-Superior Harbor, Minnesota and Wisconsin... 2351

Federal Power Commission
Notices:
Panhandle Eastern Pipe Line Co.; opinion and order... 2379

Indian Affairs Bureau Page
Rules and regulations:
Wind River Indian Irrigation Project, Wyoming; operation and maintenance charges... 2343

Interior Department
See also Indian Affairs Bureau; Land Management Bureau; National Park Service.
Notices:
New Mexico; rules for administration of Grazing District No. 7; miscellaneous amendments... 2378

International Fisheries Commission
Rules and regulations:
Pacific halibut fisheries; adoption of regulations pursuant to Convention between U. S. and Canada... 2353

Interstate Commerce Commission
Notices:
Applications for relief:
Ferro-alloys from Emco, Ala., to Pennsylvania... 2382
Motor-rail rates in the East; substituted service (2 documents)... 2380, 2381
Paper and paper articles from Clyattville and Eskay, Ga., to official and Illinois territories... 2381
Radishes from Florida to points in southern, official, western trunkline, and southwestern territories... 2381
Salt, mine run, from Jefferson Island, La., to Anniston, Ala... 2380
Tobacco stems from North Carolina and Virginia to points in West Virginia, Virginia, and Georgia... 2381

Labor Department
See Wage and Hour Division.

Land Management Bureau
Notices:
Proposed withdrawal and reservation of lands:
Arizona... 2378
Idaho... 2377
Washington... 2377
Rules and regulations:
Alaska; amendment of public land order... 2353
Color-of-title claims, general regulations... 2352
New Mexico; modifying public land order... 2353

National Park Service
Rules and regulations:
Yosemite and Yellowstone National Parks; special regulations... 2351

Post Office Department
Notices:
Assistant Postmaster General, Bureau of Facilities; delegation of authority respecting functions and duties of Purchasing Agent... 2376

Securities and Exchange Commission Page
Notices:
Hearings, etc.:
Eastern Utilities Associates... 2380
General Public Utilities Corp... 2379

Treasury Department
Notices:
Special Assistant to the Secretary; delegation of authority with respect to disbursement, administration, servicing and sale of loans... 2376
Yorkshire Insurance Co. of New York; corporations acceptable as sureties on Federal bonds... 2376

Wage and Hour Division
Proposed rule making:
Employment of learners in Single Pants, Shirts and Allied Garments, Women's Apparel, Sportswear and Other Odd Outerwear, Rainwear, Robes, and Leather and Sheeplined Garments Division of the Apparel Industry; terms of special certificates... 2375

CODIFICATION GUIDE

A numerical list of the parts of the Code of Federal Regulations affected by documents published in this issue. Proposed rules, as opposed to final actions, are identified as such.

Title 6 Page
Chapter IV:
Part 421 (2 documents)... 2337

Title 7
Chapter I:
Part 26 (2 documents)... 2339
Part 52... 2340
Part 70... 2343
Chapter VII:
Part 722 (proposed) (2 documents)... 2357, 2366
Part 728 (proposed)... 2374
Chapter IX:
Part 949 (proposed)... 2357

Title 14
Chapter II:
Part 609... 2344

Title 25
Chapter I:
Part 130... 2343

Title 29
Chapter V:
Part 522 (proposed)... 2375

Title 33
Chapter II:
Part 207... 2351

Title 36
Chapter I:
Part 20... 2351

Title 43
Chapter I:
Part 140... 2352
Appendix (Public land orders):
142 (modified by PLO 955)... 2353
945 (amended by PLO 956)... 2353
955... 2353
956... 2353

Title 50
Chapter III:
Part 301... 2353

not shown) on warehouse receipts representing oats stored in warehouses operating under the Uniform Grain Storage Agreement is on or before April 30, 1955 there shall be deducted in computing the amount of the loan or purchase price the storage charges per bushel as shown in the following table unless written evidence has been submitted with the warehouse receipt that all warehouse charges, except receiving and loading out charges, have been prepaid through the maturity date, April 30, 1955.

Date of deposit (all dates inclusive):	*Amount of deduction (cents per bushel)*
Prior to May 16, 1954	11
May 16, 1954–June 24, 1954	10
June 25, 1954–Aug. 3, 1954	9
Aug. 4, 1954–Sept. 7, 1954	8
Sept. 8, 1954–Oct. 7, 1954	7
Oct. 8, 1954–Nov. 6, 1954	6
Nov. 7, 1954–Dec. 6, 1954	5
Dec. 7, 1954–Jan. 5, 1955	4
Jan. 6, 1955–Feb. 4, 1955	3
Feb. 5, 1955–Mar. 6, 1955	2
Mar. 7, 1955–Apr. 30, 1955	1

* * * * *

(Sec. 4, 62 Stat. 1070, as amended; 15 U. S. C., 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 301, 401, 63 Stat. 1053; 15 U. S. C. 714c, 7 U. S. C. 1447, 1421)

Issued this 19th day of April 1954.

[SEAL] J. A. McCONNELL,
Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 54-3044; Filed, Apr. 21, 1954; 8:51 a. m.]

TITLE 7—AGRICULTURE

Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

Subchapter A—Commodity Standards and Standard Container Regulations

PART 26—GRAIN STANDARDS

OFFICIAL GRAIN STANDARDS OF THE UNITED STATES FOR WHEAT

On March 12, 1954, there was published in the FEDERAL REGISTER (19 F. R. 1384) a notice of a proposal to amend the official grain standards of the United States for wheat (7 CFR 26.101 et seq.) promulgated under the authority of the United States Grain Standards Act, as amended (39 Stat. 482; 54 Stat. 765; 7 U. S. C. 71 et seq.), with respect to the percentages used in stating the quantity of smut dockage in wheat, and the public was given opportunity to participate in rule making concerning the proposal by attending a public hearing at Portland, Oregon, and by submitting written data, views, or arguments to the Director, Grain Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., to be received by him not later than April 9, 1954.

Consideration has been given to information obtained at the hearing, to information received in writing, and to other information available in the United States Department of Agriculture regarding the proposed amendment. Based upon this information, § 26.116 (b) (1) of the official grain standards of the United States for wheat (7 CFR 26.116 (b) (1)) is hereby amended to read as follows:

(1) *Smut dockage.* Before the determination of smut dockage as provided in this paragraph, the wheat shall be graded and designated according to the grade requirements of the standards applicable to such wheat if it were not smutty. The smut shall be removed by scouring and the loss in weight of the wheat caused by the removal of the smut shall be calculated in terms of percentage based on the total weight of the grain when free from dockage. The percentage so calculated shall be stated in terms of half percent when smut dockage is present in a quantity equal to less than one percent, and in terms of whole percent when present in a quantity equal to one percent or more. A fraction of a half percent shall be disregarded when smut dockage is present in a quantity equal to less than one percent, and a fraction of a percent shall be disregarded when smut dockage is present in a quantity equal to one percent or more. The percentage of the smut dockage, so calculated and stated, shall be added to the grade designation, preceding the statement of dockage, if any.

The foregoing amendment shall become effective August 2, 1954.

(Sec. 2, 39 Stat. 482, as amended, sec. 8, 39 Stat 485; 7 U. S. C. 74, 84)

Done at Washington, D. C., this 19th of April 1954.

[SEAL] GEORGE A. DICE,
Acting Deputy Administrator.

[F. R. Doc. 54-3039; Filed, Apr. 21, 1954; 8:50 a. m.]

PART 26—GRAIN STANDARDS

OFFICIAL GRAIN STANDARDS OF THE UNITED STATES FOR BARLEY

On March 18, 1954, there was published in the FEDERAL REGISTER (19 F. R. 1488) a notice of a proposal to amend the official grain standards of the United States for barley (7 CFR 26.201 et seq.) promulgated under the authority of the United States Grain Standards Act, as amended (39 Stat. 482; 54 Stat. 765; 7 U. S. C. 71 et seq.), with respect to the definitions of Choice Malting Two-rowed Western Barley and Malting Two-rowed Western Barley, and the public was given opportunity to participate in rule making concerning the proposal by attending public hearings at Milwaukeee, Wisconsin, and Portland, Oregon, and by submitting written data, views, or arguments to the Director, Grain Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., to be received by him not later than April 9, 1954.

Consideration has been given to information obtained at the hearings, to information received in writing, and to other information available in the United States Department of Agriculture regarding the proposed amendments. Based upon this information, § 26.209 (c) and (e) of the official grain standards of the United States for barley (7 CFR 26.209 (c), (e)) are hereby amended to read as follows:

(c) *Choice Malting Two-rowed Western Barley; definition.* Choice Malting Two-rowed Western Barley shall be Two-rowed Barley of the class Western Barley which consists of the Hannchen or Hanna varietal types; which contains not more than 3 percent of varietal types of barley other than Hannchen or Hanna; which meets the requirements for grade No. 1 except that the limitations on seeds of wild brome grasses shall be disregarded; which has a test weight per bushel of 52 pounds or more; which contains 90 percent or more of mellow kernels; which is not semi-steely in mass; which contains not more than 5 percent of barley and other matter that will pass readily through a sieve 0.032 inch thick with perforations 0.086 by 0.750 (5½/64 x ¾) inch; which contains not more than 5 percent of skinned and/or broken kernels; which does not contain barley injured by frost, by heat, or by mold; and shall not include barley of the special grades stained, smutty, garlicky, weevily, ergoty, or bleached.

* * * * *

(e) *Malting Two-rowed Western Barley; definition.* Malting Two-rowed Western Barley shall be Two-rowed Barley of the class Western Barley which consists of the Hannchen or Hanna varietal types; which contains not more than 5 percent of varietal types of barley other than Hannchen or Hanna; which meets the requirements for any of the grades No. 1 to No. 3, inclusive, except that the limitation on seeds of wild brome grasses shall be disregarded; which does not meet the requirements for the special grade Choice Malting Two-rowed Western Barley; which has a test weight per bushel of 50 pounds or more; which contains 70 percent or more of mellow kernels; which is not semi-steely in mass; which contains not more than 10 percent of barley and other matter that will pass readily through a sieve 0.032 inch thick with perforations 0.086 x 0.750 (5½/64 x ¾) inch; which contains not more than 10 percent of skinned and/or broken kernels; which does not contain barley injured by frost, by heat, or by mold; and shall not include barley of the special grades stained, blighted, smutty, garlicky, weevily, ergoty, or bleached: *Provided*, That Malting Two-rowed Western Barley of grade No. 1 shall contain not less than 80 percent of mellow kernels; and may contain not more than 3 percent of varietal types of barley other than Hannchen or Hanna, not more than 7 percent of barley and other matter that will pass readily through a sieve 0.032 inch thick with perforations 0.086 x 0.750 (5½/64 x ¾) inch, and not more than 7 percent of skinned and/or broken kernels.

The foregoing amendments shall become effective August 2, 1954.

(Sec. 2, 39 Stat. 482, as amended, sec. 8, 39 Stat. 485; 7 U. S. C. 74, 84)

Done at Washington, D. C., this 19th day of April 1954.

[SEAL] GEORGE A. DICE,
Acting Deputy Administrator.

[F. R. Doc. 54-3040; Filed, Apr. 21, 1954; 8:51 a. m.]

Subchapter C—Regulations and Standards Under the Farm Products Inspection Act

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS

SUBPART—UNITED STATES STANDARDS FOR GRADES OF FROZEN MIXED VEGETABLES [1]

On January 15, 1954, a notice of proposed rule making was published in the FEDERAL REGISTER (19 F. R. 261) regarding a proposed revision of the United States Standards for Grades of Frozen Mixed Vegetables (7 CFR Part 52; 18 F. R. 8070).

After consideration of all relevant matters presented, including the proposals set forth in the aforesaid notice, the following United States Standards for Grades of Frozen Mixed Vegetables are hereby promulgated pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.) and the Department of Agriculture Appropriation Act, 1954 (Pub. Law 156, 83d Cong., approved July 28, 1953).

PRODUCT DESCRIPTION, KINDS, STYLES, PROPORTIONS, AND GRADES

Sec.
52.2131 Product description.
52.2132 Kinds and styles of basic vegetables.
52.2133 Proportion of ingredients.
52.2134 Grades of frozen mixed vegetables.

FACTORS OF QUALITY

52.2135 Ascertaining the grade.
52.2136 Ascertaining the rating for the factors which are scored.
52.2137 Color.
52.2138 Absence of defects.
52.2139 Character.

EXPLANATIONS AND METHODS OF ANALYSES

52.2140 Explanation of terms and analyses.

LOT CERTIFICATION TOLERANCES

52.2141 Tolerances for certification of officially drawn samples.

SCORE SHEET

52.2142 Score sheet for frozen mixed vegetables.

AUTHORITY: §§ 52.2131 to 52.2142 issued under sec. 205, 60 Stat. 1090; 7 U. S. C. 1624; Pub. Law 156, 83rd Cong.

PRODUCT DESCRIPTION, KINDS, STYLES, PROPORTIONS, AND GRADES

§ 52.2131 *Product description.* Frozen mixed vegetables consist of three or more succulent vegetables, properly prepared and properly blanched; may contain vegetables (such as, small pieces of sweet red peppers or sweet green peppers) added as garnish; and are frozen and maintained at temperatures necessary for the preservation of the product.

§ 52.2132 *Kinds and styles of basic vegetables.* It is recommended that frozen mixed vegetables, other than small pieces of vegetables added as garnish, consist of the following kinds and styles of vegetables as basic vegetables:

(a) Beans, green or wax: Cut styles, predominantly of ½ inch to 1½ inch cuts;

(b) Beans, lima: Any single varietal type;

(c) Carrots: Diced style, predominantly of ⅜ inch to ½ inch cubes;

(d) Corn, sweet: Golden (or Yellow) in whole kernel style;

(e) Peas: Early type or sweet type.

§ 52.2133 *Recommended proportions of ingredients.* It is recommended that frozen mixed vegetables consist of three, four, or five basic vegetables in the following proportions:

(a) *Three vegetables.* A mixture of three basic vegetables in which any one vegetable is not more than 40 percent by weight of all the frozen mixed vegetables.

(b) *Four vegetables.* A mixture of four basic vegetables in which none of the vegetables is less than 8 percent by weight nor more than 35 percent by weight of all the frozen mixed vegetables.

(c) *Five vegetables.* A mixture of five basic vegetables in which none of the vegetables is less than 8 percent by weight nor more than 30 percent by weight of all the frozen mixed vegetables.

§ 52.2134 *Grades of frozen mixed vegetables.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of frozen mixed vegetables in which each basic vegetable possesses similar varietal characteristics; in which all vegetables possess a good color, are practically free from defects, possess a good character, possess a good flavor and odor; and that score not less than 90 points when scored in accordance with the scoring system outlined in this subpart.

(b) "U. S. Grade B" or "U. S. Extra Standard" is the quality of frozen mixed vegetables in which each basic vegetable possesses similar varietal characteristics; in which all vegetables possess a reasonably good color, are reasonably free from defects, possess a reasonably good character, possess a good flavor and odor; and that score not less than 80 points when scored in accordance with the scoring system outlined in this subpart.

(c) "U. S. Grade C" or "U. S. Standard" is the quality of frozen mixed vegetables in which each basic vegetable possesses similar varietal characteristics; in which all vegetables possess a fairly good color, are fairly free from defects, possess a fairly good character, possess a fairly good flavor and odor; and that score not less than 70 points when scored in accordance with the scoring system outlined in this subpart.

(d) "Substandard" is the quality of frozen mixed vegetables that fail to meet the requirements of U. S. Grade C or U. S. Standard.

FACTORS OF QUALITY

§ 52.2135 *Ascertaining the grade.* (a) The grade of frozen mixed vegetables is ascertained by considering the factors of similar varietal characteristics and flavor and odor which are not scored and the respective ratings for the factors of color, absence of defects, and character which are scored.

(b) The relative importance of each factor which is scored is expressed numerically on the scale of 100. The maximum number of points that may be given such factors are:

Factors:	Points
Color	20
Absence of defects	40
Character	40
Total score	100

(c) The scores for the factors of color, absence of defects, and character (with respect to each individual vegetable prior to cooking) are determined immediately after thawing so that the product is sufficiently free from ice crystals to permit proper handling as individual units, and representative samples of the product are cooked to ascertain tenderness of the frozen mixed vegetables, collectively, before final evaluation of the score for character. Flavor and odor are also ascertained on the cooked product.

(d) "Good flavor and odor" means that the product and each basic vegetable after cooking has a good, characteristic normal flavor and odor, free from objectionable flavors and objectionable odors of any kind.

(e) "Fairly good flavor and odor" means that the product after cooking may be lacking in good flavor and odor but is free from objectionable flavors and objectionable odors of any kind.

§ 52.2136 *Ascertaining the rating for the factors which are scored.* The essential variations within each factor which is scored are so described that the value may be ascertained for each factor and expressed numerically. The numerical range within each factor which is scored is inclusive (for example, "17 to 20 points" means 17, 18, 19, or 20 points).

§ 52.2137 *Color*—(a) *General.* The factor of color refers to the general brightness of all the combined vegetables and to the colors of lima beans, if a component in the mixture, as follows:

(1) "Green" with respect to thin-seeded types (with skins removed), such as Henderson Bush and Thorogreen varieties, and with respect to thick-seeded types (with skins on), such as Fordhook variety, means that the color of not less than 50 percent of the surface area of the individual lima bean possesses as much or more green color as Plate 18, K–5, illustrated in the First Edition of Maerz and Paul's Dictionary of Color.

(2) "Green" with respect to thick-seeded Baby Potato type (with skins on), such as Baby Potato, Baby Fordhook, and Evergreen varieties, means that the color of not less than 50 percent of the surface area of the individual lima bean possesses as much or more green color as Plate 18, J–3, illustrated in the First Edition of Maerz and Paul's Dictionary of Color.

(3) "White" for the respective varietal types (with skins removed or with skins on, as the case may be) means that more than 50 percent of the surface area of the individual lima bean possesses less green color than Plate 18, E–1, as illustrated in the First Edition of Maerz and Paul's Dictionary of Color.

(b) *(A) classification.* Frozen mixed vegetables which possess a good color may be given a score of 18 to 20 points. "Good color" means that the combined basic vegetables as a mass and the individual basic vegetables are bright and

[1] The requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

characteristic of young or tender vegetables that have been properly prepared and properly processed; that any pieces of vegetable material used for garnish are reasonably bright; and that lima beans, if present, possess a bright typical color for the varietal type and meet the following additional color requirements for the respective types:

(1) *Thin-seeded type (with skins removed); Thick-seeded Baby Potato type (with skins on).* 90 percent or more, by count, of all the lima beans are "green"; and the balance may be lighter in color or may be white or combinations thereof.

(2) *Thick-seeded type (with skins on).* 85 percent or more, by count, of all the lima beans are "green"; and the balance may be lighter in color but not more than 5 percent, by count, of all the lima beans may be white.

(c) *(B) classification.* If the frozen mixed vegetables possess a reasonably good color, a score of 16 or 17 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a limiting rule). "Reasonably good color" means that the combined basic vegetables as a mass and the individual basic vegetables are reasonably bright and characteristic of reasonably young or reasonably tender mixed vegetables that have been properly prepared and properly processed; that any pieces of vegetable material used for garnish may be only fairly bright but are not off color for any reason; and that lima beans, if present, possess a reasonably bright typical color for the varietal type and meet the following additional color requirements for the respective types:

(1) *Thin-seeded type (with skins removed); Thick-seeded Baby Potato type (with skins on).* 65 percent or more, by count, of all the lima beans are "green"; and the balance may be lighter in color or may be white or combinations thereof.

(2) *Thick-seeded type (with skins on).* 60 percent or more, by count, of all the lima beans are "green"; and the balance may be lighter in color but not more than 5 percent, by count, of all the lima beans may be white.

(d) *(C) classification.* If the frozen mixed vegetables possess a fairly good color, a score of 14 or 15 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good color" means that the combined basic vegetables as a mass and the individual basic vegetables are fairly bright and characteristic of mixed vegetables that have been properly prepared and properly processed; that any pieces of vegetable material used for garnish may be only fairly bright but are not off color for any reason; and that lima beans, if present, possess a fairly bright typical color for the varietal type and meet the following additional color requirements for the respective types:

(1) *Thin seeded type (with skins removed); Thick-seeded Baby Potato type (with skins on).* More than 35 percent, by count, of all the lima beans are lighter than "green" including lima beans that may be white.

(2) *Thick-seeded type (with skins on).* More than 40 percent, by count, of all the beans are lighter than "green" but no more than 20 percent, by count, of all the lima beans may be white.

(e) *(SStd) classification.* If the frozen mixed vegetables fail to meet the requirements of paragraph (d) of this section, a score of 0 to 13 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2138 *Absence of defects*—(a) *General.* The factor of absence of defects refers to the degree of freedom from harmless extraneous vegetable materials, slightly damaged units, moderately damaged units, seriously damaged units, and any other defects which detract from the appearance or edibility of the product.

(1) "Harmless extraneous vegetable material" means any vegetable substance other than from any of the basic vegetables or garnish and any portions of the basic vegetables which are normally removed in preparation for processing. Such materials include, but are not limited to, "small pieces" and "large pieces" as follows:

(i) A "small piece of harmless extraneous vegetable material" is any piece or unit of such material similar in shape and the equivalent in size or smaller than 3/16 square inch of leafy material or loose pieces of pods from peas or lima beans, tough or woody stems of any size other than unstemmed units of green or wax beans, 1/4-inch cube of corn cob material, 1/2 square inch of corn husk, and 3/8-inch diameter thistle buds;

(ii) A "large piece of harmless extraneous vegetable material" is any piece or unit of such material similar in shape and larger in size than the equivalent of an applicable kind of "small piece of harmless extraneous vegetable material."

(2) "Slightly damaged unit" means any unit of the basic vegetable or garnish that is affected by slight blemishes, slight discoloration, or similar injury that are noticeable but do not materially affect the appearance or edibility of the unit, and includes, but is not limited to, light discoloration of the hilum of lima beans or other light discoloration of the skin which does not penetrate into the cotyledon of lima beans.

(3) "Moderately damaged unit" means any unit of a basic vegetable or garnish that is affected by blemishes, discoloration, or any other similar injury that materially affects the appearance or edibility of the unit and has the following specific meanings for the respective vegetables:

(i) *Beans, green or wax.* Any unit blemished by discoloration or by other means which in the aggregate exceeds the area of a circle 1/8 inch in diameter.

(ii) *Beans, lima.* A bean or portion thereof that is spotted or otherwise definitely discolored or that is blemished by means other than light discoloration.

(iii) *Carrots.* Any unit possessing an unpeeled area greater than the area of a circle 1/8 inch in diameter; and any unit blemished by internal or external discoloration, by sunburn or green color, or by other means.

(iv) *Corn.* Any kernel or portion thereof that possesses serious brown or black discoloration.

(v) *Peas.* Any spotted pea or any off-colored pea (such as brown, gray, cream, or yellow-white) that is abnormally defective and that definitely lacks any tinge of green color.

(vi) *Garnish.* Any piece blemished by discoloration or by other means which in the aggregate exceeds the area of a circle 1/8 inch in diameter.

(4) "Seriously damaged unit" means any unit of the basic vegetable or garnish, other than damaged corn kernels, that is damaged to the extent that the appearance and edibility of the unit is seriously affected and includes, but is not limited to, "shriveled" lima beans that are materially wrinkled and not of normal plumpness; "sprouted" lima beans that show an external shoot protruding beyond the cotyledon and skin; and any unit with brown or very black or very dark spots and similar injury regardless of the area affected.

(5) "Other defects" means any defects not specifically mentioned that affect the appearance or edibility of the product, and include, but are not limited to the following:

(i) *Beans, green or wax.* Loose seeds and portions thereof; and pod sections with very ragged edges, that are partially broken or split, or that are markedly shorter or longer than the predominating lengths of the cut units;

(ii) *Beans, lima.* Mashed beans, broken beans, loose cotyledons, loose skins, and any portions thereof;

(iii) *Carrots.* Crushed, broken, cracked, or irregularly shaped units; units with excessively frayed edges and surfaces; and units markedly smaller than one-half the volume of, or markedly larger than, the predominating size of cubes;

(iv) *Corn.* Crushed kernels, ragged kernels, loose skins, and dark and objectionable pieces of silk more than 1/2 inch in length; and

(v) *Peas.* Mashed peas, broken peas, loose cotyledons, loose skins, and any portions thereof.

(b) *(A) classification.* Frozen mixed vegetables that are practically free from defects may be given a score of 36 to 40 points. "Practically free from defects" means that there may be present no more than the following defects within the limits stated:

(1) No large pieces of harmless extraneous vegetable material, but 1 small piece of harmless extraneous vegetable material for each 16 ounces net weight, or for each package if the package is less than 16 ounces, of frozen mixed vegetables: *Provided,* That the combined weight of all the harmless extraneous material is not more than 1/2 of 1 percent, by weight, of the frozen mixed vegetables;

(2) A total of 3 moderately damaged units and seriously damaged units for each 3 ounces of frozen mixed vegetables of which 1 unit for each 4 ounces of frozen mixed vegetables may be seriously damaged: *Provided*, That slightly damaged, moderately damaged, and seriously damaged units, either singly or in combination, do not affect materially the appearance or edibility of the frozen mixed vegetables; and

(3) Other defects, individually or collectively, do not affect more than slightly the appearance of the frozen mixed vegetables.

(c) *(B) classification.* If the frozen mixed vegetables are reasonably free from defects, a score of 32 to 35 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a limiting rule). "Reasonably free from defects" means that there may be present no more than the following defects within the limits stated:

(1) 1 large piece of harmless extraneous vegetable material and 2 small pieces of harmless extraneous vegetable material for each 16 ounces net weight, or for each package if the package is less than 16 ounces, of frozen mixed vegetables: *Provided*, That the combined weight of all the harmless extraneous material is not more than ½ of 1 percent, by weight, of the frozen mixed vegetables;

(2) A total of 4 moderately damaged units and seriously damaged units for each 3 ounces of frozen mixed vegetables of which 1 unit for each 3 ounces of frozen mixed vegetables may be seriously damaged: *Provided*, That slightly damaged, moderately damaged, and seriously damaged units, either singly or in combination, do not affect materially the appearance or edibility of the frozen mixed vegetables; and

(3) Other defects, individually or collectively, do not affect materially the appearance of the frozen mixed vegetables.

(d) *(C) classification.* If the frozen mixed vegetables are fairly free from defects, a score of 28 to 31 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly free from defects" means that there may be present no more than the following defects within the limits stated:

(1) 1 large piece of harmless extraneous vegetable material and 2 small pieces of harmless extraneous vegetable material for each 16 ounces net weight, or for each package if the package is less than 16 ounces, of frozen mixed vegetables: *Provided*, That the combined weight of all the harmless extraneous material is not more than ½ of 1 percent, by weight, of the frozen mixed vegetables;

(2) A total of 5 moderately damaged units and seriously damaged units for each 3 ounces of frozen mixed vegetables of which 1 unit for each 2 ounces of frozen mixed vegetables may be seriously damaged: *Provided*, That slightly damaged, moderately damaged, and seriously damaged units; either singly or in combination, do not seriously affect the appearance or edibility of the frozen mixed vegetables; and

(3) Other defects, individually or collectively, do not seriously affect the appearance of the frozen mixed vegetables.

(e) *(SStd) classification.* If the frozen mixed vegetables fail to meet the requirements of paragraph (d) of this section, a score of 0 to 27 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.2139 *Character*—(a) *General.* The factor of character refers to the texture, the maturity, and the degree of development of the pods and seeds in green beans or wax beans; the tenderness of lima beans; the tenderness and the degree of freedom from stringy or coarse fibers in carrots; the tenderness and maturity or starchiness of the corn; the tenderness or maturity of the peas; and to the tenderness of the combined frozen mixed vegetables after cooking.

(b) *Interpretation of terms.* Unless indicated otherwise, the interpretation of the terms with respect to tenderness, texture, maturity, and development of the individual vegetables prior to cooking are the same as those in the applicable United States Standards for Grades of the frozen product.

(c) *(A) classification.* Frozen mixed vegetables which collectively and individually possess a good character may be given a score of 36 to 40 points. "Good character" means that the combined vegetables after cooking are tender and that the individual vegetables prior to cooking meet the following requirements:

(1) *Beans, green or wax.* The bean pods and seeds possess a good character.

(2) *Beans, lima.* The lima beans, exclusive of white beans, are tender; and any white beans that may be present are tender or reasonably tender.

(3) *Carrots.* The units possess a tender texture.

(4) *Corn.* The kernels are no more advanced than the cream stage of maturity, have a reasonably tender texture, and are the equivalent of frozen whole-grain corn that would score not less than 43 points for the factor of "Tenderness and Maturity" as outlined in the "United States Standards for Grades of Frozen Whole Kernel (or Whole Grain) Corn."

(5) *Peas.* The peas are reasonably tender and are the equivalent of frozen peas that would score not less than 34 points for the factor of "Tenderness and Maturity" as outlined in the "United States Standards for Grades of Frozen Peas."

(d) *(B) classification.* If the frozen mixed vegetables, collectively and individually, possess a reasonably good character, a score of 32 to 35 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade B or U. S. Extra Standard, regardless of the total score for the product (this is a limiting rule). "Reasonably good character" means that the combined vegetables after cooking are reasonably tender and practically free from tough fibers and that the individual vegetables prior to cooking meet the following requirements:

(1) *Beans, green or wax.* The bean pods and seeds possess a reasonably good character.

(2) *Beans, lima.* The lima beans, including white beans that may be present, are reasonably tender.

(3) *Carrots.* The units possess a tender texture.

(4) *Corn.* The kernels are reasonably tender and are the equivalent of frozen whole-grain corn that would score not less than 40 points for the factor of "Tenderness and Maturity" as outlined in the "United States Standards for Grades of Frozen Whole Kernel (or Whole Grain) Corn."

(5) *Peas.* The peas are reasonably tender and are the equivalent of frozen peas that would score not less than 32 points for the factor of "Tenderness and Maturity" as outlined in the "United States Standards for Grades of Frozen Peas."

(e) *(C) classification.* If the frozen mixed vegetables, collectively and individually, possess a fairly good character, a score of 28 to 31 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good character" means that the combined vegetables after cooking are fairly tender and reasonably free from tough fibers and that the individual vegetables prior to cooking meet the following requirements:

(1) *Beans, green or wax.* The bean pods and seeds possess a fairly good character.

(2) *Beans, lima.* The lima beans, including white beans that may be present, are fairly tender.

(3) *Carrots.* The units possess a reasonably tender texture.

(4) *Corn.* The kernels are fairly tender.

(5) *Peas.* The peas are fairly tender.

(f) *(SStd) classification.* If the frozen mixed vegetables, collectively or individually, fail to meet the requirements of paragraph (e) of this section, a score of 0 to 27 points may be given. Frozen mixed vegetables that fall into this classification shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

EXPLANATIONS AND METHODS OF ANALYSES

§ 52.2140 *Explanation of terms and analyses.* (a) The "proportion of ingredients" are determined on the thawed vegetables by the following procedure:

(1) Separate and assemble from all the containers in the sample each of the basic vegetables;

(2) Weigh each basic vegetable thus composited to obtain the "aggregate weight" of each basic vegetable from all the containers in the sample;

(3) Add the aggregate weights of all the basic vegetables to obtain the "grand total weight" of all the basic vegetables from all containers in the sample; and then

(4) Calculate the percentage of each basic vegetable in the sample by dividing the "aggregate weight" of each basic vegetable by the "grand total weight" of all the basic vegetables.

LOT CERTIFICATION TOLERANCES

§ 52.2141 *Tolerances for certification of officially drawn samples.* (a) When certifying samples that have been officially drawn and which represent a specific lot of frozen mixed vegetables the grade for such lot will be determined by averaging the total scores of the containers comprising the sample, if, (1) all containers comprising the sample meet all applicable standards of quality promulgated under the Federal Food, Drug, and Cosmetic Act and in effect at the time of the aforesaid certification; and (2) with respect to those factors which are scored:

(i) Not more than one-sixth of the containers fails to meet the grade indicated by the average of such total scores;

(ii) None of the containers falls more than 4 points below the minimum score for the grade indicated by the average of such total scores;

(iii) None of the containers falls more than one grade below the grade indicated by the average of such total scores; and

(iv) The average score of all containers for any factor subject to a limiting rule is within the score range of that factor for the grade indicated by the average of the total scores of the containers comprising the sample.

SCORE SHEET

§ 52.2142 *Score sheet for frozen mixed vegetables.*

Size and kind of container	
Container mark or identification {Packages	
{Cases	
Label (list of ingredients, etc.)	
Net weight (ounces)	

Kinds, styles of ingredients	Aggregate weight each ingredient	Proportion of ingredients
Garnish,		
Beans—Cut: ( ) green; ( ) wax; ( ) "..." to ..."; ( ) round; ( ) flat	--- oz.	---- %
Lima beans	--- oz.	---- %
Carrots: Diced (approx. ..." cubes	--- oz.	---- %
Corn: Whole kernel—golden	--- oz.	---- %
Peas: ( ) sweet; ( ) early	--- oz.	---- %
Grand total weight	--- oz.	100 %

( ) Meets proportions; ( ) fails proportions.

Factors		Score	
Color	20	(A)	18-20
		(B)	16-17
		(C)	14-15
		(SStd)	0-13
Absence of defects	40	(A)	36-40
		(B)	32-35
		(C)	28-31
		(SStd)	0-27
Character	40	(A)	36-40
		(B)	32-35
		(C)	28-31
		(SStd)	0-27

All vegetables after cooking:
( ) Tender; ( ) reasonably tender; ( ) fairly tender.
Flavor and odor (after cooking):
( ) Good; ( ) fairly good; ( ) off.
Total score
Grade

[1] Indicates limiting rule.

The United States Standards for Grades of Frozen Mixed Vegetables (which is the second issue) contained in this subpart shall become effective 30 days after publication hereof in the FEDERAL REGISTER, and thereupon will supersede the United States Standards for Grades of Frozen Mixed Vegetables (7 CFR Part 52, 18 F. R. 8070) which have been in effect since December 5, 1952.

(Sec. 205, 60 Stat. 1090, 67 Stat. 217; 7 U. S. C. 1624)

Dated: April 19, 1954.

[SEAL] GEORGE A. DICE,
Acting Deputy Administrator,
Marketing Services.

[F. R. Doc. 54-3005; Filed, Apr. 21, 1954; 8:45 a. m.]

PART 70—GRADING AND INSPECTION OF POULTRY AND EDIBLE PRODUCTS THEREOF; AND UNITED STATES CLASSES, STANDARDS, AND GRADES WITH RESPECT THERETO

INSPECTION IN OFFICIAL PLANTS

The amendment to the regulations governing the grading and inspection of poultry and edible products thereof and United States classes, standards, and grades with respect thereto (7 CFR, Part 70), hereinafter promulgated, is pursuant to authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087; 7 U. S. C. 1621 et seq.) and the Department of Agriculture Appropriation Act, 1954 (67 Stat. 217, 7 U. S. C. 414).

The amendment will permit the conduct of inspection operations in the same processing room where uninspected operations are being carried on in plants where effective segregation of inspected and noninspected products is maintained.

It is hereby found that it would be impracticable and contrary to the public interest to give preliminary notice and engage in public rule making procedure and delay the effective date of this amendment until 30 days after publication in the FEDERAL REGISTER for the reasons that (1) it is in the nature of a relieving restriction, (2) it will permit fuller utilization of poultry processing facilities and thereby reduce processing costs, and (3) no additional time is required for industry to prepare to comply with this amendment.

The amendment hereinafter set forth shall become effective upon publication in the FEDERAL REGISTER.

The amendment is as follows:

1. Change the second sentence of § 70.15 *Inspection in official plants; extent required,* to read as follows:

§ 70.15 *Inspection in official plants; extent required.* * * * Dressed poultry may be eviscerated in such plant without inspection for condition and wholesomeness, but uninspected and inspected operations may not be carried on simultaneously except in plants where processing rooms (including packing rooms) are separate or when by other acceptable means effective segregation of inspected and uninspected product is maintained. * * *

The other provisions of § 70.15 are unchanged.

(Sec. 205, 60 Stat. 1090, 67 Stat. 217; 7 U. S. C. 1624, 414)

Issued at Washington, D. C., this 16th day of April 1954.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Agricultural Marketing Service.

[F. R. Doc. 54-3041; Filed, Apr. 21, 1954; 8:51 a. m.]

TITLE 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

Subchapter I—Irrigation Projects, Operation and Maintenance

PART 130—OPERATION AND MAINTENANCE CHARGES

WIND RIVER INDIAN IRRIGATION PROJECT, WYOMING

APRIL 16, 1954.

On February 25, 1954, there was published in the daily issue of the FEDERAL REGISTER a notice of intention to modify § 130.95 *Charges* of Title 25, Code of Federal Regulations, dealing with the irrigable lands of the Wind River Indian Irrigation Project. Interested persons were thereby given opportunity to participate in the preparation of the proposed amendment by submitting their views, data or arguments to the Area Director within 30 days from the date of publication of the notice. No objections or other data concerning the amendment having been received, the said section is amended as proposed, to be effective for the calendar year of 1954 and thereafter until further notice:

§ 130.95 *Charges.* In compliance with the provisions of the acts of August 1, 1914 and March 7, 1928 (38 Stat. 583, 25 U. S. C. 385; 45 Stat. 210, 25 U. S. C. 387), the operation and maintenance charges for the lands under the Wind River Irrigation Project, Wyoming, for the calendar year 1954 and subsequent years until further notice, are hereby fixed at $2.00 per acre for the assessable area under the constructed works on the Diminished Wind River Project and at $2.50 per acre on the Ceded Wind River Project; except in the case of all irrigable trust patent Indian land which lies within the Ceded Reservation and which is benefited by the Big Bend Drainage District where an additional assessment of $0.45 (45 cents) per acre is hereby fixed.

Amendment to order dated March 20, 1952 (17 F. R. 2387), signed by Paul L. Fickinger, Area Director.

(Secs. 1, 3, 36 Stat. 270, 272, as amended; 25 U. S. C. 385)

PAUL L. FICKINGER,
Area Director.

[F. R. Doc. 54-3026; Filed, Apr. 21, 1954; 8:48 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 79]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedure alterations appearing hereinafter are adopted to become effective when indicated in order to promote safety of the flying public. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

1. The low frequency range procedures prescribed in § 609.6 are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. If an LFR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
ANNETTE, ALASKA Annette Airport, 119' SBRAZ-VPDTX ANN Procedure No. 1 April 26, 1954	----------	----------	----------	Nonstandard* W side of S course: 141° outbound. 321° inbound. To 1,500' within 10 miles and 2,800' within 25 miles.	820	123—1.8	Runways 12, 20, 30: T-d T-n #Runway 2: #T-d #T-n C-d C-n S-d S-n A-dn	300-1 300-1½ 600-1 600-1½ 700-1 700-1½ 700-1 700-1½ 800-2	300-1 300-1½ 600-1 600-1½ 700-1½ 700-2 700-1½ 700-2 800-2	Within 0 mile after passing Annettee LFR turn left, climb to 2,800' on S course of Annette LFR within 25 miles. *CAUTION: High terrain east of final approach course. Nonstandard procedure turn required for more favorable terrain. #CAUTION: Turn left immediately after takeoff from runway 2, due to high terrain N and E. CAUTION: Mountainous terrain of elevations to 2,900' 3½ miles NE and 3,600' 6 miles NE. 1,000' contour within 2 miles of airport NW through NE.
COLORADO SPRINGS, COLO. Peterson Field, 6,172' MRLZ-DV: COS Procedure No. 1 April 29, 1952	PROCEDURE CANCELED, EFFECTIVE APRIL 12, 1954.									
GUSTAVUS, ALASKA Gustavus Airport, 29' SBRAZ-P-DTV GST Procedure No. 1 April 26, 1954	----------	----------	----------	W side NW course: 285° outbound. 105° inbound. 2,700' within 10 miles. Procedure turns beyond 10 miles not authorized.	1,400	105—2.7	*T-d #T-n C-d C-n S-dn A-dn	300-1 500-1 500-1½ 700-2 500-1½ 800-2	300-1 500-1 700-1½ 700-2 700-2 800-2	Within 3.0 miles, climb to 4,500' on SE course between Gustavus LFR and Sisters Island Rbn. Alternate missed approach: When directed by ATC, within 3.0 miles turn right and climb on NW course Gustavus LFR to 3,000' within 10 miles. *Takeoff Runway 10 N, 700-2 day and night. #CAUTION: On takeoff climb on SE course Gustavus LFR between Gustavus LFR and Sisters Island Rbn, or, when directed by ATC, climb on NE course Gustavus LFR within 10 miles. Minimum departure altitude at Gustavus LFR: 2,900' southwestbound Red Airway 40; 7,000' northeastbound Blue Airway 38. CAUTION: Maneuvering N and E of airport not authorized due to high terrain.

LFR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
GUSTAVUS, ALASKA Procedure No. 2 April 26, 1954				Nonstandard# S side SE course: 105° outbound. 285° inbound. 3,200' within 10 miles of Pleasant Isle FM. Turns beyond 10 miles not authorized.	*1,500' over Pleasant Isle FM.	285—3.2 FM to airport	**T-d **T-n C-d C-n S-d S-n A-dn	300–1 500–1 500–1½ 700–2 500–1 500–2 800–2	300–1 500–1 500–1½ 700–2 500–1 500–2 800–2	Within 3.5 miles after passing Pleasant Isle FM, turn left and climb to 4,500' between Gustavus LFR and Sisters Island Rbn. Alternate missed approach: When directed by ATC, within 3.5 miles climb straight ahead to 3,000' on NW course Gustavus LFR within 10 miles. #CAUTION: Nonstandard procedure turn required due to high terrain N. Deviation authorized. *If Pleasant Isle FM not received on final approach, maintain 1,500' to station, then execute missed approach procedure. **Takeoff Runway 10 N, 700–2 day and night. CAUTION: On takeoff climb on SE course Gustavus LFR between Gustavus LFR and Sisters Island Rbn, or when directed by ATC, climb on NE course Gustavus LFR within 10 miles. Minimum departure altitude at Gustavus LFR: 2,900' southwestbound Red Airway 46; 7,000' northeastbound Blue Airway 28. CAUTION: Maneuvering N and E of airport not authorized due to high terrain.
ILIAMNA, ALASKA Iliamna Airport, 190' BMRLZ-VPDT ILI Procedure No. 1 April 26, 1954				E side S course: 173° outbound. 353° inbound. 1,300' within 20 miles.	800	250—2.6	#T-dn C-dn A-dn	300–1 600–1 800–2	300–1 600–1½ 800–2	Within 0.0 mile, turn left, climb to 4,000' on S course (173° outbound, 353° inbound) within 20 miles. #CAUTION: On takeoff climb on S course within 20 miles. Minimum departure altitude at Iliamna LFR 1,000' southbound Red 99; 2,900' southeast bound Red 99. This procedure not authorized for ADF approach.
KENAI, ALASKA Kenai Airport, 93' BMRLZ-VPDT ENA Procedure No. 1 April 26, 1954				N side of NE course: 004° outbound. 184° inbound. 1,400' within 25 miles.	800	184—1.1	T-dn C-dn A-dn	300–1 500–1 800–2	300–1 500–1½ 800–2	Within 1.1 miles, climb to 1,400' on SW course (184°) within 25 miles. NOTE: This procedure not authorized for ADF approach.
NENANA, ALASKA Nenana Airport, 360' BMRLZ-VPDT ENN Procedure No. 1 April 26, 1954	SHUTTLE— SW course: 215° outbound. 035° inbound. 2,800' within 25 miles.			Nonstandard# W side SW course: 215° outbound. 035° inbound. 1,500' within 25 miles.	1,000	302—2.4	*T-dn Runways 12, 03, and 21 *T-dn Runway 30 C-dn A-dn	300–1 500–1 700–1 900–2	300–1 500–1 700–1½ 900–2	Within 0.0 mile, climb to 4,800' on SW course (215° outbound, 035° inbound) within 25 miles. #CAUTION: Nonstandard procedure turn authorized for more favorable terrain. *CAUTION: Left turn immediately after takeoff runway 30. Right turn immediately after takeoff runway 03. Climb on SW course within 25 miles. Minimum departure altitude at Nenana LFR: 2,000' northwestbound Blue Airway 26; 6,000' southbound Blue Airway 26. CAUTION: Terrain 1,622' mean sea level 2.5 miles N of airport. This procedure not authorized for ADF approach.
SALT FLAT, TEX. CAA Intermediate, 3,723' BMRLZ-DTV SFL Procedure No. 1 May 1, 1954	Salt Flat BVOR	333—3.0	5,800	W side N course: 342° outbound. 162° inbound. 4,900' within 15 miles. Beyond 15 miles not authorized.	4,300	162—2.7	T-d T-n C-d C-n S-d16 S-n16 A-dn	300–1 300–2 500–1 500–2 500–1 500–2 800–2	300–1 300–2 500–1½ 500–2 500–1 500–2 800–2	Within 2.7 miles turn right and climb to 7,700' on W course within 25 miles. This procedure not approved for ADF approach CAUTION: Terrain 4,600' mean sea level approximately 2.5 miles WSW of airport.

LFR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
SHEMYA, ALASKA Shemya, 90' MRLWZ-PD SYA Procedure No. 1 November 1, 1950	CANCELED MARCH 19, 1954.									
SITKA, ALASKA Sitka Harbor (seaplane), 0' tidewater SBRAZ-P-DTV SIT Procedure No. 1 April 26, 1954	SHUTTLE: On SW course to 1,500' within 25 miles.	----------	----------	S side SW course: 178° outbound. 358° inbound. 1,500' within 25 miles.	1,000	358—17 to seadrome	T-d T-n C-d C-n S-d S-n A	500-2 NA 700-2 NA 700-2 NA 800-2	500-2 NA 700-2 NA 700-2 NA 800-2	Within 10 miles after passing Sitka LFR, turn left and climb to 1,500' on SW course Sitka LFR within 25 miles. If at any time after establishing contact visual reference to surface can not be maintained, execute missed approach procedure. CAUTION: High terrain E of NE course within 11 miles Sitka LFR. High terrain N of NW course within 15 miles Sitka LFR.
YAKUTAT, ALASKA Yakutat Airport, 30' SBRAZ-P-DVT YAK Procedure No. 1 April 26, 1954	----------	----------	----------	S side of W course: 254° outbound. 074° inbound. 1,300' within 25 miles.	700	106—3.1	T-dn C-dn S-dn A-dn	300-1 500-1 500-1 800-2	300-1 500-1½ 500-1 800-2	Within 3.5 miles YAK LFR climb to 1,200' on SE course YAK LFR within 25 miles.

2. The automatic direction finding procedures prescribed in § 609.9 are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ADF instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
INDIANAPOLIS, IND. Weir Cook Municipal, 799' LOM-IN Procedure No. 1 August 1, 1950	SUPERSEDED BY COMBINATION ILS-ADF PROCEDURE, DATED APRIL 20, 1954.									
JUNEAU, ALASKA Juneau Airport, 20' Rbn SSB Procedure No. 1 April 26, 1954	----------	----------	----------	W side of course: 285° outbound. 105° inbound. 3,500' within 25 miles.	1,500 Descend to 1,500' after passing Pleasant Isle FM.	Sisters Island to Juneau VFR 29 miles.	T-d T-n C-d C-n A-d A-n	1,000-2 NA 1,000-2 NA BCOB 1,000-3 NA	1,000-3 NA 1,000-3 NA BCOB 1,000-3 NA	Within 3 miles after passing Sisters Island Rbn on course of 105°, turn left and climb to 4,500' on course of 285° between Sisters Island and Gustavus LFR. NOTE: En route climb procedure at Sisters Island Rbn. Climb on SE course Gustavus LFR between Sisters Island Rbn and Gustavus LFR. All procedure turns to W side of SE course Gustavus LFR. Minimum departure altitude at Sisters Island Rbn: 3,000' southeastbound Blue Airway No. 38. CAUTION: Mountainous terrain of elevations to 2,800' 5 miles N of SE course Gustavus LFR. Advise all turns at Sisters Island be made to E or left of track 105° magnetic.

ADF Standard Instrument Approach Procedure—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initia lapproach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
JUNEAU, ALASKA SBRAZ-PDVT GST HW SSR Procedure No. 2 April 26, 1954	----------	----------	----------	W side of NW course Gustavus LFR: 285° outbound. 105° inbound. 2,700′ within 10 miles NW of Gustavus LFR. Procedure turns not authorized beyond 10 miles.	1,500′ at Pleasant Isle FM	Variable VFR to Juneau	T-d T-n C-d C-n A-d A-n	1,000-2 NA 1,000-2 NA BCOB 1,000-3 NA	1,000-3 NA 1,000-3 NA BCOB 1,000-3 NA	Within 8 miles after passing Pleasant Isle FM, climb to 1,800′ on Sisters Island Rbn, thereafter turn left and climb to MEA on course 285° between Sisters Island Rbn and Gustavus LFR. Caution: Mountainous terrain of elevations to 2,800′ 5 miles N of SE course Gustavus LFR. En route climb procedure at Sisters Island Rbn. Climb on SE course Gustavus LFR between Sisters Island Rbn and Gustavus LFR. All procedure turns to W side of SW course Gustavus LFR. Minimum departure altitude at Sisters Island Rbn: 3,000′ Southeastbound Blue Airway No. 38.
ST. PAUL ISLAND, ALASKA St. Paul, 40′ HW K Procedure No. 1 April 26, 1954	----------	----------	----------	S side of course: 225° outbound. 045° inbound. 1,500′ within 25 miles.	700	020—2.7	*T-d C-d A	500-2 700-2 NA	500-2 700-2 NA	Within 0.0 mile, turn right, climb on course 100° outbound to 2,000′ within 25 miles. *300-1 authorized on runway 18 with E turn after takeoff.
SHEMYA, ALASKA Shemya, 95′ HW SYA Procedure No. 1 November 15, 1953	CANCELED MARCH 12, 1954.									
YAKUTAT, ALASKA Yakutat Airport, 32′ SBRAZ-P-DVT YAK Procedure No. 1 April 26, 1954	----------	----------	----------	W side of course: 285° outbound. 105° inbound. 1,200′ within 20 miles. Beyond 20 miles not authorized.	700	105—3.1	T-dn C-dn S-dn A-dn	800-1 500-1 500-1 800-2	800-1 500-1¼ 500-1 800-2	Within 3.5 miles YAK LFR climb to 1,200′ on magnetic course 111° within 25 miles.

3. The instrument landing system procedures prescribed in § 609.11 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ILS instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below:

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m.p.h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
HOUSTON, TEX. Municipal, 50' ILS-IHOU LOM-OU Procedure No. 1 Combination ILS-ADF May 1, 1954	Houston VOR	ILS-OM	219—8.0	1,200	S side SW course: 215° outbound. 035° inbound. 1,300' within 15 miles. Beyond 15 miles not authorized.	ILS 1,260 ADF 700 over LOM	1,260—4.8	250—0.7	T-dn	300-1	300-1	Climb to 1,600' on NE course HOU ILS within 25 miles or when directed by ATC turn left, climb to 1,700' on NW course HOU LFR or HOU VOR radial 305 within 25 miles.
	Houston LFR	ILS SW course.	309—2.8	1,200					C-dn	300-1	500-1½	
	Houston FM	ILS-LOM	168—8.0	1,400					S-dn 3 ILS	400-¾	400-¾	
	Arcola FM	ILS SW course.	015—5.0	1,200					ADF	500-1	500-1	
	Webster FM	ILS-LOM	284—13.0	1,200					A-dn	800-2	800-2	
	Monument Rbn	ILS-LOM	215—19.0	1,400								
HOUSTON, TEX. Municipal, 50' ILS-IHOU Procedure No. 2 May 1, 1954	Houston VOR	MNU Rbn	033—13	1,400	N side NE course: 035° outbound. 215° inbound. 1,600 within 5 miles E of monument Rbn.	Over MNU Rbn 1,600 Pasadena Fix 900**	Pasadena Fix 4.6	----------	T-dn	300-1	300-1	Climb to 1,200' on SW course. HOU ILS within 15 miles or when directed by ATC turn right, climb to 1,700 on NW course of HOU LFR or HOU VOR Radial 305 within 25 miles. *Except when in accordance with approved radar vectoring procedures, final approach must be initiated from Monument Rbn. Aircraft must be in contact with Houston radar prior to leaving Monument Rbn on final. ‡Pasadena fix is a Houston radar (ASR) fix 4 miles NE of Houston Airport on the NE course of Houston ILS. **Descent below 900' MSL not authorized unless position advisory over Pasadena Fix received from Houston radar.
	Houston LFR	MNU Rbn	024—14	1,400					C-dn	300-1	500-1½	
	Monument Rbn*	Pasadena Fix‡ (final).	215—9.0	900					S-dn 21	400-1	400-1	
									A-dn	800-2	800-2	
INDIANAPOLIS, IND. Weir Cook Municipal 796' ILS-IND LOM-IN Procedure No. 1 Combination ILS-ADF April 20, 1954	Radar terminal area transition altitude, bearings are from radar, azimuths rotating clockwise.	280°—120°	All courses within 20 miles.	2,300	S side SW course ILS: 224° outbound. 044° inbound. 1,900' within 15 miles of LOM.	ILS 1,900 ADF 1,400	1,902—4.3	1,049—0.9	T-dn	300-1	300-1	Within 4.3 miles (ADF) after passing LOM, climb to 2,300' on E course of Ind. LFR to Greenfield Int. or as directed by ATC, as follows: 1. Climb to 2,200' on S course Ind. LFR within 25 miles; 2. Make left turn, climb to 1,900' and proceed to LOM.
		120°—280°	All courses within 20 miles.	2,900					C-dn	500-1	500-1½	
	Clayton FM	SW course ILS	105—8.0	1,900					S-dn 4 ILS	400-¾	400-¾	
	Clayton FM (ADF)	LOM	085—11.0	1,900					ADF	500-1	500-1	
	Indianapolis LFR	SW course ILS	193—4.0	1,900					A-dn	800-2	800-2	
	Indianapolis LFR (ADF)	LOM	177—3.0	1,900								
	Int. E course Ind. LFR and SW course ILS or bearing 224° to LOM.	LOM	224—5.0	1,900								
	Int. S course Ind. LFR and SW course ILS or bearing 224° to LOM.	LOM	224—0.3	1,900								
	Int. 025° course to Ind. VOR and SW course ILS (final).	LOM	044—15.0	1,900								

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m.p.h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
INDIANAPOLIS, IND. ILS-IND Procedure No. 2 April 20, 1954	Radar terminal area transition altitude; bearings are from radar, azimuths rotate clockwise.**	280°—120°	All courses within 20 miles.	2,300	N side NE course ILS: 044° outbound, 224° inbound, 2,300' within 25 miles of River Int.#	No glide slope. Minimum altitude over River Int.# inbound on final 1,800	No outer marker. River Int.# 224—5.0	No middle marker	T-dn	300-1	300-1	Within 5 miles after passing river Int.#, make right turn, climb to 2,000' on W course Ind. LFR within 15 miles, or as directed by ATC, as follows: 1. Climb to 2,100' on NW course Ind. LFR within 25 miles of Ind. LFR. 2. Climb on SW course ILS to 1,900', proceed to LOM. #River Int. is 283° bearing to Ind. VOR and NE course ILS. This procedure authorized only when aircraft equipped to receive VOR and ILS simultaneously, or ASR and ILS simultaneously. **Radar transitions must intercept NE course, ILS at least 5 miles NE River Int.
		120°—280°	All courses within 20 miles.	2,000					C-dn	500-1	500-1½	
									S-dn 22	500-1	500-1	
									A-dn	800-2	800-2	
	Int. NE course ILS and bearing 239° to Ind. VOR.	River Int.#	224—22.0	2,300								
	Int. NE course ILS and bearing 248° to Ind. VOR (final).	River Int.#	224—12.0	VOR fix 1,800 / ASR fix 2,300								
	Int. NE course ILS and bearing 263° to Ind. VOR (final).	River Int.#	224—5.0	1,800								
	Int. SW course ILS and E course Ind. LFR.	River Int.#	044—5.0	2,300								
	Indianapolis LFR	SW course ILS.	074—4.0	2,300								
MADISON, WIS. Truax Field 839' ILS-MSN LOM-MS Procedure No. 1 Combination ILS-ADF April 20, 1954	Madison LFR	LOM	218—4.0	2,400	E side of course: 179° outbound, 359° inbound, 2,400' within 25 miles.	ILS 2,000 ADF 1,900	1918—4.4	1038—0.7	T-dn	300-1	300-1	Within 4.44 miles after passing LOM (ADF), climb to 2,500' on N course from LOM within 25 miles.
	Janesville VOR	LOM	328—37.0	2,400					C-dn	600-1	600-1½	
	Lone Rock VOR	LOM	110—43.0	2,700					S-dn 36 ILS	400-¾	400-¾	
	Int. W course MSN LFR and bearing 111 to LOM.	LOM	111—12.0	2,700					ADF	600-1	600-1	
	Int. E course MSN LFR and bearing 257° to LOM.	LOM	257—12.0	2,400					A-dn	800-2	800-2	
	Int. 308 course from JVL-VOR and S course ILS final.	LOM	339—16.5	2,400								

4. The ground controlled approach procedures prescribed in § 609.13 are amen ded to read in part:

GCA STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If a GCA instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the ground controller. From initial contact with GCA to final authorized landing minimums, the instructions of the GCA controller are mandatory except when (A) visual reference with ground is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach.

City and State; airport name, elevation; effective date	Radar terminal area; maneuvering altitudes by sectors and limiting distances	Ceiling and visibility minimums						Except when the ground controller may direct otherwise prior to final approach, a missed approach procedure shall be executed as provided below when (a) communication on final approach is lost for more than 5 seconds; (b) directed by ground controller; (c) visual reference is not established upon descent to the authorized landing minimums; or (d) landing is not accomplished.
		Runway No.	Condition	Precision approach (PAR)		Surveillance approach (ASR)		
				75 m. p. h. or less	More than 75 m. p. h.	75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9
INDIANAPOLIS, IND. Weir Cook Municipal, 796' Procedure No. 1 April 20, 1954	Bearings are from radar. Azimuths rotating clockwise. Distances within 20 miles. Sector 280° to 120°, 2,300'. Sector 120° to 280°, 2,000'.	4, 9, 13, 18, 27, 31, 36.	S-dn C-dn	---------- ----------	---------- ----------	400-1 500-1	400-1 500-1½	Runways 4, 9, 13, 18, climb to 2,300' on E course Ind. LFR and proceed to Greenfield Int. or as directed by ATC as follows: 1. Climb to 2,200' on S course of Ind., LFR within 25 miles; 2. Climb on SW course ILS to 1,900'; proceed to LOM. Runways 22, 27, 31, 36, climb to 2,000' on W course of Ind. LFR within 15 miles of station or as directed by ATC as follows: 1. Climb on SW course ILS to 1,900', proceed to LOM; 2. Climb to 2,100' on NW course of Ind. LFR within 25 miles of station. *ASR straight-in approach minimums higher on Runway 22 because of ground clutter.
		22	S-dn C-dn	---------- ----------	---------- ----------	500-1½ 500-1½	500-1½ 500-1½	
		All runways	T-dn A-dn	---------- ----------	---------- ----------	300-1 800-2	300-1 800-2	

5. The very high frequency omnirange procedures prescribed in § 609.15 (a) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If a VOR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
BURLINGTON, IOWA Burlington, 698' BVOR-BRL Procedure No. 1 April 20, 1954	Burlington LFR	93—11.9	1,900	N side of course: 107° outbound. 287° inbound. 1,900' within 25 miles.	1,400	287—11.0	T-dn C-dn S-dn A-dn	300-1 700-2 700-2 800-2	300-1 700-2 700-2 800-2	Within 11.0 miles, climb to 2,000' on course 287° within 25 miles.
INDIANAPOLIS, IND. Weir Cook Municipal, 796' BVOR-IND Procedure No. 1 April 20, 1954	Indianapolis LFR	350—7.0	2,000	W side of course: 320° outbound. 140° inbound. 2,100' within 25 miles.	1,400	140—6.0	T-dn C-dn S-dn 13 A-dn	300-1 500-1 500-1 800-2	300-1 500-1½ 500-1 800-2	Within 6.0 miles climb to 2,100' on outbound course of 136° from Ind VOR within 25 miles, or as directed by ATC as follows: 1. Climb to 2,300' on E course IND-LFR and proceed to Greenfield Int; 2. Climb to 2,200' on S course of Ind LFR within 25 miles; 3. climb on SW course ILS to 1,900', proceed to LOM.
	Int. NW course Ind. LFR and 320° course from Ind-VOR (final).	140—16.0	1,600							
	Int. E course of Ind-LFR and NW course of Cincinnati LFR.	269—32.0	2,300							
	Int. W course of Ind-LFR and 236° course from Ind-VOR.	056—30.0	2,100							

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
LAFAYETTE, IND. Purdue University, 603' BVOR-LAF Procedure No. 1 April 20, 1954	Lafayette LFR	98—5.0	2,100	E side of course: 128° outbound. 308° inbound. 2,100' within 25 miles.	1,600	308—3.0	T-dn C-dn A-dn	300-1 700-1½ 800-2	300-1 700-1½ 800-2	Within 3.0 miles, climb to 2,200' on outbound course of 308° within 25 miles of LAF VOR. CAUTION: Unlighted stack 881' mean sea level located approximately 1.5 miles NE of airport.
SALT FLAT, TEX. CAA Intermediate, 3,723' BVOR-SFL Procedure No. 1 May 1, 1954	Salt Flat LFR	153—3.0	5,800	W side of course: 340° outbound. 160° inbound. 4,900' within 15 miles. Beyond 15 miles not authorized.	4,300	On airport	T-d T-n C-d C-n S-d S-n S-dn	300-1 300-2 600-1 600-2 600-1 600-2 800-2	300-1 300-2 600-1½ 600-2 600-1 600-2 800-2	Within 6 mile turn right and climb to 7,700' on 261° radial within 25 miles. CAUTION: Terrain 4,030' mean sea level approximately 2.5 miles WSW of airport.

These procedures shall become effective on the dates indicated in Column 1 of the procedures.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

F. B. LEE,
Administrator of Civil Aeronautics.

[F. R. Doc. 54-2976; Filed, Apr. 20, 1954; 8:46 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 207—NAVIGATION REGULATIONS

DULUTH-SUPERIOR HARBOR, MINN. AND WIS.

Pursuant to section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U. S. C. 499), paragraph (b) of § 207.400 relating to the operation of bridges across the channels of Duluth-Superior Harbor, Minnesota and Wisconsin, is hereby amended to effect a change in the signal for the opening of the Duluth Ship Canal bridge and the addition of an opening signal for the Transfer bridge at New Duluth, as follows:

§ 207.400 *Duluth-Superior Harbor, Minn. and Wis.; use, administration, and navigation, bridge and dumping regulations.* * * *

(b) *Bridge regulations.* * * *

(2) *Signals for opening bridges.* (i) Following are the number and kinds of blasts of the signal whistle or of a horn when a vessel is not navigated by steam or Diesel power, which shall be given as a signal for opening the respective bridges:

Duluth Ship Canal Bridge, 1 long, 1 short, 1 long, 1 short.

Interstate (Duluth-Superior) Bridge, 1 long, 1 short, 1 long.

Minnesota draw, Northern Pacific Railway bridge, 1 long, 2 short.

Wisconsin draw, Northern Pacific Railway bridge, 2 long, 2 short.

Grassy Point Bridge, 2 short, 1 long.

Arrowhead Bridge (Twin Ports), 3 long blasts.

Transfer Bridge, New Duluth, 3 long blasts.

The duration of a long blast should not exceed 3 seconds, and a short blast should not exceed 1 second.

* * * * *

[Regs., April 7, 1954, 800.211 (Duluth-Superior Harbor, Minn., Wis.)-ENGWO] (28 Stat. 362; 33 U. S. C. 499)

[SEAL] WM. E. BERGIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 54-3029; Filed, Apr. 21, 1954; 8:48 a. m.]

TITLE 36—PARKS, FORESTS, AND MEMORIALS

Chapter I—National Park Service, Department of the Interior

PART 20—SPECIAL REGULATIONS

YOSEMITE AND YELLOWSTONE NATIONAL PARKS

1. Paragraph (b) *Entrance roads* of § 20.16, entitled *Yosemite National Park*, is amended to read as follows:

(b) *Entrance roads.* Automobiles, trucks, and other vehicles permitted in the Park may enter and leave by the several entrances and travel upon the roads only during the hours and at the times and upon the conditions specified in the following schedules, except that during construction activities or other emergencies the Superintendent shall prescribe such hours as in his judgment are necessary for the protection of the public:

(1) *All-Year highway.* Entrance at Arch Rock open from 5 a. m. to 12 midnight every day of the year.

(2) *Wawona Road.* South entrance open from 6 a. m. to 12 midnight between May 29 and September 15, inclusive; during the remainder of the year from 6 a. m. to 10 p. m. Sunday to Thursday, inclusive, and from 6 a. m. to 11 p. m. Friday and Saturday. (Travel season: Entire year, except during periods of heavy snow.)

(3) *Big Oak Flat Road.* Big Oak Flat Road entrance open from 6 a. m. to 12 midnight from May 29 to September 15, inclusive. During the remainder of the year, the road is open from 6 a. m. to 10 p. m. (Travel season: About May 1 to November 1.)

(4) *Tioga Road.* Tioga Pass entrance open from 6 a. m. to 12 midnight between date of road opening and September 15, inclusive. During the remainder of the year, the road is open from 6 a. m. to 10 p. m. (Travel season: In normal years, latter part of June to October 15.)

(5) *Road to Hetch Hetchy Dam.* Mather Ranger Station entrance open from 6 a. m. to 9:30 p. m. (Travel season: About May 1 to October 15.)

(6) *Approximate dates.* Where approximate dates only are given, weather and other conditions obtaining will govern and signs will be posted accordingly.

2. Subparagraph (2), entitled *Limited open season*, of paragraph (e), entitled *Fishing*, of § 20.13, entitled *Yellowstone National Park*, is amended to read as follows:

(2) *Limited open season.* (i) Riddle Lake, Grebe Lake, Wolf Lake, the stream connecting Grebe and Wolf Lakes and the Yellowstone River and its tributaries from the Upper Falls at Canyon to the marking buoys at the outlet of Yellowstone Lake are open to fishing from sunrise on July 1 to sunset on October 15. Yellowstone Lake and Squaw Lake are open to fishing from sunrise on June 15 to sunset on October 15.

(ii) All streams emptying into Yellowstone Lake, except those closed for management or cultural purposes, are open to fishing from sunrise on July 15 to sunset on October 15. Streams trapped for egg taking purposes are closed during the spawning season. Closure of such streams will be indicated by signs. Mouths of streams shall include those portions of Yellowstone Lake marked by signs and buoys within 100 yards of the stream outlet and/or inlet.

(iii) The following waters are open to fishing from sunrise on May 30 to sunset on September 30:

Madison River.	Maple Creek.
Campanula Creek.	Grayling Creek.
Cougar Creek.	Duck Creek.
Gneiss Creek.	Tepee Creek.

3. Subdivision (i) of subparagraph (5), entitled *Limit of catch and in possession*, of paragraph (e), entitled *Fishing*, of § 20.13, entitled *Yellowstone National Park*, is amended to read as follows:

(i) In Yellowstone Lake, that portion of the Yellowstone River above the Upper Falls at Canyon, and the streams entering into these waters, the limit of catch per day by each person fishing, and the limit of fish in possession at any one time by any person, shall be 10 pounds of fish (dressed weight with heads and tails intact), plus one fish, not to exceed a total of 3 fish.

(Sec. 3, 49 Stat. 535, as amended; 16 U. S. C. 3)

Issued this 15th day of April 1954.

DOUGLAS MCKAY,
Secretary of the Interior.

[F. R. Doc. 54-3018; Filed, Apr. 21, 1954; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular No. 1872]

PART 140—GENERAL REGULATIONS GOVERNING COLOR-OF-TITLE CLAIMS

Part 140 is completely revised, to read as follows:

Sec.

140.1 Statutory authority.
140.2 Definition.
140.3 Classes of claims.
140.4 Who may apply.
140.5 Description of lands applied for.
140.6 Application.
140.7 Presentation and verification of factual statements.
140.8 Minerals.
140.9 Sale price of land.
140.10 Acreage limitation.
140.11 Payment.
140.12 Publication; protests.

AUTHORITY: §§ 140.1 to 140.12 issued under R. S. 2478; 43 U. S. C. 1201.

§ 140.1 *Statutory authority.* The act of December 22, 1928 (45 Stat. 1069; 43 U. S. C. 1068, 1068a), as amended by the act of July 28, 1953 (67 Stat. 227, Public Law 159, 83d Congress), authorizes the issuance of patent for not to exceed 160 acres of public lands held under claim or color of title of either of the two classes described in § 140.3, upon payment of the sale price of the land.

§ 140.2 *Definition.* "The act", when used in this part, means the act of December 22, 1928 (45 Stat. 1069; 43 U. S. C. 1068, 1068a), as amended by the act of July 28, 1953 (67 Stat. 227, 43 U. S. C. 1068a).

§ 140.3 *Classes of claims.* The claims recognized by the act will be referred to in this part as claims of class 1, and claims of class 2. A claim of class 1 is one which has been held in good faith and in peaceful, adverse possession by a claimant, his ancestors or grantors, under claim or color of title for more than 20 years, on which valuable improvements have been placed, or on which some part of the land has been reduced to cultivation. A claim of class 2 is one which has been held in good faith and in peaceful, adverse possession by a claimant, his ancestors or grantors, under claim or color of title for the period commencing not later than January 1, 1901, to the date of application, during which time they have paid taxes levied on the land by State and local governmental units.

§ 140.4 *Who may apply.* Any individual, group, or corporation authorized to hold title to land in the State and who believes he has a valid claim under color of title may make application.

§ 140.5 *Description of lands applied for.* Application under the act may be made for surveyed or unsurveyed lands. If unsurveyed, the description must be sufficiently complete to identify the location, boundary, and area of the land and, if possible, the approximate description or location of the land by section, township, and range. If unsurveyed land is claimed, final action will be suspended until the plat of survey has been officially filed.

§ 140.6 *Application.* (a) An application for a claim of class 1 or of class 2 must be filed in duplicate on Form 4-1250.[1] It must be filed with the land office for the district in which the land is situated, or, if there is no land office for the district in which the land is situated, with the Director, Bureau of Land Management, Washington 25, D. C.

(b) Every application must be accompanied by a filing fee of $10, which will be nonreturnable.

[1] Filed as part of the original document.

(c) The application must be in typewritten form, or in legible handwriting, and it must be completely executed and signed by the applicant.[2]

(d) Every applicant must furnish information required in the application form concerning improvements, cultivation, conveyances of title, taxes, and related matters.

§ 140.7 *Presentation and verification of factual statements.* (a) Information relating to all record and nonrecord conveyances, or to nonrecord claims of title, affecting the land shall be itemized on Form 4-1251.[1] The statements of record conveyances must be certified by the proper county official or by an abstractor. The applicant may be called upon to submit documentary or other evidence relating to conveyances or claims. Abstracts of title or other documents which are so requested will be returned to the applicant.

(b) Applicants for claims of class 2 must itemize all information relating to tax levies and payments on the land on Form 4-1252,[1] which must be certified by the proper county official or by an abstractor.

§ 140.8 *Minerals.* (a) All patents issued under the act will reserve to the United States all fissionable source materials.

(b) Any applicant who satisfied all requirements for a claim of class 1 or of class 2 commencing not later than January 1, 1901, to the date of application and who so requests in the application will receive a patent conveying title to all other minerals except:

(1) Any minerals which, at the time of approval of the application, are embraced by an outstanding mineral lease or

(2) Any minerals for which the lands have been placed in a mineral withdrawal.

All other patents will reserve all minerals to the United States.

(c) All mineral and fissionable material reservations will include the right to prospect for, mine, and remove the same in accordance with applicable law.

§ 140.9 *Price of land.* The land applied for will be appraised on the basis of its fair market value at the time of appraisal. However, in determination of the price payable by the applicant, value resulting from improvements or development by the applicant or his predecessors in interest will be deducted from the appraised price, and consideration will be given to the equities of the applicant. In no case will the land be sold for less than $1.25 per acre.

§ 140.10 *Acreage limitation.* No patent will be issued pursuant to an application under the act which exceeds 160 acres.

§ 140.11 *Payment.* Applicant will be required to make payment of the sale price of the land within the time stated in the request for payment.

[2] 18 U. S. C. 1001 makes it a crime for any person knowingly and willfully to make to any department or agency of the United States any false, fictitious or fraudulent statements or representations as to any matter within its jurisdiction.

§ 140.12 *Publication; protests.* (a) The applicant will be required to publish once a week for four consecutive weeks in accordance with § 106.18 of this chapter, at his expense, in a designated newspaper and in a designated form, a notice allowing all persons claiming the land adversely to file in the land office for the district in which the land is situated, or if there is no land office for the district in which the land is situated, with the Director, Bureau of Land Management, Washington 25, D. C., their objections to the issuance of patent under the application. A protestant must serve on the applicant a copy of the objections and furnish evidence of such service.

(b) The applicant must file a statement of the publisher, accompanied by a copy of the notice published, showing that publication has been had for the required time.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1954.

[F. R. Doc. 54-3017; Filed, Apr. 21, 1954; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 955]

NEW MEXICO

MODIFYING PUBLIC LAND ORDER NO. 142 OF JUNE 16, 1943

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 142 of June 16, 1943, reserving under the jurisdiction of the Department of the Interior certain public lands in New Mexico for use in connection with the prosecution of the war is hereby modified to the extent necessary to permit disposal of the following-described lands under applicable public land laws by a State exchange or State selection:

NEW MEXICO PRINCIPAL MERIDIAN

T. 18 S., R. 13 W.,
Sec. 12, lot 1.

The area described contains 31.71 acres.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1954.

[F. R. Doc. 54-3016; Filed, Apr. 21, 1954; 8:45 a. m.]

[Public Land Order 956]

ALASKA

AMENDING PUBLIC LAND ORDER NO. 945 OF MARCH 18, 1954

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 945 of March 18, 1954 (19 F. R. 1583) revoking Executive Order No. 5214 of October 30, 1929 is hereby amended by adding at the end of the sixth paragraph the following sentence:

All applications filed pursuant to the veterans' preference act of 1944, on or before 10:00 a. m. of the 35th day (April 22, 1954) after the date of this order shall be treated as though simultaneously filed at that time; all other applications under the public land laws filed on or before 10:00 a. m. of the 126th day (July 22, 1954) after the date of this order shall be treated as though simultaneously filed at that time.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

APRIL 20, 1954.

[F. R. Doc. 54-3077; Filed, Apr. 21, 1954; 10:24 a. m.]

TITLE 50—WILDLIFE

Chapter III—International Regulatory Agencies (Fishing and Whaling)

Subchapter A—International Fisheries Commission

PART 301—PACIFIC HALIBUT FISHERIES

Part 301 of Chapter III, Title 50, is revised to read as follows:

Sec.
301.1 Regulatory areas.
301.2 Length of halibut fishing season.
301.3 Closed seasons.
301.4 Catch limits in Areas 2 and 3A.
301.5 Size limits.
301.6 Licensing of vessels.
301.7 Retention of halibut taken under permit.
301.8 Conditions limiting validity of permits.
301.9 Statistical return by vessels.
301.10 Statistical return by dealers.
301.11 Closed nursery grounds.
301.12 Dory gear prohibited.
301.13 Nets prohibited.
301.14 Retention of tagged halibut.
301.15 Responsibility of master.
301.16 Supervision of unloading and weighing.
301.17 Previous regulations superseded.

AUTHORITY: §§ 301.1 to 301.17 issued under Art. III, 50 Stat., Part 2, 1353.

§ 301.1 *Regulatory areas.* (a) Convention waters which include the territorial waters and the high seas off the western coasts of Canada and the United States of America including the southern as well as the western coasts of Alaska shall be divided into the following areas, all directions given being magnetic unless otherwise stated.

(b) Area 1A (South of Heceta Head) shall include all convention waters southeast of a line running northeast and southwest through Heceta Head Light, as shown on Chart 5802, published in July, 1947, by the United States Coast and Geodetic Survey, which light is approximately latitude 44°08'18" N., longitude 124°07'36" W.

(c) Area 1B (Heceta Head to Willapa Harbor) shall include all convention waters between Area 1A and a line running northeast and southwest through Willapa Bay Light on Cape Shoalwater, as shown on Chart 6185, published in July, 1939, by the United States Coast and Geodetic Survey, which light is approximately in latitude 46°43'17" N., longitude 124°04'15" W.

(d) Area 2 (Willapa Harbor to Cape Spencer) shall include all convention waters off the coasts of the United States of America and of Alaska and of Canada between Area 1B and a line running through the most westerly point of Glacier Bay, Alaska, to Cape Spencer Light as shown on Chart 8304, published in June, 1940, by the United States Coast and Geodetic Survey, which light is approximately latitude 58°11'57" N., longitude 136°38'18" W., thence south one-quarter east and is exclusive of the nursery areas closed to all halibut fishing in § 301.11.

(e) Area 3A (Cape Spencer to Sanak Islands) shall include all the convention waters off the coast of Alaska that are between Area 2 and a straight line running approximately south three-quarters east from the Alaska Peninsula, near Bold Cape approximately latitude 55° 01'15" N., longitude 162°15'45" W., through the highest point on Dear Island approximately latitude 54°57'45" N., longitude 162°16'45" W., and through the highest point on Caton Island approximately latitude 54°24'00" N., longitude 162°26'00" W. The points on the Alaska Peninsula, on Deer and Caton Islands shall be determined from Chart 8860 as published December, 1942, by the United States Coast and Geodetic Survey, Washington, D. C.

(f) Area 3B (West of Sanak Islands including Bering Sea) shall include all the convention waters off the coast of Alaska which are not included in Area 3A or in Area 2 or in the nursery area described in § 301.11 (b).

§ 301.2 *Length of halibut fishing seasons.* (a) In Area 1A, the halibut fishing season shall commence at 12:01 a. m. of the 16th day of May and terminate at 11:59 p. m. of the same day that the third halibut fishing season in Area 3B shall terminate.

(b) In Area 1B, the halibut fishing seasons shall commence and terminate at the same times as the halibut fishing seasons in Area 2 shall commence and terminate.

(c) In Area 2, there shall be two halibut fishing seasons: The first season commencing at 12:01 a. m. of the 16th day of May and terminating at 11:59 p. m. on a date to be determined and announced under § 301.4 (b); the second season, of 8 days, commencing at 12:01 a. m. of the 1st day of August and terminating at 11:59 p. m. of the 8th day of August, or if the termination of the first season in Area 2 or in Area 3A be later than 11:59 p. m. of the 22d day of July the second season in Area 2 shall commence at 12:01 a. m. of the tenth day after termination of the first season in Area 2 or in Area 3A whichever shall be later and terminate at 11:59 p. m. of the 8th day after commencement of the second fishing season in this area.

(d) In Area 3A, there shall be two halibut fishing seasons: The first commencing at 12:01 a. m. of the 16th day of May and terminating at 11:59 p. m. on a date to be determined and announced under § 301.4 (b); the second

season, of 10 days, commencing at 12:01 a. m. of the 1st day of August and terminating at 11:59 p. m. of the 10th day of August, or if the termination of the first season in Area 2 or in Area 3A be later than 11:59 p. m. of the 22d day of July the second season in Area 3A shall commence at 12:01 a. m. of the 10th day after termination of the first season in Area 2 or in Area 3A whichever shall be later and terminate at 11:59 p. m. of the 10th day after commencement of the second fishing season in this area.

(c) In Area 3B, there shall be three halibut fishing seasons; The first and the second fishing seasons commencing and terminating at the same times as the first and second fishing seasons respectively in Area 3A; the third season, of 25 days, commencing at 12:01 a. m. of the 5th day after the termination of the second fishing season and terminating at 11:59 p. m. of the 30th day after the termination of the second season provided the latter date is not later than 11:59 p. m. of the 30th day of November when all convention waters shall be closed to halibut fishing as provided in § 301.3 (b).

§ 301.3 *Closed seasons.* (a) Under paragraph 1 of Article 1 of the Convention, all convention waters shall be closed to halibut fishing except as provided in § 301.2.

(b) All convention waters, if not already closed under other provisions of this part, shall be closed to halibut fishing at 11:59 p. m. of the 30th day of November and shall remain closed until re-opened as provided in § 301.2, and the retention and landing of any halibut caught during this closed period shall be prohibited.

(c) Nothing contained in this part shall prohibit the fishing for species of fish other than halibut or prohibit the International Pacific Halibut Commission, hereafter in this part referred to as "the Commission," from conducting or authorizing fishing operations for investigation purposes as provided for in paragraph 3 of Article I of the Convention.

§ 301.4 *Catch limits in Areas 2 and 3A.* (a) The quantity of halibut to be taken during the first halibut fishing season in Area 2 and during the first halibut fishing season in Area 3A in 1954 shall be limited to 26,500,000 pounds and 28,000,000 pounds respectively of salable halibut, the weights in each limit to be computed as with heads off and entrails removed.

(b) The Commission shall as early in the said year as is practicable determine and announce the date on which it deems each limit of catch defined in paragraph (a) of this section will be attained, and the limit of each such catch shall then be that which shall be taken prior to said date, and fishing for halibut in the area or areas to which each limit applies shall at that date be prohibited until each area is re-opened to halibut fishing as provided in § 301.2, and provided that if it shall at any time become evident to the Commission that the limit will not be reached by such date, it may substitute another date.

(c) No catch limits shall apply to the second halibut fishing season in Area 2 or to the second halibut fishing season in Area 3A, or to any halibut fishing season in any other area.

§ 301.5 *Size limits.* The catch of halibut to be taken from all areas during the year 1954 shall be limited to halibut which with head on are 26 inches or more in length as measured from the tip of the lower jaw to the extreme end of the middle of the tail or to halibut which with the head off and entrails removed are 5 pounds or more in weight, and the possession of any halibut of less than the above length or the above weight, according to whether the head is on or off, by any vessel or by any master or operator of any vessel or by any person, firm or corporation, is prohibited.

§ 301.6 *Licensing of vessels.* (a) All vessels of any tonnage which shall fish for halibut in any manner or hold halibut in possession in any area, or which shall transport halibut otherwise than as a common carrier documented by the Government of the United States or of Canada for the carriage of freight, must be licensed by the Commission, provided that vessels of less than five net tons or vessels which do not use set lines need not be licensed unless they shall require a permit as provided in § 301.7.

(b) Each vessel licensed by the Commission shall carry on board at all times while at sea the halibut license thus secured whether it is validated for halibut fishing or endorsed with a permit as provided in § 301.8 and this license shall at all times be subject to inspection by authorized officers of the Governments of Canada or the United States or by representives of the Commission.

(c) The halibut license shall be issued without fee by the customs officers of the Governments of Canada or the United States or by representatives of the Commission or by fishery officers of the Governments of Canada or the United States at places where there are neither customs officers nor representatives of the Commission. A new license may be issued by the officer accepting statistical return at any time to vessels which have furnished proof of loss of the license form previously issued, or when there shall be no further space for record thereon, providing the receipt of statistical return shall be shown on the new form for any halibut or other species taken during or after the voyage upon which loss occurred.

(d) The halibut license of any vessel shall be validated before departure from port for each halibut fishing operation for which statistical return is required. This validation of a license shall be by customs officers or by fishery officers of the Governments of Canada or the United States when available at places where there are no customs officers and shall not be made unless the area in which the vessel will fish is entered on the license form and unless the provisions of § 301.9 have been complied with for all landings and all fishing operations since issue of the license, provided that if the master or operator of any vessel shall fail to comply with the provisions of § 301.9, the halibut license of such vessel may be validated by customs officers or by fishery officers upon evidence either that there has been a judicial determination of the offense or that the laws prescribing penalties therefor have been complied with, or that the said master or operator is no longer responsible for, nor sharing in, the operations of said vessel.

(e) The halibut license of any vessel fishing for halibut in Area 1A as defined in § 301.1 must be validated at a port or place within Area 1A prior to each such fishing operation when Areas 1B and 2 are closed to halibut fishing.

(f) The halibut license of any vessel fishing for halibut in Area 3B during the third halibut fishing season as defined in § 301.2 (e) must be validated at a port or place within Area 3B prior to such fishing and again before said vessel departs from Area 3B subsequent to such fishing if said vessel has any halibut on board.

(g) A halibut license shall not be validated for departure for halibut fishing in Areas 1A or 1B or 2 more than 48 hours prior to the commencement of any halibut fishing season in said areas; nor for departure for halibut fishing in Areas 3A or 3B from any port or place inside said areas more than 48 hours prior to the commencement of any halibut fishing season in said areas; nor for departure for halibut fishing in Areas 3A or 3B from any port or place outside said areas more than 5 days prior to the commencement of any halibut fishing season in said areas.

(h) A halibut license shall not be valid for halibut fishing in more than one of Areas 1A, 1B or 3A, as defined in § 301.1, during any one trip nor shall it be revalidated for halibut fishing in another of said areas while the vessel has any halibut on board.

(i) A halibut license shall not be valid for halibut fishing in any area closed to halibut fishing nor for the possession of halibut in any area closed to halibut fishing except while in actual transit to or within a port of sale and as provided in paragraph (k) of this section.

(j) A halibut license shall not be valid for halibut fishing in any area while a permit endorsed thereon is in effect, nor shall it be validated while halibut taken under such permit is on board.

(k) A halibut license when validated for halibut fishing in Area 3A shall not be valid for the possession of any halibut in Area 2 if said vessel is in possession of baited gear more than 25 miles from Cape Spencer Light, Alaska; and a halibut license when validated for halibut fishing in Area 3B shall not be valid for the possession of any halibut in Area 3A, when Area 3A is closed to halibut fishing, if said vessel is in possession of baited gear more than 20 miles by navigable water route from the eastern boundary of Area 3B.

(l) No person on any vessel which is required to have a halibut license under paragraph (a) of this section shall fish for halibut or have halibut in his possession, unless said vessel has a valid license issued and in force in conformity with the provisions of this section.

§ 301.7 *Retention of halibut taken under permit.* (a) There may be retained for sale on any vessel which shall have a permit as provided in § 301.8 such halibut as is caught incidentally to fishing by that vessel in any area after it has been closed to halibut fishing under § 301.2 or § 301.4 with set lines (of the type commonly used in the Pacific Coast halibut fishery) for other species, not to exceed at any time one pound of halibut for each seven pounds of salable fish, actually utilized, of other species not including salmon or tuna, and such halibut may be sold as the catch of said vessel, the weight of all fish to be computed as with heads off and entrails removed, provided that it shall not be a violation of this part for any such vessel to have in possession halibut in addition to the amount herein allowed to be sold if such additional halibut shall not exceed thirty per cent of such amount and shall be forfeited and surrendered at the time of landing as provided in paragraph (e) of this section.

(b) There may be retained for sale on any vessel which shall have a permit as provided in § 301.8 such halibut as is caught incidentally to fishing for species of crab by that vessel in that part of Area 3B known as Bering Sea after 12:01 a. m. of the 16th day of May of the year 1954 with bottom trawl nets (of the type commonly used in the Bering Sea king crab fishery) whose cod ends or fish bags shall consist of webbing whose dry-stretched mesh shall measure not less than 12 inches between knots or hog rings, not to exceed at any time one pound of halibut for each five pounds drained weight of salable picked crab meat or the equivalent drained weight of crab meat in the shell or in vacuum-packed heat processed containers. The equivalent weight of meat in the shell shall be computed on the basis of 15 pounds of meat in the shell being equal to 6 pounds of drained picked crab meat and the equivalent weight of processed meat shall be computed on the basis of 6½ ounces of drained weight of processed crab being equal to 8 ounces of picked crab meat.

(c) Halibut retained under such permit shall not be filleted, fletched, steaked or butchered beyond the removal of the head and entrails while on the catching vessel.

(d) Halibut retained under such permit shall not be landed or otherwise removed or be received by any person, firm or corporation from the catching vessel until all halibut on board shall have been reported to a customs, fishery or other authorized enforcement officer of the Governments of Canada or the United States by the captain or operator of said vessel and also by the person, firm or corporation receiving the halibut, and no halibut or other fish or crabs shall be landed or removed or be received from the catching vessel except with the permission of said officer and under such supervision as the said officer may deem advisable.

(e) Halibut retained under such permit shall not be purchased or held in possession by any person other than the master, operator or crew of the catching vessel in excess of the proportion allowed in paragraph (a) of this section until such excess whatever its origin shall have been forfeited and surrendered to the customs, fishery or other authorized officers of the Governments of Canada or the United States. In forfeiting such excess, the vessel shall be permitted to surrender any part of its catch of halibut, provided that the amount retained shall not exceed the proportion herein allowed.

(f) Permits for the retention and landing of halibut caught in Areas 1A, 1B, 2, 3A or 3B, exclusive of that part known as Bering Sea, in the year 1954 shall become invalid at 11:59 p. m. of the 15th day of November of said year or at such earlier date as the Commission shall determine.

(g) Permits shall become invalid for the retention of halibut caught in that part of Area 3B known as Bering Sea after 11:59 p. m. of the 14th day of November in the year 1954 and shall become invalid for the landing of halibut caught under permit in that part of Area 3B known as Bering Sea after 11:59 p. m. of the 14th day of December of the year 1954 or at such earlier dates as the Commission shall determine.

§ 301.8 *Conditions limiting validity of permits.* (a) Any vessel which shall be used in fishing for other species than halibut in any area after it has been closed to halibut fishing under § 301.2 or § 301.4 must have a halibut license and a permit if it shall retain, land or sell any halibut caught incidentally to such fishing or possess any halibut of any origin during such fishing, as provided in § 301.7.

(b) The permit shall be shown by endorsement of the issuing officer on the face of the halibut license form held by said vessel and shall show the area or areas for which the permit is issued.

(c) The permit shall terminate at the time of first landing thereafter of fish or crabs of any species and a new permit shall be secured before any subsequent fishing operation for which a permit is required.

(d) A permit shall not be issued to any vessel which shall have halibut on board taken while said vessel was licensed to fish in an open area unless such halibut shall be considered as taken under the issued permit and shall thereby be subject to forfeiture when landed if in excess of the proportion permitted in § 301.7 (a) or (b).

(e) A permit shall not be issued to, or be valid if held by, any vessel which shall fish with other than set lines of the type commonly used in the Pacific Coast halibut fishery except in that part of Area 3B known as Bering Sea as provided in § 301.7 (b).

(f) The permit of any vessel shall not be valid unless the permit is granted before departure from port for each fishing operation for which statistical returns are required. This granting of a permit shall be by customs officers or by fishery officers of the Governments of Canada or the United States when available at places where there are no customs officers and shall not be made unless the area or areas in which the vessel will fish is entered on the halibut license form and unless the provisions of § 301.9 have been complied with for all landings and all fishing operations since issue of the license or permit, provided that if the master or operator of any vessel shall fail to comply with the provisions of § 301.9, the permit of such vessel may be granted by customs or fishery officers upon evidence either that there has been a judicial determination of the offense or that the laws prescribing penalties therefor have been complied with, or that the said master or operator is no longer responsible for, nor sharing in, the operations of said vessel.

(g) A permit shall not be valid for the landing of halibut caught incidentally to fishing for crabs in that part of Area 3B known as Bering Sea unless the vessel shall show documentary evidence of date of departure from some port or place within said area, or from Akutan, Alaska, subsequent to such fishing. Such documentary evidence may consist of a certified written statement of a properly identified and responsible resident within that part of Area 3B known as Bering Sea or at Akutan.

(h) The permit of any vessel shall not be valid if said vessel shall have in its possession at any time halibut in excess of the amount allowed under § 301.7 (a) or (b).

(i) No person shall retain, land or sell any halibut caught incidentally to fishing for other species in any area closed to halibut fishing under § 301.2 or § 301.4, or shall have halibut of any origin in his possession during such fishing, unless such person is a member of the crew of and is upon a vessel with a halibut license and with a valid permit issued and in force in conformity with the provisions of § 301.7 and this section.

§ 301.9 *Statistical return by vessels.* (a) Statistical return as to the amount of halibut taken during fishing operations must be made by the master or operator of any vessel licensed under this part and as to the amount of halibut and other species by the master or operator of any vessel operating under permit as provided for in §§ 301.7 and 301.8, within 96 hours of landing, sale or transfer of halibut or of first entry thereafter into a port where there is an officer authorized to receive such return.

(b) The statistical return must state the port of landing and the amount of each species taken within the area defined in this part, for which the vessel's license is validated for halibut fishing or within the area or areas for which the vessel's license is endorsed as a permit.

(c) The statistical return must include all halibut landed or transferred to other vessels and all halibut held in possession on board and must be full, true and correct in all respects herein required.

(d) The master or operator or any person engaged on shares in the operation of any vessel licensed or holding a permit under this part may be required by the Commission or by any officer of the Governments of Canada or the United States authorized to receive such return to certify to its correctness to the best of his information and belief and

to support the certificate by a sworn statement. Validation of a halibut license or issuance of a permit after such sworn return is made shall be provisional and shall not render the license or permit valid in case the return shall later be shown to be false or fraudulently made.

(e) The master or operator of any vessel holding a license or permit under this part shall keep an accurate log of all fishing operations including therein date, locality, amount of gear used, and amount of halibut taken daily in each such locality. This log record shall be open to inspection by representatives of the Commission authorized for this purpose.

(f) The master, operator or any other person engaged on shares in the operation of any vessel licensed under this part may be required by the Commission or by any officer of the Governments of Canada or the United States to certify to the correctness of such log record to the best of his information and belief and to support the certificate by a sworn statement.

§ 301.10 *Statistical return by dealers.* (a) All persons, firms or corporations that shall buy halibut or receive halibut for any purpose from fishing or transporting vessels or other carrier shall keep and on request furnish to customs officers or to any enforcing officer of the Governments of Canada or the United States or to representatives of the Commission, records of each purchase or receipt of halibut, showing date, locality, name of vessel, person, firm or corporation purchased or received from and the amount in pounds according to trade categories of the halibut and other species landed with the halibut.

(b) All persons, firms or corporations receiving fish from a vessel fishing under permit as provided in § 301.7 shall within 48 hours make to an authorized enforcing officer of the Governments of Canada or the United States a signed statistical return showing the date, locality, name of vessel received from and the amount of halibut and of other species landed with the halibut and certifying that permission to receive such fish was secured in accordance with § 301.7 (d). Such persons, firms or corporations may be required by any officer of the Governments of Canada or the United States to support the accuracy of the above signed statistical return with a sworn statement.

(c) All records of all persons, firms or corporations concerning the landing, purchase, receipt and sale of halibut and other species landed therewith shall be open at all times to inspection by any enforcement officer of the Governments of Canada or the United States or of any authorized representative of the Commission. Such persons, firms or corporations may be required to certify to the correctness of such records and to support the certificate by a sworn statement.

(d) The possession by any person, firm or corporation of halibut which such person, firm or corporation knows to have been taken by a vessel without a valid halibut license or a vessel without a permit when such license or permit is required, is prohibited.

(e) No person, firm or corporation shall unload any halibut from any vessel that has fished for halibut in Area 3B during the third halibut fishing season as defined in § 301.2 (e) unless the license of said vessel has been validated at a port or place in Area 3B as required in § 301.6 (f) or unless permission to unload such halibut has been secured from an enforcement officer of the Governments of Canada or the United States.

§ 301.11 *Closed nursery grounds.* (a) The following areas have been found to be populated by small, immature halibut and are designated as nursery grounds and closed to halibut fishing, and no person shall fish for halibut in either of such areas, or shall have halibut in his possession while fishing for other species therein, or shall have halibut of any origin in his possession therein excepting in the course of a continuous transit across such area.

(b) First, that area in the waters off the coast of Alaska within the following boundary as stated in terms of the magnetic compass unless otherwise indicated: From the north extremity of Cape Ulitka, Noyes Island, approximately latitude 55°33'48" N., longitude 133°43' 35" W., to the south extremity of Wood Island, approximately latitude 55°39'44" N., longitude 133°42'29" W.; thence to the east extremity of Timbered Islet, approximately latitude 55°41'47" N., longitude 133°47'42" W.; thence to the true west extremity of Timbered Islet, approximately latitude 55°41'46" N., longitude 133°48'01" W.; thence southwest three-quarters south sixteen and five-eighths miles to a point approximately latitude 55°34'46" N., longitude 134°14'40" W.; thence southeast by south twelve and one-half miles to a point approximately latitude 55°22'23" N., longitude 134°12'48" W.; thence northeast thirteen and seven-eighths miles to the southern extremity of Cape Addington, Noyes Island, latitude 55° 26'11" N., longitude 133°49'12" W.; and to the point of origin on Cape Ulitka. The boundary lines herein indicated shall be determined from Chart 8157, as published by the United States Coast and Geodetic Survey at Washington, D. C., in June, 1929, and Chart 8152, as published by the United States Coast and Geodetic Survey at Washington, D. C., in March, 1933, and reissued March, 1939, except for the point of Cape Addington which shall be determined from Chart 8158, as published by the United States Coast and Geodetic Survey in December, 1923, provided that the duly authorized officers of the United States of America may at any time place a plainly visible mark or marks at any point or points as nearly as practicable on the boundary line defined herein, and such mark or marks shall thereafter be considered as correctly defining said boundary.

(c) Second, that area lying in the waters off the northern coast of Graham Island, British Columbia, within the following boundary, and including the waters of Sturgess Bay, Masset Sound, Masset Inlet, and bays and inlets thereof: From the northwest extremity of Wiah Point, latitude 54°06'50" N., longitude 132°19'18" W., true north five and one-half miles to a point approximately latitude 54°12'20" N., longitude 132°19' 18" W.; thence true east approximately sixteen and three-tenths miles to a point which shall lie northwest (according to magnetic compass at any time) of the highest point of Tow Hill, Graham Island, latitude 54°04'24" N., longitude 131°48'00" W.; thence southeast to the said highest point of Tow Hill. The points on the shoreline of the above mentioned island shall be determined from Chart 3754, published at the Admiralty, London, April 11, 1911, provided that the duly authorized officers of Canada may at any time place a plainly visible mark or marks at any point or points as nearly as practicable on the boundary line defined herein, and such marks shall thereafter be considered as correctly defining said boundary.

§ 301.12 *Dory gear prohibited.* The use of any hand gurdy or other appliance in hauling halibut gear by hand power in any dory or small boat operated from a vessel licensed under the provisions of this part is prohibited in all convention waters.

§ 301.13 *Nets prohibited.* (a) It is prohibited to retain halibut taken in Areas 1A, 1B, 2, 3A and in Area 3B exclusive of that part known as Bering Sea with a net of any kind or to have in possession any halibut in said areas while using any net or nets other than bait nets for the capture of other species of fish, nor shall any license or permit validated for said areas under this part be valid during the use or possession on board of any net or nets other than bait nets, provided that the character and the use of said bait nets conform to the laws and regulations of the country where they may be utilized and that said bait nets are utilized for no other purpose than the capture of bait for said vessel.

(b) It is prohibited to retain halibut taken in that part of Area 3B known as Bering Sea with any net which does not have a cod end or fish bag of webbing whose dry stretched mesh measures 12 inches or more between knots or hog rings, nor shall any license or permit held by any vessel fishing for crabs in that part of Area 3B known as Bering Sea be valid for the possession of halibut during the use or possession on board of any net which does not have a cod end or fish bag of webbing whose dry stretched mesh measures 12 inches or more between knots or hog rings.

§ 301.14 *Retention of tagged halibut.* Nothing contained in this part shall prohibit any vessel at any time from retaining and landing any halibut which bears a Commission tag at the time of capture, provided that such halibut with the tag still attached is reported at the time of landing to representatives of the Com-

mission or to enforcement officers of the Governments of Canada or the United States and is made available to them for examination.

§ 301.15 *Responsibility of master.* Wherever in this part any duty is laid upon any vessel, it shall be the personal responsibility of the master or operator of said vessel to see that said duty is performed and he shall personally be responsible for the performance of said duty. This provision shall not be construed to relieve any member of the crew of any responsibility with which he would otherwise be chargeable.

§ 301.16 *Supervision of unloading and weighing.* The unloading and weighing of the halibut of any vessel licensed under this part and the unloading and weighing of halibut and other species of any vessel holding a permit under this part shall be under such supervision as the customs or other authorized officer may deem advisable in order to assure the fulfillment of the provisions of this part.

§ 301.17 *Previous regulations superseded.* The regulations in this part shall supersede all previous regulations adopted pursuant to the Convention between Canada and the United States of America for the preservation of the halibut fishery of the Northern Pacific Ocean and Bering Sea, signed January 29, 1937, except as to offenses occurring prior to the approval of this part. The regulations in this part shall be effective as to each succeeding year, with the dates herein specified changed accordingly, until superseded by subsequently approved regulations. Any determination made by the Commission pursuant to this part shall become effective immediately.

EDWARD W. ALLEN,
Chairman.
GEORGE R. CLARK,
Vice-Chairman.
HAROLD S. HELLAND,
J. W. MENDENHALL,
RICHARD NELSON,
SETON H. THOMPSON.

Signed:

EDWARD W. ALLEN,
Chairman.
H. A. DUNLOP,
Secretary.

Approved:

DWIGHT D. EISENHOWER.

APRIL 9, 1954.

[F. R. Doc. 54-3023; Filed, Apr. 21, 1954; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 949]

[Docket No. AO 232-A3]

MILK IN THE SAN ANTONIO, TEXAS MARKETING AREA

PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER, AS AMENDED, REGULATING HANDLING

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in Room 215, U. S. Post Office and Court House, San Antonio, Texas, beginning at 10:00 a. m., c. s. t., April 26, 1954, for the purpose of receiving evidence with respect to proposed amendments hereinafter set forth, or appropriate modification thereof, to the tentative marketing agreement heretofore approved by the Secretary of Agriculture and to the order, as amended, regulating the handling of milk in the San Antonio, Texas marketing area. These proposed amendments have not received the approval of the Secretary of Agriculture.

Amendments to the order, as amended, regulating the handling of milk in the San Antonio, Texas, marketing area were proposed, as enumerated below:

By Producers Association of San Antonio Incorporated:

1. Amend the allocations and pooling procedures of Order No. 49 for a limited period to preclude the allocations of other source milk which is not subject to pool payment, to Class I utilization to the extent that producer milk is available on a market-wide basis to supply such sale, for the purpose of providing uniform class prices among all handlers; or

2. Amend Order No. 49 for a limited period to require a payment to the market-wide pool by handlers who receive other source milk from other Federal regulated markets which have a Class I price less than that provided by Order No. 49 at a rate equal to the difference between such Class I prices and to the extent that producer milk is available on a market-wide basis to supply such sale, for the purpose of providing uniform class prices among all handlers;

3. Delete from § 949.51 (d) the following: "The provision of this paragraph shall operate only to the extent that the difference between the Class I price pursuant to the order, as amended, regulating the handling of milk in the North Texas marketing area (Part 943 of this chapter) and the Class I price pursuant to this section shall not be greater than 50 cents."

By the Dairy Branch:

4. Make such other changes as may be required to make the entire order conform with any amendments thereto which may result from this hearing.

Copies of this notice of hearing and of the order now in effect may be procured from the Market Administrator, 1204 North Main Avenue, San Antonio 2, Texas, or from the Hearing Clerk, Room 1353, South Building, United States Department of Agriculture, Washington 25, D. C., or may be inspected there.

Dated: April 19, 1954, at Washington, D. C.

[SEAL] GEORGE A. DICE,
Acting Deputy Administrator.

[F. R. Doc. 54-3036; Filed, Apr. 21, 1954; 8:50 a. m.]

Commodity Stabilization Service

[7 CFR Part 722]

1954 CROP OF UPLAND COTTON

NOTICE OF PROPOSED FORMULATION OF MARKETING QUOTA REGULATIONS

Pursuant to the authority contained in the applicable provisions of the Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1301-1376), the Secretary of Agriculture is preparing to formulate marketing quota regulations governing the identification and measurement of farms; the amount, adjustment, and review of the farm marketing quota and farm marketing excess; the issuance of marketing cards and certificates; the identification of cotton which is marketed as being subject to or not subject to the penalty and lien for the penalty; the rate of the penalty and the manner in which penalties shall be paid by producers and buyers; the refunding of penalty overpayments; the records and reports required to be made by cotton producers, ginners, buyers and others; and other miscellaneous provisions regarding the production and marketing of cotton. The proposed regulations will apply to cotton produced in 1954 and also to cotton produced in a prior year which is marketed during the 1954-55 marketing year. The proposed regulations will supplement the Marketing Quota Regulations Relating to Apportionment of the National Acreage Allotment for the 1954 Crop of Upland Cotton to States, Counties and Farms, issued November 26, 1953 (18 F. R. 7441), as amended.

The provisions of the regulations being considered for issuance are as follows:

DEFINITIONS AND MISCELLANEOUS PROVISIONS

§ 722.542 *Definitions.* As used in §§ 722.542 to 722.586 and in all forms and documents in connection therewith, unless the context or subject matter otherwise requires, the following terms shall have the following meanings and the masculine shall include the feminine and neuter genders and the singular shall include the plural number:

(a) "Act" means the Agricultural Adjustment Act of 1938 and any amendments thereto heretofore or hereafter made.

(b) "Secretary" means the Secretary of Agriculture of the United States, or the officer of the Department acting in his stead pursuant to delegated authority.

(c) "Deputy Administrator" means the Deputy Administrator for Production Adjustment, or Acting Deputy Administrator for Production Adjustment, Commodity Stabilization Service, United States Department of Agriculture.

(d) "Director" means the Director, or Acting Director, of the Cotton Division, Commodity Stabilization Service, United States Department of Agriculture.

(e) "Committees": (1) "Community committee" means the persons elected within a community as the community committee pursuant to the Secretary's regulations governing the selection and functions of the Agricultural Stabilization and Conservation county and community committees (14 F. R. 5916).

(2) "County committee" means the persons elected within a county as the county committee pursuant to the Secretary's regulations governing the selection and functions of the Agricultural Stabilization and Conservation county and community committees (14 F. R. 5916).

(3) "State committee" means the persons designated by the Secretary as the Agricultural Stabilization and Conservation committee for the State.

(4) "Review committee" means the review committee appointed by the Secretary pursuant to section 363 of the act.

(f) "Person" means an individual, partnership, firm, joint-stock company, corporation, association, trust, estate, or other legal entity, or a State, political subdivision of a State, the Federal Government, or any agency thereof. The term "person" shall include two or more persons having a joint or common interest.

(g) "Owner" or "landlord" means a person who owns farm land and rents such land to another person or who operates such land.

(h) "Cash tenant", "standing-rent tenant", or "fixed-rent tenant" means a person who rents land from another for a fixed amount of cash or a commodity to be paid as rent.

(i) "Share tenant" means a person other than a sharecropper who rents land from another person and pays as rent a share of the crops or the proceeds thereof.

(j) "Sharecropper" means a person who works a farm in whole or in part under the general supervision of the operator and is entitled to receive for his labor a share of the crops produced thereon or the proceeds thereof.

(k) "Operator" means the person who is in charge of the supervision and conduct of the farming operations on the entire farm.

(l) "Farm" means all adjacent or nearby farm or range land under the same ownership which is operated by one person, including also:

(1) Any other adjacent or nearby farm or range land which the county committee, in accordance with instructions issued by the Deputy Administrator, determines is operated by the same person as part of the same unit in producing range livestock or with respect to the rotation of crops and with workstock, farm machinery, and labor substantially separate from that for any other lands; and

(2) Any field-rented tract (whether operated by the same or another person) which, together with any other land included in the farm, constitutes a unit with respect to the rotation of crops.

A farm shall be regarded as located in the county or administrative area, as the case may be, in which the principal dwelling is situated, or if there is no dwelling thereon it shall be regarded as located in the county or administrative area, as the case may be, in which the major portion of the farm is located.

(m) "Farm acreage allotment" means a cotton acreage allotment established for a farm under the Marketing Quota Regulations Relating to Apportionment of the National Acreage Allotment for the 1954 Crop of Upland Cotton to States, Counties and Farms (18 F. R. 7441), as amended.

(n) "Upland cotton" (referred to in §§ 722.542 to 722.586 as "cotton") means any cotton other than extra long staple cotton.

(o) "Extra long staple cotton" means American-Egyptian, Sea Island, and Sealand cotton, and all other varieties of the Barbadense species, and any hybrid thereof, and any other cotton in which one or more of these varieties predominates.

(p) "Acreage planted to cotton" means the acreage of land seeded to cotton on the farm in 1954, excluding any acreage in excess of the allotment which is (1) destroyed by causes beyond the producer's control prior to the expiration of the period established under subparagraph (2) of this paragraph for disposing of excess cotton acreage, or (2) disposed of not later than 20 days, or such longer period as is approved in writing by the county committee, after notice of the measured cotton acreage is mailed to the farm operator.

(q) "State and county code number" means the applicable numbers assigned by the Commodity Stabilization Service of the United States Department of Agriculture to each State and county for the purpose of identification.

(r) "Serial number of the farm" or "farm serial number" means the serial number assigned to the farm by the county committee.

(s) "Normal yield" means the average yield per acre of lint cotton for the farm, adjusted for abnormal weather conditions, during the five calendar years 1948, 1950, 1951, 1952 and 1953 except that if the normal yield is established after December 31, 1954, such normal yield shall be determined on the basis of the five calendar years immediately preceding the year in which such normal yield is determined. If for any such year the data are not available or there was no actual yield, then the normal yield for the farm shall be appraised, in accordance with instructions issued by the Deputy Administrator, taking into consideration abnormal weather conditions, the normal yield for the county, and the yield in years for which data are available.

(t) "Normal production" of any number of acres means the normal yield per acre of lint cotton for the farm multiplied by such number of acres.

(u) "Actual production" of cotton on the farm means the total number of pounds of lint cotton determined to have been produced on the farm in 1954.

(v) "Actual yield" per acre means the number of pounds of lint cotton determined by dividing the actual production of cotton on the farm by the acreage planted to cotton on the farm in 1954.

(w) "Producer" means a person who, as owner or landlord (other than the landlord of a standing-rent tenant, fixed-rent tenant, or cash tenant), cash tenant, standing-rent tenant, fixed-rent tenant, share tenant, or sharecropper, is entitled to all or a share of the 1954 crop of cotton or of the proceeds thereof.

(x) "Farm marketing quota" means a cotton marketing quota established under the Act for the farm for the 1954 crop of cotton.

(y) "Farm marketing excess" means the amount of cotton determined for any farm under § 722.550 or § 722.552, whichever is applicable.

(z) "Farm with no farm marketing excess" means a farm on which the acreage planted to cotton in 1954 is not in excess of the farm acreage allotment established therefor.

(aa) "Farm with a farm marketing excess" means a farm on which the acreage planted to cotton in 1954 is in excess of the farm acreage allotment established therefor.

(bb) "Penalty" means the penalty provided in section 346 (a) of the act and § 722.566.

(cc) "Seed cotton" means the harvested fruit of the cotton plant before ginning.

(dd) "Lint cotton" means the fiber taken from seed cotton by ginning.

(ee) "Carry-over cotton" means the unmarketed cotton from any previous crop which the producer thereof has on hand.

(ff) "Ginning" means the process by which lint cotton is removed from the cotton seed.

(gg) "Ginner" means a person engaged in the business of ginning cotton.

(hh) "Gin bale number or mark" means the number entered on the bale tag or any other mark made or used by the ginner to identify a bale of cotton.

(ii) "Warehouse receipt number" means the number on the warehouse receipt and the warehouse bale tag made or used by the warehouseman to identify a bale of cotton.

(jj) "Buyer" means a person who acquires cotton from a producer by sale.

(kk) "Transferee" means a person who receives cotton from a producer by barter, or exchange, or gift inter vivos.

(ll) "Market" means to dispose of cotton in raw or processed form by voluntary or involuntary sale, barter or exchange, or by gift inter vivos.

(1) The term "sale" means any transfer of title to cotton by a producer to another by any means other than barter or exchange or gift inter vivos.

(2) The terms "barter" and "exchange" means transfer of title to cotton by a producer to another in return for cotton or any other commodity, service,

or property in cases where the value of the cotton or such other commodity, service, or property is not considered in terms of money, or the transfer of title to cotton by a producer to another in payment of a fixed rental or other charge for land.

(3) The term "gift inter vivos" means any transfer of title, accompanied by delivery, to cotton by a producer to another which takes effect immediately and irrevocably and is made without any consideration or compensation therefor.

(4) "Marketed", "marketing", and "for market" shall have corresponding meanings to the term "market" in the connection in which they are used.

(mm) "Marketing year" means the period beginning August 1, 1954, and ending July 31, 1955, both dates inclusive.

(nn) "Treasurer of county committee" means the county office manager or the person designated by him to act as treasurer of the Agricultural Stabilization and Conservation county committee.

§ 722.543 *Issuance of forms and instructions.* The Director shall cause to be prepared such forms and instructions as are necessary for carrying out §§ 722.542 to 722.586. The forms shall be issued by the Director with the approval of the Deputy Administrator, and the instructions shall be issued by the Deputy Administrator. Copies of such forms and instructions shall be furnished free to persons needing them upon request made to the office of the State or county committee or the Director.

§ 722.544 *Extent of calculations and rule of fractions.* In making any computation in connection with §§ 722.542 to 722.586, the amount of lint cotton shall be rounded to the nearest whole pound and the amount of penalties or refunds shall be rounded to the nearest whole cent. Fractions of exactly five-tenths of a pound or cent shall be dropped. The acreages of all fields, or subdivisions thereof, of cotton on the farm shall be expressed in hundredths of an acre, and thousandths of an acre shall be dropped. The total acreage of cotton on the farm shall be expressed in tenths of an acre, and hundredths of an acre shall be dropped.

IDENTIFICATION AND MEASUREMENT OF FARMS

§ 722.545 *Identification of farms.* Each farm as operated for the 1954 crop of cotton shall be identified by a farm serial number, assigned by the county committee, and all records pertaining to marketing quotas for the 1954 crop of cotton shall be identified by the farm serial number.

§ 722.546 *Measurements of farms.* The county committee shall provide for measuring the acreage planted to cotton on each farm in the county in accordance with the procedure approved by the Deputy Administrator. The county committee shall provide for the measurement prior to planting of an acreage on the farm equal to the farm acreage allotment, if the farm operator requests such measurement and pays the cost thereof, and any farm on which the acreage planted to cotton does not exceed such measured acreage shall be deemed to be in compliance with the farm acreage allotment. The county committee shall also provide for the remeasurement upon request by the farm operator of the acreage planted to cotton on the farm but the operator shall be required to reimburse the county committee for the expense of such remeasurement if the planted acreage is found upon such remeasurement to be in excess of the farm acreage allotment. If the acreage planted to cotton on the farm is in excess of the farm acreage allotment, the county committee shall notify the farm operator by mail of such excess and shall further notify such operator that unless the planted acreage of cotton on the farm is adjusted to the farm acreage allotment within 20 days from the date of the mailing of such notice, or such additional time as provided for herein, the farm marketing excess for the farm will be determined on the basis of the excess acreage and the farm normal yield. Notice so given shall constitute notice to each producer having an interest in the 1954 cotton crop produced on the farm. In cases where the operator cannot dispose of the excess cotton acreage within the 20-day period because of adverse weather conditions, or other reasons beyond his control, and a request in writing for additional time is filed, the county committee may allow an additional period not to exceed 10 days for disposing of the excess acreage. No cotton acreage shall be disposed of for purposes of adjusting the planted acreage of cotton to the farm acreage allotment after any cotton has been harvested from such planted acreage.

§ 722.547 *Reports and records of farm measurements.* The county committee shall keep a record of the measurements made on all farms. It shall file with the State committee a written report on Form MQ-94—Cotton, setting forth for each farm with a farm marketing excess (a) the farm serial number, (b) the name of the operator, (c) the total acreage in cultivation, (d) the farm acreage allotment, and (e) the acreage planted to cotton in 1954.

FARM MARKETING QUOTA AND FARM MARKETING EXCESS

§ 722.548 *Marketing quotas in effect.* Marketing quotas for the 1954 crop of cotton shall be applicable to any cotton of that crop notwithstanding that it may be available for marketing prior to the beginning of the marketing year or marketed subsequent to the end of the marketing year.

§ 722.549 *Farm marketing quota.* The farm marketing quota for any farm for the 1954 crop of cotton shall be that number of pounds of lint cotton produced on the farm less the amount of the farm marketing excess for the farm. The farm marketing quota for any farm shall be increased by the amount of lint cotton which the producers on the farm have on hand from any previous crops except cotton of the 1950 crop on which the penalty has not been paid.

§ 722.550 *Farm marketing excess—*(a) *Where measurements are made.* The farm marketing excess for the 1954 crop of cotton for any farm shall be the normal production of the acreage planted to cotton on the farm in excess of the farm acreage allotment. Where, upon application of the producer in accordance with § 722.552, it is established by the producer that the normal production of the excess acreage is larger than the amount by which the actual production of cotton in 1954 on the farm exceeds the normal production of the farm acreage allotment, the farm marketing excess shall be adjusted downward to the smaller amount.

(b) *Where measurements cannot be made.* Whenever the producer prevents the determination of the acreage planted to cotton on his farm, the farm marketing excess shall be the total number of pounds of lint cotton produced in 1954 on the farm. In the event the producer establishes, in accordance with § 722.552, the total number of pounds of lint cotton produced in 1954 on the farm, the farm marketing excess shall be the number of pounds of lint cotton produced on the farm in excess of the normal production of the farm acreage allotment therefor.

(c) *Where no farm acreage allotment is established.* The farm marketing excess for any farm for which a farm acreage allotment is not established shall be the normal production of the acreage planted to cotton on the farm. Where, upon application of the producer in accordance with § 722.552, it is established by the producer that the normal production of the acreage planted to cotton on the farm is larger than the actual production of cotton on the farm in 1954, the farm marketing excess shall be adjusted downward to the smaller amount. Whenever the determination of the acreage planted to cotton on a farm for which no farm acreage allotment is established is prevented by the producer, the farm marketing excess shall be the total number of pounds of lint cotton produced in 1954 on the farm.

§ 722.551 *Notice of farm marketing quota and farm marketing excess.* Written notice of the farm marketing quota established for a farm shall be mailed to the operator of such farm. Written notice of the farm marketing excess for a farm shall be mailed to the operator of such farm. Notice so given shall constitute notice to each producer having an interest in the 1954 cotton crop produced or to be produced on the farm. Each notice shall contain a brief statement of the procedure whereby application for a review of the farm marketing quota or farm marketing excess, or any determination made in connection therewith, may be had in accordance with section 363 of the act. A record of the date of mailing the notice to the operator of the farm shall be kept among the permanent records of the county committee and upon request a copy of the notice shall be furnished without charge to any producer on the farm for which the notice is given. Such notice shall contain the information necessary in each case to inform the producer as to

the basis for the determinations set forth in the notice and the effect thereof.

§ 722.552 *Farm marketing excess adjustment*—(a) *Adjustment in the amount of the farm marketing excess.* Any producer having an interest in the cotton produced in 1954 on any farm for which there is a farm marketing excess may apply in writing to the county committee, as provided herein, for a downward adjustment in the amount of the farm marketing excess on the basis of the amount of cotton produced in 1954 on the farm. Any such application shall be filed with the county committee within 30 days after the harvesting of cotton is completed on the farm, or any extension of such time approved by the State committee to not later than March 15, 1955, on the basis of a recommendation by the county committee that the producer's failure to apply for such adjustment within the 30-day period was due to circumstances beyond his control. If the harvesting of cotton on the farm has not been completed by March 15, 1955, but an application has been timely filed under the foregoing provisions of this paragraph, the producer may request the county committee to provide for an estimate to be made of the amount of unharvested cotton on the farm in order that a final determination of the actual production on the farm in 1954 may be made. The county committee shall keep a record of each application so made and the date thereof. The county committee shall establish a time and place at which each application will be considered and shall notify the applicant of the time and place of the hearing. Insofar as practicable, applications shall be considered in the order in which made. Unless application for an adjustment in the farm marketing excess is made within such 30-day period or extension thereof, the farm marketing excess as determined on the basis of the normal production of the excess cotton acreage for the farm shall be final as to the producers on the farm.

(b) *Procedure in connection with an application for an adjustment in the farm marketing excess.* The county committe shall consider each application on the basis of facts known by or made available to it and on the basis of such evidence as may be presented to it by the applicant. The actual production of cotton of any farm shall be determined in view of the relevant facts, including the past production on the farm, the actual yields per acre in 1954 for other farms in the community which are similar with regard to farming practices followed, type of soil, and productivity; the harvesting, ginning, and sales of the cotton produced on the farm; farming practices followed on the farm; and weather conditions and other factors affecting the production of cotton on the farm and in the locality in which the farm is situated. In the consideration of any application for an adjustment in the farm marketing excess, the producer shall have the burden of proof. The evidence presented by the applicant may be in the form of written statements or other documentary evidence or of oral testimony in a hearing before the county committee during its consideration of the application. In order to expedite the consideration of applications, the county committee shall receive, in advance of the time fixed for consideration of the application, any written statement or documentary evidence offered by or on behalf of the applicant, and the application may be disposed of upon the basis of such statement or evidence, together with other information bearing on or establishing the facts, which is available to the county committee, unless the applicant appears before the county committee at the time fixed for considering the application and requests a hearing for the purpose of offering documentary evidence or oral testimony in support of the application. Every such hearing shall be open to the public. The county committee shall make its determination in connection with each application not later than five calendar days next succeeding the day on which the consideration of the application was concluded. The determination of the county committee shall be in writing and shall contain (1) a concise statement of the grounds upon which the applicant sought an adjustment in the amount of the farm marketing excess, (2) a concise statement of the findings of the county committee upon the questions of fact, and (3) the determination of the county committee as to the farm marketing quota and the farm marketing excess. A notice showing the result of the determination made as aforesaid, shall be mailed or delivered to the operator of the farm and also to the applicant if he is not such operator.

§ 722.553. *Publication of the farm acreage allotment, normal yield, marketing quota, and marketing excess.* A record of the acreage allotment, normal yield, marketing quota, and marketing excess established for farms in the county shall be made available for public inspection in the office of the county committee for a period of not less than 30 calendar days. The records containing the information shall be kept where the public may freely examine them. At the end of the 30-day period the records shall be filed in the office of the county committee and remain available for further inspection upon request. There may be used for this purpose listing sheets, copies of notices, or other compilations upon which the pertinent data are shown.

§ 722.554 *Marketing quotas not transferable.* A farm marketing quota established for a farm may not be assigned or otherwise transferred in whole or in part to any other farm.

§ 722.555 *Successors-in-interest.* Any person who succeeds to the interest of a producer in a farm or in a cotton crop produced on a farm, for which a farm marketing quota and a farm marketing excess were established, shall, to the same extent as his predecessor, be entitled to all the rights and privileges incident to such marketing quota and marketing excess and be subject to the penalty on the farm marketing excess and to the lien on the entire crop of cotton and to the restrictions on the marketing of cotton.

§ 722.556 *Review of quotas*—(a) *Right to review by review committee.* Any producer on a farm with a farm marketing excess who is dissatisfied with the determination of (1) the acreage planted to cotton, (2) the normal yield, or (3) the actual yield may, within 15 days after the notice of the farm marketing excess is mailed to him, apply in writing for a review by a review committee of any such determination. Unless application for review is made within such period, such determinations shall be final as to the producers on such farm. Application for review and the review committee proceedings shall be in accordance with the review regulations (MQ–51; §§ 711.1 to 711.34 of this chapter), as issued and revised by the Secretary.

(b) *Court review.* If the producer is dissatisfied with the determination of the review committee, he may, within 15 days after notice of such determination is mailed to him by registered mail, institute proceedings against the review committee to have the determination of the review committee reviewed by a court in accordance with section 365 of the act.

MARKETING CARDS, MARKETING CERTIFICATES AND LOAN DOCUMENTS

§ 722.557 *Eligibility for and issuance of marketing cards*—(a) *Producers eligible to receive marketing cards.* Except as otherwise provided in this section, the operator and any other producer on a farm shall be eligible to receive a marketing card (Form MQ–76—Cotton (1954) Upland), if (1) no farm marketing excess is determined for the farm, or (2) an amount equal to the penalty on the farm marketing excess has been received by the treasurer of the county committee for the county in which the farm is located, except that a marketing card shall not be issued under subparagraph (1) or (2) of this paragraph if any producer on the farm has on hand any cotton produced in 1950 on which the penalty has not been paid.

(b) *Multiple farm producers eligible to receive marketing cards.* Any person who is a cotton producer on more than one farm in a county shall not be eligible to receive a marketing card for any such farm in the county until, in accordance with the provisions of paragraph (a) of this section, he is eligible to receive a marketing card for each of such farms. Any other producers on a farm who are eligible to receive marketing cards pursuant to paragraph (a) of this section shall receive marketing cards with respect to the farm notwithstanding the ineligibility of the multiple farm producer, unless the county committee determines that, in order to enforce the provisions of the act, such producers, including the multiple farm producer, should not receive marketing cards for such farm with no farm marketing excess. Where a producer is engaged in the production of cotton in more than one county (in the same State or two more States), the procedure outlined in this section for issuing marketing cards for multiple farms in a county may be

followed with respect to all such farms, wherever situated, if the county committees of the respective counties so decide, or if the State committee has reason to believe that the procedure would be necessary to enforce the provisions of the act. The State committee may require any multiple farm producer to file with it a list of all farms on which he is engaged in the production of cotton, together with any other information deemed necessary to enforce the provisions of the act.

(c) *Producers to whom marketing cards will not be issued to enforce the provisions of the act.* Notwithstanding any other provisions of this section, the county committee shall deny any producer a marketing card if it determines that such action is necessary to enforce the provisions of the act.

(d) *Preparation and issuance of marketing cards.* A marketing card shall be issued to the operator of the farm if he is eligible to receive it under the foregoing provisions of this section and, if the county committee determines that it will serve a useful purpose, marketing cards shall also be issued to the other eligible producers on the farm. Each marketing card when completed shall be serially numbered and shall show: (1) The names of the county and State and the serial number of the farm, (2) the name and address of the farm operator, (3) the name and address of the producer to whom issued, (4) the signature of the issuing officer designated by the county committee and the signature of the producer, (5) the farm acreage allotment and the acreage planted to cotton, and (6) such additional information and data as may be prescribed by the Deputy Administrator. Where the producer designates an agent to use his marketing card, the card shall also show: (1) The name and address of the agent authorized to use the marketing card and (2) the signatures of the producer and the agent.

§ 722.558 *Marketing certificates and loan documents*—(a) *Use of marketing certificates.* The county committee shall issue to a producer upon his request a marketing certificate (Form MQ–91—Cotton) to permit the marketing of cotton (1) by any such producer (i) who is eligible to receive a marketing card and who desires to market cotton by telegraph, telephone, mail, or by any other means or method other than directly to and in the presence of the buyer or transferee; (ii) who is not engaged in the production of cotton in the 1954 crop year and who desires to market cotton which he has on hand from any prior crop, except cotton from the 1950 crop on which the penalty has not been paid; (iii) who has an interest as a cotton producer and who desires to market cotton which he has on hand from any prior crop, except cotton from the 1950 crop on which the penalty has not been paid; (iv) who desires to market cotton produced by him on a farm with no farm marketing excess but he is not eligible to receive a marketing card under § 722.557 (b) because he or another producer on such farm is also a cotton producer on a farm with a farm marketing excess; and (v) who desires to market his share of the cotton produced on a farm with no marketing excess or on a farm on which the penalty on the farm marketing excess has been paid but he was denied a marketing card by the county committee because it deemed such action necessary to enforce the provisions of the act, and (2) any other producer who has cotton not subject to the penalty or on which the penalty has been paid but such producer is not eligible to receive a marketing card or does not have the required loan documents. The county committee, with the approval of the State committee, may issue marketing certificates for a farm in a total amount for the 1954 crop not exceeding the product of the farm acreage allotment multiplied by the smaller of the normal yield per acre or the estimated actual yield per acre, in instances where the acreage planted to cotton on the farm in 1954 has not been determined through no fault of the operator and the operator, in applying for such certificates, certifies that he has cotton from the 1954 crop available for marketing and that to the best of his knowledge and belief the acreage planted to cotton on the farm does not exceed the farm cotton acreage allotment.

(b) *Preparation and delivery of marketing certificates.* Each marketing certificate shall show (1) the name and address of the producer to whom issued, (2) the names of the county and State and the serial number of the farm, if any, (3) the serial number of the 1954 marketing card issued for the farm, where applicable, (4) the description and amount of the cotton to be marketed, (5) the signature of the producer and the date thereof, and (6) the signature of the issuing officer for the county committee or the signature of a member of the county committee and the date thereof. The "original" of the marketing certificate and the "producer's" and the "county office's" copies shall be delivered to the producer to whom the marketing certificate is issued, and such producer, upon marketing the cotton described in the marketing certificate, shall deliver the original and the copies to the buyer.

(c) *Use of loan documents in lieu of marketing certificates to identify CCC loan cotton.* Any producer who desires to sell his equity in carryover cotton which is pledged as collateral security for a Commodity Credit Corporation loan or to sell carryover cotton on which such a loan has been repaid may identify such cotton as being penalty free by presenting to the buyer thereof such CCC loan documents covering such cotton as may be prescribed by the Deputy Administrator, and the buyer shall accept such documents as evidence to him that the cotton described therein is not subject to the penalty or the lien for the penalty.

§ 722.559 *Lost, destroyed, or stolen marketing cards or certificates*—(a) *Report of loss, destruction, or theft.* In case a marketing card or marketing certificate delivered to a producer is lost, destroyed, or stolen, any person having knowledge thereof shall, insofar as he is able, immediately notify the county committee of the following: (1) The name of the producer to whom the marketing card or certificate was issued; (2) the serial number of the marketing card or certificate; and (3) whether in his knowledge or judgment it was lost, destroyed, or stolen and by whom.

(b) *Investigation and findings of county committee.* The county committee shall make or cause to be made a thorough investigation of the circumstances of such loss, destruction, or theft. If the county committee finds, on the basis of the investigation, that such marketing card or marketing certificate was in fact lost, destroyed, or stolen, it shall cancel such marketing card or certificate by giving notice to the producer to whom the card or certificate was issued that it is void and of no effect. The notice to that effect shall be in writing and mailed to the producer at his last known address. If the county committee also finds that there has been no collusion or connivance in connection therewith on the part of the producer to or for whom the marketing card or certificate was issued, it shall issue to or for him a marketing card or certificate to replace the lost, destroyed, or stolen marketing card or certificate. Each marketing card or certificate issued under this section shall bear across its face in bold letters the word "Duplicate." In case a marketing card or certificate is canceled, as provided in this section, the county committee shall immediately notify the ginners and buyers in the county, or in the immediate vicinity, that the marketing card or certificate has been canceled and that a duplicate has been issued. A report of the findings and action of the county committee shall be kept among its records. Any ginner or buyer or any other person coming into possession or control of a marketing card or certificate which has been canceled shall immediately return it to the county committee which issued it.

§ 722.560 *Cancellation of marketing card and marketing certificates issued in error.* In the event any marketing card or marketing certificate was erroneously issued, the producer to whom it was issued shall be requested to return it to the county committee and upon its being returned it shall be canceled by the county committee by endorsing thereon in bold letters the word "Canceled." Without awaiting its return the county committee shall notify the producer by registered mail at his last known address that it is void and of no effect. A copy of the notice, containing a notation thereon of the date of mailing, shall be kept among the records of the county committee. The county committee shall immediately notify the ginners and buyers in the county, or in the immediate vicinity, that the marketing card or certificate has been canceled.

IDENTIFICATION OF COTTON

§ 722.561 *Time and manner of identification.* Each producer of cotton shall, at the time he markets any cotton, identify the cotton to the buyer or transferee, in the manner hereinafter provided, as being subject to or not subject to the penalty provided in § 722.566 and

the lien for the penalty as provided in § 722.567.

§ 722.562 *Identification by marketing card.* A marketing card (Form MQ–76—Cotton (1954) Upland) shall, when presented to the buyer by the producer to whom issued, be evidence to the buyer that the cotton produced on the farm for which the marketing cards was issued may be purchased by him without collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.563 *Identification by marketing certificate.* A marketing certificate (Form MQ–91—Cotton) shall, when presented to the buyer by the producer to whom it was issued, be evidence to the buyer that the cotton described on the marketing certificate may be purchased by him without the collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.564 *Identification by loan document.* A loan document (as prescribed by the Deputy Administrator) shall, when presented to the buyer by the producer in whose favor it is drawn, be evidence to the buyer that the cotton described in such loan document may be purchased by him without the collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.565. *Cotton not identified by a marketing card, marketing certificate or loan document.* All cotton marketed by a producer which is not identified by a marketing card, marketing certificate, or loan document, as provided in §§ 722.562, 722.563, or § 722.564 shall be taken by the buyer or transferee thereof as cotton subject to the penalty and the lien for the penalty. The buyer or transferee of such unidentified cotton shall collect the penalty from the producer or deduct it from the purchase price of the cotton. The buyer or transferee shall report the purchase of all such unidentified cotton on Form MQ–82—Cotton and remit the penalty collected or deducted to the treasurer of the county committee.

PENALTY

§ 722.566 *Rate of penalty.* The rate of the penalty for cotton is 50 percent of the parity price for cotton as of June 15, 1954, as provided in section 346 (a) of the act. (This section will be amended to include the exact rate of the penalty when such parity price becomes available.)

§ 722.567 *Lien for the penalty.* Until the penalty on the farm marketing excess is paid, all cotton produced on a farm and marketed shall be subject to the penalty at the rate provided in § 722.566 and a lien on the entire crop of cotton produced on the farm in 1954 shall be in effect in favor of the United States.

§ 722.568 *Interest on unremitted penalty.* The person liable for the payment or collection of the penalty shall be liable also for interest on the amount of penalty which is not remitted in accordance with § 722.569 (b) or § 722.570 (c), as the case may be, at the rate of 6 percent per annum from the final date for remitting the penalty until the date such penalty is remitted. The computation of interest on any penalty due shall be made beginning with the day following the final date for remitting the penalty.

§ 722.569 *Payment of penalty by producers*—(a) *Producers liable for payment of penalty.* Each producer having an interest in the 1954 crop of cotton on any farm for which a farm marketing excess has been determined shall be liable to pay the entire amount of the penalty on the farm marketing excess. The amount of the penalty which any producer shall pay shall nevertheless be reduced by the amount of the penalty which is paid by another producer or a buyer of cotton produced on the farm.

(b) *Time when penalty becomes due and payable.* The farm marketing excess for any farm shall be regarded as available for marketing and the penalty thereon shall become due at the time any cotton produced on the farm is harvested. The amount of the penalty on the farm marketing excess for any farm shall be remitted on the date it becomes due or not later than March 15, 1955: *Provided, however,* That the penalty on any bale or lot of cotton marketed (1) from a farm for which the penalty on the farm marketing excess has not been paid or (2) without being properly identified by a marketing card, marketing certificate, or loan document (as prescribed by the Deputy Administrator) shall be due on the date of such marketing and shall be remitted not later than seven calendar days next succeeding the end of the calendar week in which the cotton was marketed.

(c) *Apportionment of the penalty.* The county committee may, upon application of any producer made prior to the expiration of the time allowed for remitting the penalty on the farm marketing excess, determine his proportionate share of the penalty on the farm marketing excess if, pursuant to the application, the producer establishes that he is unable to arrange with other producers on the farm for the payment of the penalty on the entire farm marketing excess; that his share of the cotton crop produced on the farm is marketed by him separately; and that he exercises no control over the marketing of the shares of the other producers in the cotton crop. The producer's proportionate share of the penalty on the farm marketing excess shall be that proportion of the entire penalty on the farm marketing excess which his share in the cotton produced in 1954 on the farm bears to the total amount of cotton produced in 1954 on the farm. When the producer pays his proportionate share of the penalty, he shall not be liable for the remainder of the penalty on the farm marketing excess and he shall be entitled to receive a marketing certificate, issued in accordance with § 722.558, to be used by him only in the marketing of his proportionate share of the cotton crop produced in 1954 on the farm.

§ 722.570 *Payment of penalty by buyers*—(a) *Buyers liable for payment of penalty.* Each person within the United States who buys from the producer any cotton subject to the lien for the penalty shall be liable for and shall pay the penalty thereon. Cotton shall be taken as subject to the lien for the penalty unless the producer presents to the buyer a marketing card (Form MQ–76—Cotton (1954) Upland), a marketing certificate (Form MQ–91—Cotton), or a loan document, as prescribed in §§ 722.562, 722.563, and 722.564.

(b) *Payment of penalty on account of lien for the penalty.* Each person within the United States who buys or acquires cotton from the producer which is subject to the lien for the penalty shall pay the amount of the penalty on each pound thereof in satisfaction of the lien thereon.

(c) *Time when penalty becomes due.* The penalty to be paid by any buyer pursuant to paragraphs (a) and (b) of this section shall become due at the time the cotton is marketed and shall be remitted not later than 7 calendar days next succeeding the end of the calendar week in which the cotton was marketed. Cotton shall be deemed to be sold when either title to or actual or constructive possession of the cotton is delivered by or on behalf of the producer or any part of the purchase price is paid. Cotton shall be deemed to have been marketed by barter or exchange when it is delivered to the transferee of the cotton by actual or constructive delivery or the transferor has received any part of the property, goods, or services for which the cotton is being bartered or exchanged. Cotton shall be deemed to have been marketed by gift inter vivos when there is an actual or constructive delivery of the cotton to the transferee during the lifetime of the producer. Cotton shall be deemed to have been marketed in processed form when the producer, or some person on his behalf, converts cotton into an article of trade and thereby causes the cotton to lose its identity as seed cotton or lint cotton. An article of trade within the meaning of this provision is any article made in whole or in part from cotton for the purpose of marketing such article.

(d) *Manner of deducting penalty and issuance of receipts.* The buyer may deduct from the price paid for any cotton an amount equivalent to the amount of the penalty to be paid by the buyer pursuant to paragraphs (a) and (b) of this section. Any buyer who deducts an amount equivalent to the penalty shall issue to the person from whom the cotton was purchased a receipt for the amount so deducted which shall be on Form MQ–82—Cotton.

§ 722.571 *Remittance of penalty to the treasurer of the county committee.* The treasurer of the county committee, for and on behalf of the Secretary, shall receive the penalty and issue a receipt therefor to the person remitting the penalty. The penalty shall be remitted only in legal tender, or by check, draft, or money order drawn payable to the order of the Treasurer of the United States. All checks, drafts, or money orders tendered in payment of the penalty shall be received by the treasurer of the county committee subject to collec-

tion and payment at par, and the receipt (Form MQ-95—Cotton) issued in connection therewith shall bear a notation to that effect and a description of the check, draft, or money order.

§ 722.572 *Deposit of funds.* All funds received by the treasurer of the county committee in connection with penalties for cotton shall be scheduled and transmitted by him on the day received, or not later than the morning of the next succeeding business day, to the State committee, which, in accordance with applicable instructions, shall cause such funds to be deposited to the credit of the Treasurer of the United States. In the event the funds so received are in the form of cash, the treasurer of the county committee shall deposit such cash in the county committee bank account and a separate check, payable to the Treasurer of the United States in the amount of such cash deposited, shall be drawn on such bank account by the treasurer of the county committee for transmittal to the State committee. The treasurer of the county committee shall make and keep a record of each amount received by him, showing the name of the person who remitted the funds, the identification of the farm or farms in connection with which the funds were received, and the names of the persons who marketed the cotton in connection with which the funds were remitted.

§ 722.573 *Refunds of money in excess of the penalty*—(a) *Determination of refunds.* The county committee and the treasurer of the county committee, upon their own motion or upon the request of any interested person, shall review the amount of money received in connection with the penalty for any farm to determine for each producer the amount thereof, if any, which is in excess of the penalty incurred. The excess amount shall be refunded. Any refund shall be made only to persons who bore the burden of the payment and who have not been reimbursed therefor. The excess sum shall be first applied, insofar as the sum will permit, so as to make refunds to eligible persons other than producers and the remainder, if any, shall be applied so as to make refunds to the eligible producers. The amount to be refunded to each producer shall be either (1) the amount agreed upon in writing by each and every cotton producer on the farm or (2) in the event that such producers cannot agree to the division of such refund or if all of the producers on the farm are not available to apply for such refund, the amount determined by apportioning the excess among all of the producers on the farm on the basis of the amount of the penalty borne by each producer, as determined by the county committee. No refund shall be made to any buyer or transferee of any amount which he collected from the producer, deducted from the price or other consideration for the cotton, or for which he was liable.

(b) *Certification of refunds.* One member of the county committee, acting for the committee, shall notify the State committee of the amount which the county committee determines may be refunded to each producer with respect to the farm, and the State committee shall cause to be certified to the appropriate Disbursing Officer of the Treasury Department for payment such amounts as are approved by it. No refund of money shall be certified under this section unless the money has been collected and transmitted to the State committee.

§ 722.574 *Refund of penalty erroneously, illegally, or wrongfully collected.* Whenever, pursuant to a claim filed with the Secretary within the time prescribed in section 372 of the act after payment to him of the penalty collected from any person, the Secretary finds that the penalty was erroneously, illegally, or wrongfully collected, he shall certify to the Secretary of the Treasury for payment to the claimant, in accordance with regulations prescribed by the Secretary of the Treasury, such amount as the Secretary finds the claimant is entitled to receive as a refund of penalty. Any claim filed pursuant to this section shall be made in accordance with regulations prescribed by the Secretary.

§ 722.575 *Report of violations and court proceedings to collect penalty.* It shall be the duty of the county committee to report in writing to the State committee each case of failure or refusal to pay the penalty or to remit the same as provided in §§ 722.542 to 722.586 to the Secretary when collected. It shall be the duty of the State committee to report each such case in writing to the Director with a view to the institution of proceedings by the United States Attorney for the appropriate district, under the direction of the Attorney General of the United States, to collect the penalties, as provided in section 376 of the act.

RECORDS AND REPORTS

§ 722.576 *Records to be kept and reports to be made by ginners*—(a) *Necessity for records and reports.* Each ginner shall, in conformity with section 373 (a) of the act, keep the records and make the reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to cotton, the provisions of the act.

(b) *Nature and availability of records.* Each ginner shall keep, as part of or in addition to the records maintained by him in the conduct of his business, a record which shall show with respect to each bale of cotton, and each lot of cotton less than a bale, ginned by him the following information: (1) The date of ginning; (2) the name of the operator of the farm on which the cotton was produced; (3) the name of the producer of the cotton; (4) the county and State in which the farm on which the cotton was produced is located; (5) the gin bale number or mark; (6) the serial number of the gin ticket or receipt prepared or issued by the ginner for the bale of cotton and for the lot of cotton less than a bale; (7) the gross weight of each bale of cotton and the net weight of each lot of lint cotton less than a bale; and (8) the kind of the bagging and ties used on each bale. The records so made shall be kept available for examination and inspection by the Secretary, or by any authorized representative of the Secretary, until December 31, 1956, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.542 to 722.586, or of obtaining the information required to be furnished in any report pursuant to §§ 722.542 to 722.586 but not so furnished. Such records shall be kept for such longer period of time as may be requested in writing by the Director.

(c) *Requests for reports.* Each ginner, upon written request of the State committee or county committee, shall make a report showing the information provided for in this section, or any part thereof as specified in the request, with respect to cotton ginned for the person or persons specified in the request or for the period of time specified in the request. This report shall be filed not later than the date designated by the State committee or county committee in the written request for such report.

(d) *Manner of submitting reports.* The treasurer of the county committee designated in the request for such report, or his successor in office, is hereby authorized and empowered to receive each such report, on behalf of the Secretary. Each report shall be mailed or delivered directly to the said treasurer.

(e) *Penalty for failure or refusal to keep records or make reports.* Any person engaged in the business of ginning cotton who fails to keep any record or make any report as required by this section or who makes any false report or false record shall, as provided for in section 373 (a) of the act, be deemed guilty of a misdemeanor and upon conviction thereof shall be subject to a fine of not more than $500 for each such offense.

§ 722.577 *Records to be kept and reports to be made by buyers*—(a) *Necessity for records and reports.* Each person who buys seed cotton or lint cotton from the producer thereof shall, in conformity with section 373 (a) of the act, keep the records and make the reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to cotton, the provisions of the act.

(b) *Nature of and availability of records.* Each buyer shall keep, as a part of or in addition to the records maintained by him in the conduct of his business, a record which shall show with respect to each bale of cotton, and each lot of cotton less than a bale, which is purchased by him from the producer thereof the following information: (1) The name and address of the producer from whom the cotton was purchased; (2) the date on which the cotton was purchased; (3) the original gin bale number or, if there is no gin bale number, the gin bale mark or other information showing the origin or source of the cotton and, in the case of seed cotton purchased, the number of pounds of seed cotton and the known or estimated amount of lint in such seed cotton; (4) the number of pounds of lint cotton in each bale, and each lot of cotton less than a bale, purchased from the producer; (5) the amount of any penalty required to be collected under §§ 722.542 to 722.586 and the amount of penalty col-

lected in connection with the cotton purchased from the producer; and (6) the serial number of the marketing card or marketing certificate or a brief description of the loan document by which the cotton was identified when marketed. It shall be presumed that the cotton was not identified in the manner provided in §§ 722.542 to 722.586 if the serial number of the marketing card or marketing certificate or a brief description of the loan document does not appear on the records required by this paragraph. The record so made shall be kept available for examination and inspection by the Secretary, or by any authorized representative of the Secretary, until December 31, 1956, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.542 to 722.586, or of obtaining the information required to be furnished in any report pursuant to §§ 722.542 to 722.586 but not so furnished. Such records shall be kept for such longer period of time as may be requested in writing by the Director. The county committee shall, upon the request of any buyer, furnish to him without cost blank copies of Form MQ–100—Cotton which may be used by him for the purpose of keeping the record required pursuant to this paragraph.

(c) *Reports in connection with cotton not identified by marketing cards, marketing certificates, or loan documents.* The buyer of cotton which is not identified by a marketing card, marketing certificate, or loan document as provided in §§ 722.542 to 722.586 when marketed shall, with respect to each purchase, make a written report on Form MQ–82—Cotton of the following information: (1) The name and address of the producer from whom the cotton was purchased; (2) the date on which the cotton was purchased; (3) the original gin bale number or, if there is no gin bale number, the gin bale mark or other information showing the origin or source of the cotton; (4) the net weight of each bale of cotton, and of each lot of lint cotton less than a bale; and (5) the amount of the penalty collected in connection with the cotton purchased. The report shall be executed in triplicate, one copy thereof shall be given to the producer, one copy shall be retained by the buyer, and the buyer shall mail or deliver the original to the treasurer of the county committee for the county in which such cotton was produced.

(d) *Reports in connection with cotton identified by marketing certificates.* The buyer of cotton which is identified when marketed by a certificate on Form MQ–91—Cotton, as provided in § 722.563, shall make a report in connection with the transaction by executing the certificate in triplicate and by mailing or delivering the county office copy to the treasurer of the county committee for the county in which the certificate was issued. The original Form MQ–91—Cotton shall be retained by the buyer and the producer's copy shall be delivered to the producer to whom the certificate was issued. The manner in which Form MQ–91—Cotton shall be executed and distributed, in case the marketing is to a buyer not within the United States, is provided for in § 722.580 (c).

(e) *Receipts to producers for penalties.* Where the cotton is not identified by a marketing card, marketing certificate, or loan document at the time of marketing, the producer's copy of the executed Form MQ–82—Cotton shall be the receipt from the buyer to the producer for the penalty collected. The buyer shall report the giving of each such receipt to the producer by forwarding the county office copy of the Form MQ–82—Cotton to the treasurer of the county committee for the county in which such cotton was produced, as provided in paragraph (c) of this section.

(f) *Time for making reports.* Each report required by the foregoing provisions of this section shall be made not later than 7 calendar days next succeeding the end of the calendar week in which the cotton covered thereby was marketed.

(g) *Buyer's special reports.* In the event the county committee, or the State committee, has reason to believe that any buyer failed or refused to collect or to remit the penalty required to be collected by him for any cotton which he purchased, or otherwise in any manner failed or refused to comply with §§ 722.542 to 722.586, the buyer shall, within fifteen days after a written request therefor by such committee is sent to him by registered mail at his last-known address, make a report verified as true and correct on Form MQ–100—Cotton to such committee with respect to cotton purchased or acquired by him from the person or persons specified in the request or purchased or acquired by him during the period of time specified in the request. Such report shall include the following information for each bale of cotton, and each lot of cotton less than a bale, purchased by such buyer: (1) The name and address of the producer from whom the cotton was purchased; (2) the date on which the cotton was purchased; (3) the original gin bale number, or if there is no gin bale number, the gin mark or other information showing the origin of or source of the cotton and, in the case of cotton purchased in the seed, the number of pounds of seed cotton and the known or estimated amount of lint in such seed cotton; (4) the number of pounds of lint cotton in each bale, and in each lot of cotton less than a bale, purchased from the producer; (5) the amount of penalty required to be collected under §§ 722.542 to 722.586 and the amount of any penalty collected in connection with the cotton purchased from the producer; and (6) the serial number of the marketing card or marketing certificate or a brief description of the loan document by which the cotton was identified when marketed.

(h) *Manner of submitting reports.* The treasurer of the county committee for the county in which the cotton covered by the report was produced, or his successor in office, is hereby authorized and empowered to receive, for and on behalf of the Secretary, each report required pursuant to this section. Each report shall be mailed or delivered directly to the said treasurer. Notwithstanding any other provision of this paragraph, each report on Form MQ–82—Cotton in connection with the purchase of cotton marketed without the use of the means of identification provided by §§ 722.542 to 722.586 may be mailed or delivered directly to the treasurer of the county committee from whom the unexecuted copy of the form was obtained.

(i) *Penalty for failure or refusal to keep records or make reports.* Any person engaged in the business of purchasing cotton from producers who fails to keep any records or make any report as required by this section or who makes any false report or false record shall, as provided for in section 373 (a) of the act, be deemed guilty of a misdemeanor and upon conviction thereof shall be subject to a fine of not more than $500 for each such offense.

§ 722.578 *Records to be kept and reports to be made by transferees.* Each transferee who acquires seed cotton or lint cotton from the producer thereof shall keep the same records and make the same reports which are required to be kept and made by buyers pursuant to § 722.577 in every case in which the penalty is collected by the transferee as provided for in § 722.570, and in every other case shall execute the applicable certificates which are necessary to enable the producer to keep the records and make the reports required of him.

§ 722.579 *Records to be kept by warehousemen and others.* Each warehouseman, processor (including compressor), common carrier, and other person, as defined in section 373 (a) of the act, who buys, stores, processes (including compressing), transports as a common carrier, or otherwise deals with cotton from, for, or on behalf of the producer thereof shall make available, for examination and inspection by the Secretary, or by any authorized representative of the Secretary, the records kept in his business concerning such cotton, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.542 to 722.586 or of obtaining the information required to be furnished in any report pursuant to §§ 722.542 to 722.586 but not so furnished. The Secretary, in conformity with section 373 (a) of the act, hereby finds such records to be necessary to enable him to carry out, with respect to cotton, the provisions of the act.

§ 722.580 *Records to be kept and reports to be made by producers*—(a) *Necessity for records and reports.* Each person who produces in 1954, or who produced in any previous year, cotton which is subject to the provisions of §§ 722.542 to 722.586 shall, in conformity with section 373 (b) of the act, keep the records and make the reports prescribed by this section, which records and reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to cotton, the provisions of the act.

(b) *Farms for which marketing cards are issued.* A record and report of the cotton marketed in connection with a farm for which one or more marketing cards were issued shall not be required unless requested by the county commit-

tee, as provided in paragraph (e) of this section.

(c) *Cotton marketed to persons not within the United States.* In each case where cotton for which a marketing certificate has been issued pursuant to § 722.558 is marketed to any person not within the United States, the producer shall enter the name and address of the buyer or transferee and indicate that such person is not within the United States in the space provided for the signature of the buyer or transferee on each copy of the marketing certificate. The producer shall retain his copy of the certificate and the county office's and buyer's copies shall be mailed or delivered by such producer to the treasurer of the county committee for the county in which the certificate was issued not later than 15 calendar days next succeeding the day on which the cotton was marketed.

(d) *Farm operator's report.* The operator of the farm in connection with which a farm marketing excess is determined shall, upon written request of the county committee, file with the treasurer of the county committee for the county in which the farm is located a farm operator's report on Form MQ–98—Cotton showing for the farm the following information or any part thereof as specified in such request: (1) The date harvesting of the 1954 crop of cotton was completed on the farm, the date of the last ginning of cotton produced on the farm in 1954, and the acreage planted to cotton on the farm; (2) the total number of pounds of lint cotton ginned from the 1954 crop of cotton; (3) the name and address of each ginner who ginned such cotton and the number of and net weight of the bales ginned by him; (4) the total amount of 1954 crop cotton marketed in seed; (5) the total amount of 1954 crop lint cotton marketed; (6) the amount of unmarketed cotton of the 1954 crop on hand; (7) the total number of pounds of lint cotton produced in the 1954 crop year; (8) the name and address of each buyer or transferee of 1954 crop lint or seed cotton and the amount thereof marketed to him; and (9) the amount of penalty paid by the producer or collected by the buyer or transferee. In each case where the producer is making an application for a downward adjustment in the farm marketing excess pursuant to § 722.552, such application shall be made on a farm operator's report (Form MQ–98—Cotton) not later than 30 days, or any extension of such period as provided in § 722.552, after harvesting of cotton on the farm has been completed. However, the county committee may waive the requirement that such application be filed on a Form MQ–98—Cotton in cases where it determines that the evidence otherwise submitted by the producer is satisfactory evidence of the actual production of cotton on the farm in 1954. Upon written request of the county committee, the operator of any other farm for which a farm marketing excess is not determined shall make a report on Form MQ–98—Cotton in the manner specified in this paragraph not later than the date designated by the county committee in its request.

(e) *Manner of submitting reports.* The treasurer of the county committee for the county in which the cotton covered by the report was produced, or his successor in office, is hereby authorized and empowered to receive, for and on behalf of the Secretary, each report required pursuant to this section. Each report shall be mailed or delivered directly to such treasurer.

§ 722.581 *Data to be kept confidential.* Except as otherwise provided in this part, all data reported to or acquired by the Secretary pursuant to and in the manner provided in §§ 722.542 to 722.586 shall be kept confidential by all officers and employees of the United States Department of Agriculture, members of county committees and State committees, county agents, and the employees of such committees and county agents' offices, and shall not be disclosed to anyone not having an interest in or responsibility for any cotton, farm, or transaction covered by the particular data, record, information, report, or form, and only such data so reported or acquired as the Secretary deems relevant shall be disclosed by them to anyone not having such an interest or not being employed in the administration of the act and then only in a suit or administrative hearing under the provisions of the act.

§ 722.582 *Enforcement.* It shall be the duty of the county committee to report in writing to the State committee forthwith each case of failure or refusal to make any report or keep any record as required by §§ 722.542 to 722.586 and each case of making any false report or record. It shall be the duty of the State committee to report each such case in writing, in quintuplicate, to the Director with a view to the institution of proceedings by the United States Attorney for the appropriate district, under the direction of the Attorney General of the United States, to enforce the provisions of the act.

SPECIAL PROVISIONS AND EXCEPTIONS

§ 722.583 *Experimental cotton farms.* The penalty shall not apply to the marketing of any cotton of the 1954 crop grown only for experimental purposes on land owned or leased by a publicly-owned agricultural experiment station and produced at public expense by employees of the experiment station, or if the cotton was produced by farmers pursuant to an agreement with a publicly-owned experimental station whereby the experiment station bears the costs and risks incident to the production of the cotton and the proceeds from the crop inure to the benefit of the experiment station: *Provided*, That such agreement shall be approved by the State committee prior to the issuance of a marketing card for the farm.

§ 722.584 *Acreage planted to cotton—*(a) *Underplanting the farm acreage allotment.* For any farm on which cotton is planted in 1954 and the acreage of cotton in 1954 is less than the farm acreage allotment by not more than the larger of 10 percent of the allotment or one acre, an acreage equal to the farm acreage allotment shall be deemed to be the acreage planted to cotton on the farm in 1954, and the additional acreage added to the cotton acreage history for the farm shall be added to the cotton acreage history for the county and State.

(b) *No credit for overplanting the farm acreage allotment.* Any acreage planted to cotton in 1954 in excess of the farm acreage allotment for the 1954 crop of cotton shall not be taken into account in establishing State, county, and farm acreage allotments for the 1955 and subsequent crops of cotton.

§ 722.585 *Availability of records.* The State and county committees shall make available for inspection by owners or operators of farms receiving cotton acreage allotments all records pertaining to cotton acreage allotments and marketing quotas.

§ 722.586 *Designation of representatives of the Secretary to examine records—*(a) *Designation of representatives.* In order to carry out the provisions of §§ 722.576, 722.577, 722.578, and 722.579, relating to the examination of records, the Deputy Administrator is hereby authorized and directed to designate in writing an appropriate number of persons from the officers or employees of the Department of Agriculture to act as the authorized representatives of the Secretary for the purposes of said provisions.

(b) *Proof of designation.* Each person designated pursuant to this section shall be furnished with a copy of his designation, certified by the Deputy Administrator as proof of his authority to act as such authorized representative of the Secretary.

(c) *Authorization to administer oaths.* Each person designated pursuant to this section to act as the authorized representative of the Secretary is hereby authorized and empowered, pursuant to the act of Congress approved January 31, 1925 (sec. 1, 43 Stat. 803; 5 U. S. C. 521), to administer to or take from any person an oath, affirmation, or affidavit whenever such oath, affirmation, or affidavit is for use in any prosecution or proceeding under or in the enforcement of the cotton marketing quota provisions of the act of §§ 722.542 to 722.586.

Prior to the final adoption and issuance of the proposed regulations, consideration will be given to any data, views, or recommendations pertaining to such regulations which are submitted in writing to the Director, Cotton Division, Commodity Stabilization Service, United States Department of Agriculture, Washington 25, D. C., within 15 days following the date of publication of this notice in the FEDERAL REGISTER. The date of the postmark will be considered as the date of any submission.

Done at Washington, D. C., this 19th day of April 1954.

[SEAL] J. A. McCONNELL,
Administrator,
Commodity Stabilization Service.

[F. R. Doc. 54–3046; Filed, Apr. 21, 1954; 8:52 a. m.]

[7 CFR Part 722]

1954 Crop of Extra Long Staple Cotton

Notice of Proposed Formulation of Marketing Quota Regulations

Pursuant to the authority contained in the applicable provisions of the Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1301–1376), the Secretary of Agriculture is preparing to formulate marketing quota regulations governing the identification and measurement of farms; the amount, adjustment, and review of the farm marketing quota and farm marketing excess; the issuance of marketing cards and certificates; the identification of extra long staple cotton which is marketed as being subject to or not subject to the penalty and lien for the penalty; the rate of the penalty and the manner in which penalties shall be paid by producers and buyers; the refunding of penalty overpayments; the records and reports required to be made by extra long staple cotton producers, ginners, buyers and others; and other miscellaneous provisions regarding the production and marketing of extra long staple cotton. The proposed regulations will apply to extra long staple cotton produced in 1954 and also to extra long staple cotton produced in a prior year which is marketed during the 1954–55 marketing year. The proposed regulations will supplement the Marketing Quota Regulations Relating to Apportionment of the National Acreage Allotment for the 1954 Crop of Extra Long Staple Cotton to States, Counties and Farms, issued December 4, 1953 (18 F. R. 7883), as amended. Prior to the final adoption and issuance of the proposed regulations, consideration will be given to any data, views, or recommendations pertaining to such regulations which are submitted in writing to the Director, Cotton Division, Commodity Stabilization Service, United States Department of Agriculture, Washington 25, D. C., within 15 days following the date of publication of this notice in the Federal Register. The date of the postmark will be considered as the date of any submission.

The provisions of the regulations being considered for issuance are as follows:

Definitions and Miscellaneous Provisions

§ 722.1142 *Definitions.* As used in §§ 722.1142 to 722.1186 and in all forms and documents in connection therewith, unless the context or subject matter otherwise requires, the following terms shall have the following meanings and the masculine shall include the feminine and neuter genders and the singular shall include the plural number:

(a) "Act" means the Agricultural Adjustment Act of 1938 and any amendments thereto heretofore or hereafter made.

(b) "Secretary" means the Secretary of Agriculture of the United States, or the officer of the Department acting in his stead pursuant to delegated authority.

(c) "Deputy Administrator" means the Deputy Administrator for Production Adjustment, or Acting Deputy Administrator for Production Adjustment, Commodity Stabilization Service, United States Department of Agriculture.

(d) "Director" means the Director, or Acting Director, of the Cotton Division, Commodity Stabilization Service, United States Department of Agriculture.

(e) "Committees": (1) "Community committee" means the persons elected within a community as the community committee pursuant to the Secretary's regulations governing the selection and functions of the Agricultural Stabilization and Conservation county and community committees (14 F. R. 5916).

(2) "County committee" means the persons elected within a county as the county committee pursuant to the Secretary's regulations governing the selection and functions of the Agricultural Stabilization and Conservation county and community committees (14 F. R. 5916). In Puerto Rico the ASC Caribbean Area Committee shall, insofar as applicable, perform the functions of the county committee.

(3) "State committee" means the persons designated by the Secretary as the Agricultural Stabilization and Conservation committee for the State. In Puerto Rico the ASC Caribbean Area Committee shall, insofar as applicable, perform the functions of the State committee.

(4) "Review committee" means the review committee appointed by the Secretary pursuant to section 363 of the act.

(f) "Person" means an individual, partnership, firm, joint-stock company, corporation, association, trust, estate, or other legal entity, or a State, political subdivision of a State, the Federal Government, or any agency thereof. The term "person" shall include two or more persons having a joint or common interest.

(g) "Owner" or "landlord" means a person who owns farm land and rents such land to another person or who operates such land.

(h) "Cash tenant", "standing-rent tenant", or "fixed-rent tenant" means a person who rents land from another for a fixed amount of cash or a commodity to be paid as rent.

(i) "Share tenant" means a person other than a sharecropper who rents land from another person and pays as rent a share of the crops or the proceeds thereof.

(j) "Sharecropper" means a person who works a farm in whole or in part under the general supervision of the operator and is entitled to receive for his labor a share of the crops produced thereon or the proceeds thereof.

(k) "Operator" means the person who is in charge of the supervision and conduct of the farming operations on the entire farm.

(l) "Farm" means all adjacent or nearby farm or range land under the same ownership which is operated by one person, including also:

(1) Any other adjacent or nearby farm or range land which the county committee, in accordance with instructions issued by the Deputy Administrator, determines is operated by the same person as part of the same unit in producing range livestock or with respect to the rotation of crops and with workstock, farm machinery, and labor substantially separate from that for any other lands; and

(2) Any field-rented tract (whether operated by the same or another person) which, together with any other land included in the farm, constitutes a unit with respect to the rotation of crops.

A farm shall be regarded as located in the county or administrative area, as the case may be, in which the principal dwelling is situated, or if there is no dwelling thereon it shall be regarded as located in the county or administrative area, as the case may be, in which the major portion of the farm is located.

(m) "Farm acreage allotment" means an acreage allotment established for extra long staple cotton for a farm under the Markting Quota Regulations Relating to Apportionment of the National Acreage Allotment for the 1954 Crop of Extra Long Staple Cotton to States, Counties and Farms (18 F. R. 7883), as amended.

(n) "Extra long staple cotton" means American-Egyptian, Sea Island, and Sealand cotton, and all other varieties of the Barbadense species, and any hybrid thereof, and any other cotton in which one or more of these varieties predominates.

(o) "Acreage planted to extra long staple cotton" means the acreage of land seeded to extra long staple cotton on the farm in 1954, excluding any acreage in excess of the allotment which is (1) destroyed by causes beyond the producer's control prior to the expiration of the period established under subparagraph (2) of this paragraph for disposing of excess acreage of extra long staple cotton, or (2) disposed of not later than 20 days, or such longer period as is approved in writing by the county committee, after notice of the measured acreage of extra long staple cotton is mailed to the farm operator.

(p) "State and county code number" means the applicable numbers assigned by the Commodity Stabilization Service of the United States Department of Agriculture to each State and county for the purpose of identification.

(q) "Serial number of the farm" or "farm serial number" means the serial number assigned to the farm by the county committee.

(r) "Normal yield" means the average yield per acre of extra long staple lint cotton for the farm, adjusted for abnormal weather conditions, during the five calendar years 1948, 1950, 1951, 1952 and 1953 except that if the normal yield is established after December 31, 1954, such normal yield shall be determined on the basis of the five calendar years immediately preceding the year in which such normal yield is determined. If for any such year the data are not available or there was no actual yield, then the normal yield for the farm shall be appraised, in accordance with instructions issued by the Deputy Administrator, taking into consideration abnormal weather conditions, the normal

yield for the county, and the yield in years for which data are available.

(s) "Normal production" of any number of acres means the normal yield per acre of extra long staple lint cotton for the farm multiplied by such number of acres.

(t) "Actual production" of extra long staple cotton on the farm means the total number of pounds of extra long staple lint cotton determined to have been produced on the farm in 1954.

(u) "Actual yield" per acre means the number of pounds of extra long staple lint cotton determined by dividing the actual production of extra long staple cotton on the farm by the acreage planted to such cotton on the farm in 1954.

(v) "Producer" means a person who, as owner or landlord (other than the landlord of a standing-rent tenant, fixed-rent tenant, or cash tenant), cash tenant, standing-rent tenant, fixed-rent tenant, share tenant, or sharecropper, is entitled to all or a share of the 1954 crop of extra long staple cotton or of the proceeds thereof.

(w) "Farm marketing quota" means a marketing quota established under the act for the farm for the 1954 crop of extra long staple cotton.

(x) "Farm marketing excess" means the amount of extra long staple cotton determined for any farm under § 722.1150 or §722.1152, whichever is applicable.

(y) "Farm with no farm marketing excess" means a farm on which the acreage planted to extra long staple cotton in 1954 is not in excess of the farm acreage allotment established therefor.

(z) "Farm with a farm marketing excess" means a farm on which the acreage planted to extra long staple cotton in 1954 is in excess of the farm acreage allotment established therefor.

(aa) "Penalty" means the penalty provided in section 347 (c) of the act and § 722.1166.

(bb) "Seed cotton" means the harvested fruit of the extra long staple cotton plant before ginning.

(cc) "Extra long staple lint cotton" means the fiber taken from extra long staple seed cotton by ginning.

(dd) "Carry over extra long staple cotton" means the unmarketed extra long staple cotton from any previous crop which the producer thereof has on hand.

(ee) "Ginning" means the process by which extra long staple lint cotton is removed from the cotton seed.

(ff) "Ginner" means a person engaged in the business of ginning extra long staple cotton.

(gg) "Gin bale number or mark" means the number entered on the bale tag or any other mark made or used by the ginner to identify a bale of extra long staple cotton.

(hh) "Warehouse receipt number" means the number on the warehouse receipt and the warehouse bale tag made or used by the warehouseman to identify a bale of extra long staple cotton.

(ii) "Buyer" means a person who acquires extra long staple cotton from a producer by sale.

(jj) "Transferee" means a person who receives extra long staple cotton from a producer by barter, or exchange, or gift inter vivos.

(kk) "Market" means to dispose of extra long staple cotton in raw or processed form by voluntary or involuntary sale, barter or exchange, or by gift inter vivos.

(ll) The term "sale" means any transfer of title to extra long staple cotton by a producer to another by any means other than barter or exchange or gift inter vivos.

(2) The terms "barter" and "exchange" mean transfer of title to extra long staple cotton by a producer to another in return for extra long staple cotton or any other commodity, service, or property in cases where the value of the extra long staple cotton or such other commodity, service, or property is not considered in terms of money, or the transfer of title to extra long staple cotton by a producer to another in payment of a fixed rental or other charge for land.

(3) The term "gift inter vivos" means any transfer of title, accompanied by delivery, to extra long staple cotton by a producer to another which takes effect immediately and irrevocably and is made without any consideration or compensation therefor.

(4) "Marketed", "marketing", and "for market" shall have corresponding meanings to the term "market" in the connection in which they are used.

(11) "Marketing year" means the period beginning August 1, 1954, and ending July 31, 1955, both dates inclusive.

(mm) "Treasurer of county committee" means the county office manager or the person designated by him to act as treasurer of the Agricultural Stabilization and Conservation county committee. In Puerto Rico the ASC Caribbean Area Committee shall designate one or more of its employees to perform the duties and functions of treasurer of county committee.

§ 722.1143 *Issuance of forms and instructions.* The Director shall cause to be prepared such forms and instructions as are necessary for carrying out §§ 722.1142 to 722.1186. The forms shall be issued by the Director with the approval of the Deputy Administrator, and the instructions shall be issued by the Deputy Administrator. Copies of such forms and instructions shall be furnished free to persons needing them upon request made to the office of the State or county committee or the Director.

§ 722.1144 *Extent of calculations and rule of fractions.* In making any computation in connection with §§ 722.1142 to 722.1186, the amount of extra long staple lint cotton shall be rounded to the nearest whole pound and the amount of penalties or refunds shall be rounded to the nearest whole cent. Fractions of exactly five-tenths of a pound or cent shall be dropped. The acreages of all fields, or subdivisions thereof, of extra long staple cotton on the farm shall be expressed in hundredths of an acre, and thousandths of an acre shall be dropped. The total acreage of extra long staple cotton on the farm shall be expressed in tenths of an acre, and hundredths of an acre shall be dropped.

IDENTIFICATION AND MEASUREMENT OF FARMS

§ 722.1145 *Identification of farms.* Each farm as operated for the 1954 crop of extra long staple cotton shall be identified by a farm serial number, assigned by the county committee, and all records pertaining to marketing quotas for the 1954 crop of extra long staple cotton shall be identified by the farm serial number.

§ 722.1146 *Measurements of farms.* The county committee shall provide for measuring the acreage planted to extra long staple cotton on each farm in the county in accordance with the procedure approved by the Deputy Administrator. The county committee shall provide for the measurement prior to planting of an acreage on the farm equal to the farm acreage allotment, if the farm operator requests such measurement and pays the cost thereof, and any farm on which the acreage planted to extra long staple cotton does not exceed such measured acreage shall be deemed to be in compliance with the farm acreage allotment. The county committee shall also provide for the remeasurement upon request by the farm operator of the acreage planted to extra long staple cotton on the farm but the operator shall be required to reimburse the county committee for the expense of such remeasurement if the planted acreage is found upon such remeasurement to be in excess of the farm acreage allotment. If the acreage planted to extra long staple cotton on the farm is in excess of the farm acreage allotment, the county committee shall notify the farm operator in writing of such excess and shall further notify such operator that unless the planted acreage of extra long staple cotton on the farm is adjusted to the farm acreage allotment within 20 days from the date of the mailing of such notice, or such additional time as provided for herein, the farm marketing excess for the farm will be determined on the basis of the excess acreage and the farm normal yield. Notice so given shall constitute notice to each producer having an interest in the 1954 crop of extra long staple cotton produced on the farm. In cases where the operator cannot dispose of the excess acreage of extra long staple cotton within the 20-day period because of adverse weather conditions, or other reasons beyond his control, and a request in writing for additional time is filed, the county committee may allow an additional period not to exceed 10 days for disposing of the excess acreage. No acreage of extra long staple cotton shall be disposed of for purposes of adjusting the planted acreage of such cotton to the farm acreage allotment after any cotton has been harvested from such planted acreage.

§ 722.1147 *Reports and records of farm measurements.* The county committee shall keep a record of the measurements made on all farms. It shall file with the State committee a written report on Form MQ-94—Cotton, setting forth for

each farm with a farm marketing excess (a) the farm serial number, (b) the name of the operator, (c) the total acreage in cultivation, (d) the farm acreage allotment, and (e) the acreage planted to extra long staple cotton in 1954.

FARM MARKETING QUOTA AND FARM MARKETING EXCESS

§ 722.1148 *Marketing quotas in effect.* Marketing quotas for the 1954 crop of extra long staple cotton shall be applicable to any such cotton of that crop notwithstanding that it may be available for marketing prior to the beginning of the marketing year or marketed subsequent to the end of the marketing year.

§ 722.1149 *Farm marketing quota.* The farm marketing quota for any farm for the 1954 crop of extra long staple cotton shall be that number of pounds of extra long staple lint cotton produced on the farm less the amount of the farm marketing excess for the farm. The farm marketing quota for any farm shall be increased by the amount of extra long staple lint cotton which the producers on the farm have on hand from any previous crops.

§ 722.1150 *Farm marketing excess*—(a) *Where measurements are made.* The farm marketing excess for the 1954 crop of extra long staple cotton for any farm shall be the normal production of the acreage planted to such cotton on the farm in excess of the farm acreage allotment. Where, upon application of the producer in accordance with § 722.1152, it is established by the producer that the normal production of the excess acreage is larger than the amount by which the actual production of extra long staple cotton in 1954 on the farm exceeds the normal production of the farm acreage allotment, the farm marketing excess shall be adjusted downward to the smaller amount.

(b) *Where measurements cannot be made.* Whenever the producer prevents the determination of the acreage planted to extra long staple cotton on his farm, the farm marketing excess shall be the total number of pounds of extra long staple lint cotton produced in 1954 on the farm. In the event the producer establishes, in accordance with § 722.1152, the total number of pounds of extra long staple lint cotton produced in 1954 on the farm, the farm marketing excess shall be the number of pounds of extra long staple lint cotton produced on the farm in excess of the normal production of the farm acreage allotment therefor.

(c) *Where no farm acreage allotment is established.* The farm marketing excess for any farm for which a farm acreage allotment is not established shall be the normal production of the acreage planted to extra long staple cotton on the farm. Where, upon application of the producer in accordance with § 722.1152, it is established by the producer that the normal production of the acreage planted to extra long staple cotton on the farm is larger than the actual production of such cotton on the farm in 1954, the farm marketing excess shall be adjusted downward to the smaller amount. Whenever the determination of the acreage planted to extra long staple cotton on a farm for which no farm acreage allotment is established is prevented by the producer, the farm marketing excess shall be the total number of pounds of extra long staple lint cotton produced in 1954 on the farm.

§ 722.1151 *Notice of farm marketing quota and farm marketing excess.* Written notice of the farm marketing quota established for a farm shall be mailed to the operator of such farm. Written notice of the farm marketing excess for a farm shall be mailed to the operator of such farm. Notice so given shall constitute notice to each producer having an interest in the 1954 crop of extra long staple cotton produced or to be produced on the farm. Each notice shall contain a brief statement of the procedure whereby application for a review of the farm marketing quota or farm marketing excess, or any determination made in connection therewith, may be had in accordance with section 363 of the act. A record of the date of mailing the notice to the operator of the farm shall be kept among the permanent records of the county committee and upon request a copy of the notice shall be furnished without charge to any producer on the farm for which the notice is given. Such notice shall contain the information necessary in each case to inform the producer as to the basis for the determinations set forth in the notice and the effect thereof.

§ 722.1152 *Farm marketing excess adjustment*—(a) *Application for adjustment in the amount of the farm marketing excess.* Any producer having an interest in the extra long staple cotton produced in 1954 on any farm for which there is a farm marketing excess may apply in writing to the county committee, as provided herein, for a downward adjustment in the amount of the farm marketing excess on the basis of the amount of extra long staple cotton produced in 1954 on the farm. Any such application shall be filed with the county committee within 30 days after the harvesting of extra long staple cotton is completed on the farm, or any extension of such time approved by the State committee to not later than March 15, 1955, except for the Southern area of Puerto Rico where it shall not be later than June 15, 1955, on the basis of a recommendation by the county committee and a showing that the producer's failure to apply for such adjustment within the 30-day period was due to circumstances beyond his control. If the harvesting of extra long staple cotton on the farm has not been completed by March 15, 1955 (June 15, 1955, for the Southern area of Puerto Rico), but an application has been timely filed under the foregoing provisions of this paragraph, the producer may request the county committee to provide for an estimate to be made of the amount of unharvested extra long staple cotton on the farm in order that a final determination of the actual production on the farm in 1954 may be made. The county committee shall keep a record of each application so made and the date thereof. The county committee shall establish a time and place at which each application will be considered and shall notify the applicant of the time and place of the hearing. Insofar as practicable, applications shall be considered in the order in which made. Unless application for an adjustment in the farm marketing excess is made within such 30-day period or extension thereof, the farm marketing excess as determined on the basis of the normal production of the excess acreage of extra long staple cotton for the farm shall be final as to the producers on the farm.

(b) *Adjustment in the amount of the farm marketing excess.* The county committee shall consider each application on the basis of facts known by or made available to it and on the basis of such evidence as may be presented to it by the applicant. The actual production of extra long staple cotton of any farm shall be determined in view of the relevant facts, including the past production on the farm, the actual yields per acre in 1954 for other farms in the community which are similar with regard to farming practices followed, type of soil, and productivity; the harvesting, ginning, and sales of the extra long staple cotton produced on the farm; farming practices followed on the farm; and weather conditions and other factors affecting the production of extra long staple cotton on the farm and in the locality in which the farm is situated. In the consideration of any application for an adjustment in the farm marketing excess, the producer shall have the burden of proof. The evidence presented by the applicant may be in the form of written statements or other documentary evidence or of oral testimony in a hearing before the county committee during its consideration of the application. In order to expedite the consideration of applications, the county committee shall receive, in advance of the time fixed for consideration of the application, any written statement or documentary evidence offered by or on behalf of the applicant, and the application may be disposed of upon the basis of such statement or evidence, together with other information bearing on or establishing the facts, which is available to the county committee, unless the applicant appears before the county committee at the time fixed for considering the application and requests a hearing for the purpose of offering documentary evidence or oral testimony in support of the application. Every such hearing shall be open to the public. The county committee shall make its determination in connection with each application not later than five calendar days next succeeding the day on which the consideration of the application was concluded. The determination of the county committee shall be in writing and shall contain (1) a concise statement of the grounds upon which the applicant sought an adjustment in the amount of the farm marketing excess, (2) a concise statement of the findings of the county committee upon the questions of fact, and (3) the determination of the county committee as to the farm marketing quota and the farm marketing excess. A notice showing the result of the determination made as aforesaid, shall be mailed or delivered to the operator of the farm and

also to the applicant if he is not such operator.

§ 722.1153 *Publication of the farm acreage allotment, normal yield, marketing quota, and marketing excess.* A record of the acreage allotment, normal yield, marketing quota, and marketing excess established for farms in the county shall be made available for public inspection in the office of the county committee for a period of not less than 30 calendar days. The records containing the information shall be kept where the public may freely examine them. At the end of the 30-day period the records shall be filed in the office of the county committee and remain available for further inspection upon request. There may be used for this purpose listing sheets, copies of notices, or other compilations upon which the pertinent data are shown.

§ 722.1154 *Marketing quotas not transferable.* A farm marketing quota established for a farm may not be assigned or otherwise transferred in whole or in part to any other farm.

§ 722.1155 *Successors - in - interest.* Any person who succeeds to the interest of a producer in a farm or in a crop of extra long staple cotton produced on a farm, for which a farm marketing quota and a farm marketing excess were established, shall, to the same extent as his predecessor, be entitled to all the rights and privileges incident to such marketing quota and marketing excess and be subject to the penalty on the farm marketing excess and to the lien on the entire crop of extra long staple cotton and to the restrictions on the marketing of such cotton.

§ 722.1156 *Review of quotas*—(a) *Right to review by review committee.* Any producer on a farm with a farm marketing excess who is dissatisfied with the determination of (1) the acreage planted to extra long staple cotton, (2) the normal yield, or (3) the actual yield may within 15 days after written notice of the farm marketing excess is mailed to him, apply in writing for a review by a review committee of any such determination. Unless application for review is made within such period, such determinations shall be final as to the producers on such farm. Application for review and the review committee proceedings shall be in accordance with the review regulations (MQ–51; §§ 711.1 to 711.34 of this chapter), as issued and revised by the Secretary.

(b) *Court review.* If the producer is dissatisfied with the determination of the review committee, he may, within 15 days after notice of such determination is mailed to him by registered mail, institute proceedings against the review committee to have the determination of the review committee reviewed by a court in accordance with section 365 of the act.

MARKETING CARDS, MARKETING CERTIFICATES AND LOAN DOCUMENTS

§ 722.1157 *Eligibility for and issuance of marketing cards*—(a) *Producers eligible to receive marketing cards.* Except as otherwise provided in this section, the operator and any other producer on a farm shall be eligible to receive a marketing card (Form MQ–76—Cotton (1954) ELS), if (1) no farm marketing excess is determined for the farm, or (2) an amount equal to the penalty on the farm marketing excess has been received by the treasurer of the county committee for the county in which the farm is located.

(b) *Multiple farm producers eligible to receive marketing cards.* Any person who is a producer of extra long staple cotton on more than one farm in a county shall not be eligible to receive a marketing card for any such farm in the county until, in accordance with the provisions of paragraph (a) of this section, he is eligible to receive a marketing card for each of such farms. Any other producers on a farm who are eligible to receive marketing cards pursuant to paragraph (a) of this section shall receive marketing cards with respect to the farm notwithstanding the ineligiblity of the multiple farm producer, unless the county committee determines that, in order to enforce the provisions of the act, such producers, including the multiple farm producer, should not receive marketing cards for such farm with no farm marketing excess. Where a producer is engaged in the production of extra long staple cotton in more than one county (in the same State or two or more States), the procedure outlined in this section for issuing marketing cards for multiple farms in a county may be followed with respect to all such farms, wherever situated, if the county committees of the respective counties so decide, or if the State committee has reason to believe that the procedure would be necessary to enforce the provisions of the act. The State committee may require any multiple farm producer to file with it a list of all farms on which he is engaged in the production of extra long staple cotton, together with any other information deemed necessary to enforce the provisions of the act.

(c) *Producers to whom marketing cards will not be issued to enforce the provisions of the act.* Notwithstanding any other provisions of this section, the county committee shall deny any producer a marketing card if it determines that such action is necessary to enforce the provisions of the act.

(d) *Preparation and issuance of marketing cards.* A marketing card for extra long staple cotton shall be issued to the operator of the farm if he is eligible under the foregoing provisions of this section to receive it and, if the county committee determines that it will serve a useful purpose, marketing cards shall also be issued to the other eligible producers on the farm. Each marketing card when completed shall be serially numbered and shall show: (1) The names of the county and State and the serial number of the farm, (2) the name and address of the farm operator, (3) the name and address of the producer to whom issued, (4) the signature of the issuing officer designated by the county committee and the signature of the producer, (5) the farm acreage allotment and the acreage planted to extra long staple cotton, and (6) such additional information and data as may be prescribed by the Deputy Administrator. Where the producer designates an agent to use his marketing card, the card shall also show: (1) the name and address of the agent authorized to use the marketing card and (2) the signatures of the producer and the agent.

§ 722.1158 *Marketing certificates and loan documents*—(a) *Use of marketing certificates.* The county committee shall issue to a producer upon his request a marketing certificate (Form MQ–91—Cotton) to permit the marketing of extra long staple cotton (1) by any such producer (i) who is eligible to receive a marketing card and who desires to market extra long staple cotton by telegraph, telephone, mail, or by any other means or method other than directly to and in the presence of the buyer or transferee; (ii) who is not engaged in the production of extra long staple cotton in the 1954 crop year and who desires to market extra long staple cotton which he has on hand from any prior crop, (iii) who has an interest as a producer of extra long staple cotton and who desires to market extra long staple cotton which he has on hand from any prior crop, (iv) who desires to market extra long staple cotton produced by him on a farm with no farm marketing excess but he is not eligible to receive a marketing card under § 722.1157 (b) because he or another producer on such farm is also a producer of extra long staple cotton on a farm with a farm marketing excess, and (v) who desires to market his share of the extra long staple cotton produced on a farm with no marketing excess or on a farm on which the penalty on the farm marketing excess has been paid but he was denied a marketing card by the county committee because it deemed such action necessary to enforce the provisions of the act, and (2) by any other producer who has extra long staple cotton not subject to the penalty or on which the penalty has been paid but such producer is not eligible to receive a marketing card or does not have the required loan documents. The county committee, with the approval of the State committee, may issue marketing certificates for a farm in a total amount for the 1954 crop not exceeding the product of the farm acreage allotment multiplied by the smaller of the normal yield per acre or the estimated actual yield per acre, in instances where the acreage planted to extra long staple cotton on the farm in 1954 has not been determined through no fault of the operator and the operator, in applying for such certificates, certifies that he has extra long staple cotton from the 1954 crop available for marketing and that to the best of his knowledge and belief the acreage planted to such cotton on the farm does not exceed the farm acreage allotment.

(b) *Preparation and delivery of marketing certificates.* Each marketing certificate shall show (1) the name and address of the producer to whom issued, (2) the names of the county and State, and the serial number of the farm, if any, (3) the serial number of the 1954 marketing card issued for the farm, where applicable, (4) the description and amount of the cotton to be marketed, (5),

the signature of the producer and the date thereof, and (6) the signature of the issuing officer for the county committee or the signature of a member of the county committee and the date thereof. The original or buyer's copy of the marketing certificate together with the "producer's" and the "county office's" copies shall be delivered to the producer to whom the marketing certificate is issued, and such producer, upon marketing the extra long staple cotton described in the marketing certificate, shall deliver the original and the copies to the buyer.

(c) *Use of loan documents in lieu of marketing certificates to identify CCC loan extra long staple cotton.* Any producer who desires to sell his equity in carryover extra long staple cotton which is pledged as collateral security for a Commodity Credit Corporation loan or to sell carryover extra long staple cotton on which such a loan has been repaid may identify such cotton as being penalty free by presenting to the buyer thereof such CCC loan documents covering such cotton as may be prescribed by the Deputy Administrator, and the buyer shall accept such documents as evidence to him that the extra long staple cotton described therein is not subject to the penalty or the lien for the penalty.

§ 722.1159 *Lost, destroyed, or stolen marketing cards or certificates*—(a) *Report of loss, destruction, or theft.* In case a marketing card or marketing certificate delivered to a producer is lost, destroyed, or stolen, any person having knowledge thereof shall, insofar as he is able, immediately notify the county committee of the following: (1) The name of the producer to whom the marketing card or certificate was issued; (2) the serial number of the marketing card or certificate; and (3) whether in his knowledge or judgment it was lost, destroyed, or stolen and by whom.

(b) *Investigation and findings of county committee.* The county committee shall make or cause to be made a thorough investigation of the circumstances of such loss, destruction, or theft. If the county committee finds, on the basis of the investigation, that such marketing card or marketing certificate was in fact lost, destroyed, or stolen, it shall cancel such marketing card or certificate by giving notice to the producer to whom the card or certificate was issued that it is void and of no effect. The notice to that effect shall be in writing and mailed to the producer at his last known address. If the county committee also finds that there has been no collusion or connivance in connection therewith on the part of the producer to or for whom the marketing card or certificate was issued, it shall issue to or for him a marketing card or certificate to replace the lost, destroyed, or stolen marketing card or certificate. Each marketing card or certificate issued under this section shall bear across its face in bold letters the word "Duplicate." In case a marketing card or certificate is canceled, as provided in this section, the county committee shall immediately notify the ginners and buyers in the county, or in the immediate vicinity, that the marketing card or certificate has been canceled and that a duplicate has been issued. A report of the findings and action of the county committee shall be kept among its records. Any ginner or buyer or any other person coming into possession or control of a marketing card or certificate which has been canceled shall immediately return it to the county committee which issued it.

§ 722.1160 *Cancellation of marketing card and marketing certificates issued in error.* In the event any marketing card or marketing certificate was erroneously issued, the producer to whom it was issued shall be requested to return it to the county committee and upon its being returned it shall be canceled by the county committee by endorsing thereon in bold letters the word "Canceled." Without awaiting its return the county committee shall notify the producer by registered mail at his last known address that it is void and of no effect. A copy of the notice, containing a notation thereon of the date of mailing, shall be kept among the records of the county committee. The county committee shall immediately notify the ginners and buyers in the county, or in the immediate vicinity, that the marketing card or certificate has been canceled.

IDENTIFICATION OF EXTRA LONG STAPLE COTTON

§ 722.1161 *Time and manner of identification.* Each producer of extra long staple cotton shall, at the time he markets any such cotton, identify such cotton to the buyer or transferee, in the manner hereinafter provided, as being subject to or not subject to the penalty provided in § 722.1166 and the lien for the penalty as provided in § 722.1167.

§ 722.1162 *Identification by marketing card.* A marketing card (Form MQ–76—Cotton (1954) ELS) shall, when presented to the buyer by the producer to whom issued, be evidence to the buyer that the extra long staple cotton produced on the farm for which the marketing card was issued may be purchased by him without collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.1163 *Identification by marketing certificate.* A marketing certificate (Form MQ–91—Cotton) shall, when presented to the buyer by the producer to whom it was issued, be evidence to the buyer that the extra long staple cotton described on the marketing certificate may be purchased by him without the collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.1164 *Identification by loan document.* A loan document (as prescribed by the Deputy Administrator) shall, when presented to the buyer by the producer in whose favor it is drawn, be evidence to the buyer that the extra long staple cotton described in such loan document may be purchased by him without the collection, deduction, or payment of any penalty, and that such cotton is not subject to the lien for the penalty.

§ 722.1165 *Extra long staple cotton not identified by a marketing card, marketing certificate or loan document.* All extra long staple cotton marketed by a producer which is not identified by a marketing card, marketing certificate, or loan document as provided in §§ 722.1162, 722.1163, or 722.1164 shall be taken by the buyer or transferee thereof as extra long staple cotton subject to the penalty and the lien for the penalty. The buyer or transferee of such unidentified extra long staple cotton shall collect the penalty from the producer or deduct it from the purchase price of the cotton. The buyer or transferee shall report the purchase of all such unidentified extra long staple cotton on Form MQ–82—Cotton and remit the penalty collected or deducted to the treasurer of the county committee.

PENALTY

§ 722.1166 *Rate of penalty.* The rate of the penalty for extra long staple cotton is the higher of 50 percent of the parity price for extra long staple cotton as of June 15, 1954, or 50 percent of the 1954 support price for extra long staple cotton, as provided in section 347 (c) of the act. (This section will be amended to include the exact rate of the penalty when such price data are available.)

§ 722.1167 *Lien for the penalty.* Until the penalty on the farm marketing excess is paid, all extra long staple cotton produced on the farm and marketed by the producer shall be subject to the penalty at the rate provided in § 722.1166 and a lien on the entire crop of extra long staple cotton produced on the farm in 1954 shall be in effect in favor of the United States.

§ 722.1168 *Interest on unremitted penalty.* The person liable for the payment or collection of the penalty shall be liable also for interest on the amount of penalty which is not remitted in accordance with § 722.1169 (b) or § 722.1170 (c), as the case may be, at the rate of 6 percent per annum from the final date for remitting the penalty until the date such penalty is remitted. The computation of interest on any penalty due shall be made beginning with the day following the final date for remitting the penalty.

§ 722.1169 *Payment of penalty by producers*—(a) *Producers liable for payment of penalty.* Each producer having an interest in the 1954 crop of extra long staple cotton on any farm for which a farm marketing excess has been determined shall be liable to pay the entire amount of the penalty on the farm marketing excess. The amount of the penalty which any producer shall pay shall nevertheless be reduced by the amount of the penalty which is paid by another producer or a buyer of extra long staple cotton produced on the farm.

(b) *Time when penalty becomes due and payable.* The farm marketing excess for any farm shall be regarded as available for marketing and the penalty thereon shall become due at the time any extra long staple cotton produced on the farm is harvested. The amount of the penalty on the farm marketing excess

for any farm shall be remitted on the date it becomes due or not later than March 15, 1955, except that such final date shall be June 15, 1955, for the Southern area of Puerto Rico: *Provided, however,* That the penalty on any bale or lot of extra long staple cotton marketed (1) from a farm for which the penalty on the farm marketing excess has not been paid or (2) without being properly identified by a marketing card, marketing certificate, or loan document (as prescribed by the Deputy Administrator) shall be due on the date of such marketing and shall be remitted not later than seven calendar days next succeeding the end of the calendar week in which such cotton was marketed.

(c) *Apportionment of the penalty.* The county committee may, upon application of any producer made prior to the expiration of the time allowed for remitting the penalty on the farm marketing excess, determine his proportionate share of the penalty on the farm marketing excess if, pursuant to the application, the producer establishes that he is unable to arrange with other producers on the farm for the payment of the penalty on the entire farm marketing excess; that his share of the extra long staple cotton crop produced on the farm is marketed by him separately; and that he exercises no control over the marketing of the shares of the other producers in the extra long staple cotton crop. The producer's proportionate share of the penalty on the farm marketing excess shall be that proportion of the entire penalty on the farm marketing excess which his share in the extra long staple cotton produced in 1954 on the farm bears to the total amount of such cotton produced in 1954 on the farm. When the producer pays his proportionate share of the penalty, he shall not be liable for the remainder of the penalty on the farm marketing excess and he shall be entitled to receive a marketing certificate, issued in accordance with § 722.1158, to be used by him only in the marketing of his proportionate share of the extra long staple cotton crop produced in 1954 on the farm.

§ 722.1170 *Payment of penalty by buyers*—(a) *Buyers liable for payment of penalty.* Each person within the United States, including Puerto Rico, who buys from the producer any extra long staple cotton subject to the lien for the penalty shall be liable for and shall pay the penalty thereon. Extra long staple cotton shall be taken as subject to the lien for the penalty unless the producer presents to the buyer a marketing card (Form MQ–76—Cotton (1954) ELS), a marketing certificate (Form MQ–91—Cotton), or a loan document, as prescribed in §§ 722.1162, 722.1163, and 722.1164.

(b) *Payment of penalty on account of lien for the penalty.* Each person within the United States, including Puerto Rico, who buys or acquires extra long staple cotton from the producer which is subject to the lien for the penalty shall pay the amount of the penalty on each pound thereof in satisfaction of the lien thereon.

(c) *Time when penalty becomes due.* The penalty to be paid by any buyer pursuant to paragraphs (a) and (b) of this section shall become due at the time the extra long staple cotton is marketed and shall be remitted not later than 7 calendar days next succeeding the end of the calendar week in which such cotton was marketed. Extra long staple cotton shall be deemed to be sold when either title to or actual or constructive possession of such cotton is delivered by or on behalf of the producer or any part of the purchase price is paid. Extra long staple cotton shall be deemed to have been marketed by barter or exchange when it is delivered to the transferee of such cotton by actual or constructive delivery or the transferor has received any part of the property, goods, or services for which the extra long staple cotton is being bartered or exchanged. Extra long staple cotton shall be deemed to have been marketed by gift inter vivos when there is an actual or constructive delivery of such cotton to the transferee during the lifetime of the producer. Extra long staple cotton shall be deemed to have been marketed in processed form when the producer, or some person on his behalf, converts such cotton into an article of trade and thereby causes such cotton to lose its identity as seed cotton or extra long staple lint cotton. An article of trade within the meaning of this provision is any article made in whole or in part from extra long staple cotton for the purpose of marketing such article.

(d) *Manner of deducting penalty and issuance of receipts.* The buyer may deduct from the price paid for any extra long staple cotton an amount equivalent to the amount of the penalty to be paid by the buyer pursuant to paragraphs (a) and (b) of this section. Any buyer who deducts an amount equivalent to the penalty shall issue to the person from whom such cotton was purchased a receipt for the amount so deducted which shall be on Form MQ–82—Cotton.

§ 722.1171 *Remittance of penalty to the treasurer of the county committee.* The treasurer of the county committee, for and on behalf of the Secretary, shall receive the penalty and issue a receipt therefor to the person remitting the penalty. The penalty shall be remitted only in legal tender, or by check, draft, or money order drawn payable to the order of the Treasurer of the United States. All checks, drafts, or money orders tendered in payment of the penalty shall be received by the treasurer of the county committee subject to collection and payment at par, and the receipt (Form MQ–95—Cotton) issued in connection therewith shall bear a notation to that effect and a description of the check, draft, or money order.

§ 722.1172 *Deposit of funds.* All funds received by the treasurer of the county committee in connection with penalties for extra long staple cotton shall be scheduled and transmitted by him on the day received, or not later than the morning of the next succeeding business day, to the State committee, which, in accordance with applicable instructions, shall cause such funds to be deposited to the credit of the Treasurer of the United States. In the event the funds so received are in the form of cash, the treasurer of the county committee shall deposit such cash in the county committee bank account and a separate check, payable to the Treasurer of the United States in the amount of such cash deposited, shall be drawn on such bank account by the treasurer of the county committee for transmittal to the State committee. The treasurer of the county committee shall make and keep a record of each amount received by him, showing the name of the person who remitted the funds, the identification of the farm or farms in connection with which the funds were received, and the names of the persons who marketed the extra long staple cotton in connection with which the funds were remitted.

§ 722.1173 *Refunds of money in excess of the penalty*—(a) *Determination of refunds.* The county committee and the treasurer of the county committee, upon their own motion or upon the request of any interested person, shall review the amount of money received in connection with the penalty for any farm to determine for each producer the amount thereof, if any, which is in excess of the penalty incurred. The excess amount shall be refunded. Any refund shall be made only to persons who bore the burden of the payment and who have not been reimbursed therefor. The excess sum shall be first applied, insofar as the sum will permit, so as to make refunds to eligible persons other than producers, and the remainder, if any, shall be applied so as to make refunds to the eligible producers. The amount to be refunded to each producer shall be either (1) the amount agreed upon in writing by each and every producer of extra long staple cotton on the farm or (2) in the event that such producers cannot agree to the division of such refund or if all of the producers on the farm are not available to apply for such refund, the amount determined by apportioning the excess among all of the producers on the farm on the basis of the amount of the penalty borne by each producer, as determined by the county committee. No refund shall be made to any buyer or transferee of any amount which he collected from the producer, deducted from the price or other consideration for the extra long staple cotton, or for which he was liable.

(b) *Certification of refunds.* One member of the county committee, acting for the committee, shall notify the State committee of the amount which the county committee determines may be refunded to each producer with respect to the farm, and the State committee shall cause to be certified to the appropriate Disbursing Officer of the Treasury Department for payment such amounts as are approved by it. No refund of money shall be certified under this section unless the money has been collected and transmitted to the State committee.

§ 722.1174 *Refund of penalty erroneously, illegally, or wrongfully collected.* Whenever, pursuant to a claim filed with the Secretary within the time prescribed in section 372 of the act after payment to him of the penalty collected from any person, the Secretary finds that the

penalty was erroneously, illegally, or wrongfully collected, he shall certify to the Secretary of the Treasury for payment to the claimant, in accordance with regulations prescribed by the Secretary of the Treasury, such amount as the Secretary finds the claimant is entitled to receive as a refund of penalty. Any claim filed pursuant to this section shall be made in accordance with regulations prescribed by the Secretary.

§ 722.1175 *Report of violations and court proceedings to collect penalty.* It shall be the duty of the county committee to report in writing to the State committee each case of failure or refusal to pay the penalty or to remit the same as provided in §§ 722.1142 to 722.1186 to the Secretary when collected. It shall be the duty of the State committee to report each such case in writing to the Director with a view to the institution of proceedings by the United States Attorney for the appropriate district, under the direction of the Attorney General of the United States, to collect the penalties, as provided in section 376 of the act.

RECORDS AND REPORTS

§ 722.1176 *Records to be kept and reports to be made by ginners*—(a) *Necessity for records and report.* Each ginner shall, in conformity with section 373 (a) of the act, keep the records and make the reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to extra long staple cotton, the provisions of the act.

(b) *Nature and availability of records.* Each ginner shall keep, as part of or in addition to the records maintained by him in the conduct of his business, a record which shall show with respect to each bale of extra long staple cotton, and each lot of such cotton less than a bale, ginned by him the following information: (1) The date of ginning; (2) the name of the operator of the farm on which the extra long staple cotton was produced; (3) the name of the producer of the extra long staple cotton; (4) the county and State in which the farm on which the extra long staple cotton was produced is located; (5) the gin bale number or mark; (6) the serial number of the gin ticket or receipt prepared or issued by the ginner for the bale of extra long staple cotton and for each lot of such cotton less than a bale; (7) the gross weight of each bale of extra long staple cotton and the net weight of each lot of extra long staple lint cotton less than a bale; and (8) the kind of the bagging and ties used on each bale. The records so made shall be kept available for examination and inspection by the Secretary, or by any authorized representative of the Secretary, until December 31, 1956, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.1142 to 722.1186, or of obtaining the information required to be furnished in any report pursuant to §§ 722.1142 to 722.1186 but not so furnished. Such records shall be kept for such longer period of time as may be requested in writing by the Director.

(c) *Requests for reports.* Each ginner, upon written request of the State committee or county committee, shall make a report showing the information provided for in this section, or any part thereof as specified in the request, with respect to extra long staple cotton ginned for the person or persons specified in the request or for the period of time specified in the request. This report shall be filed not later than the date designated by the State committee or county committee in the written request for such report.

(d) *Manner of submitting reports.* The treasurer of the county committee designated in the request for such report, or his successor in office, is hereby authorized and empowered to receive each such report, on behalf of the Secretary. Each report shall be mailed or delivered directly to the said treasurer.

(e) *Penalty for failure or refusal to keep records or make reports.* Any person engaged in the business of ginning extra long staple cotton who fails to keep any record or make any report as required by this section or who makes any false report or false record shall, as provided for in section 373 (a) of the act, be deemed guilty of a misdemeanor and upon conviction thereof shall be subject to a fine of not more than $500 for each such offense.

§ 722.1177 *Records to be kept and reports to be made by buyers*—(a) *Necessity for records and reports.* Each person why buys extra long staple seed cotton or extra long staple lint cotton from the producer thereof shall, in conformity with section 373 (a) of the act, keep the records and make the reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to extra long staple cotton, the provisions of the act.

(b) *Nature of and availability of records.* Each buyer shall keep, as a part of or in addition to the records maintained by him in the conduct of his business, a record which shall show with respect to each bale of extra long staple cotton, and each lot of such cotton less than a bale, which is purchased by him from the producer thereof the following information: (1) The name and address of the producer from whom the cotton was purchased; (2) the date on which the extra long staple cotton was purchased; (3) the original gin bale number or, if there is no gin bale number, the gin bale mark or other information showing the origin or source of the extra long staple cotton and, in the case of extra long staple seed cotton purchased, the number of pounds of such seed cotton and the known or estimated amount of lint in such seed cotton; (4) the number of pounds of extra long staple lint cotton in each bale, and each lot of such cotton less than a bale, purchased from the producer; (5) the amount of any penalty required to be collected under §§ 722.1142 to 722.1186 and the amount of penalty collected in connection with the extra long staple cotton purchased from the producer; and (6) the serial number of the marketing card or marketing certificate or a brief description of the loan document by which the extra long staple cotton was identified when marketed. It shall be presumed that the extra long staple cotton was not identified in the manner provided in §§ 722.1142 to 722.1186 if the serial number of the marketing card or marketing certificate or a brief description of the loan document does not appear on the records required by this paragraph. The record so made shall be kept available for examination and inspection by the Secretary, or by any authorized representative of the Secretary, until December 31, 1956, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.1142 to 722.1186, or of obtaining the information required to be furnished in any report pursuant to §§ 722.1142 to 722.1186 but not so furnished. Such records shall be kept for such longer period of time as may be requested in writing by the Director. The county committee shall, upon the request of any buyer, furnish to him without cost blank copies of Form MQ–100—Cotton which may be used by him for the purpose of keeping the record required pursuant to this paragraph.

(c) *Reports in connection with extra long staple cotton not indentified by marketing cards, marketing certificates, or loan documents.* The buyer of extra long staple cotton which is not identified by a marketing card, marketing certificate, or loan document as provided in §§ 722.1142 to 722.1186 when marketed shall, with respect to each purchase, make a written report on Form MQ–82—Cotton of the following information: (1) The name and address of the producer from whom the extra long staple cotton was purchased; (2) the date on which the extra long staple cotton was purchased; (3) the original gin bale number or, if there is no gin bale number, the gin bale mark or other information showing the origin or source of the extra long staple cotton; (4) the net weight of each bale of extra long staple cotton, and of each lot of such lint cotton less than a bale; and (5) the amount of the penalty collected in connection with the extra long staple cotton purchased. The report shall be executed in triplicate, one copy thereof shall be given to the producer, one copy shall be retained by the buyer, and the buyer shall mail or deliver the original to the treasurer of the county committee for the county in which such cotton was produced.

(d) *Reports in connection with extra long staple cotton identified by marketing certificates.* The buyer of extra long staple cotton which is identified when marketed by a certificate on Form MQ–91—Cotton, as provided in § 722.1163, shall make a report in connection with the transaction by executing the certificate in triplicate and by mailing or delivering the county office copy to the treasurer of the county committee for the county in which the certificate was issued. The original Form MQ–91—Cotton shall be retained by the buyer and the producer's copy shall be delivered to the producer to whom the certificate was issued. The manner in which Form MQ–91—Cotton shall be executed and distributed, in case the marketing is to a buyer not within the

United States, is provided for in § 722.1180 (c).

(e) *Receipts to producers for penalties.* Where the extra long staple cotton is not identified by a marketing card, marketing certificate, or loan document at the time of marketing, the producer's copy of the executed Form MQ–82—Cotton shall be the receipt from the buyer to the producer for the penalty collected. The buyer shall report the giving of each such receipt to the producer by forwarding the county office copy of the Form MQ–82—Cotton to the treasurer of the county committee for the county in which such cotton was produced, as provided in paragraph (c) of this section.

(f) *Time for making reports.* Each report required by the foregoing provisions of this section shall be made not later than 7 calendar days next succeeding the end of the calendar week in which the extra long staple cotton covered thereby was marketed.

(g) *Buyer's special reports.* In the event the county committee, or the State committee, has reason to believe that any buyer failed or refused to collect or to remit the penalty required to be collected by him for any extra long staple cotton which he purchased, or otherwise in any manner failed or refused to comply with §§ 722.1142 to 722.1186, the buyer shall, within fifteen days after a written request therefor by such committee is sent to him by registered mail at his last-known address, make a report verified as true and correct on Form MQ–100—Cotton to such committee with respect to cotton purchased or acquired by him from the person or persons specified in the request or purchased or acquired by him during the period of time specified in the request. Such report shall include the following information for each bale of extra long staple cotton, and each lot of such cotton less than a bale, purchased by such buyer: (1) The name and address of the producer from whom the extra long staple cotton was purchased; (2) the date on which the extra long staple cotton was purchased; (3) the original gin bale number, or if there is no gin bale number, the gin mark or other information showing the origin of or source of the extra long staple cotton and, in the case of extra long staple seed cotton purchased, the number of pounds of such seed cotton and the known or estimated amount of lint in such seed cotton; (4) the number of pounds of extra long staple lint cotton in each bale, and in each lot of such cotton less than a bale, purchased from the producer; (5) the amount of penalty required to be collected under §§ 722.1142 to 722.1186 and the amount of any penalty collected in connection with the extra long staple cotton purchased from the producer; and (6) the serial number of the marketing card or marketing certificate or a brief description of the loan document by which the extra long staple cotton was identified when marketed.

(h) *Manner of submitting reports.* The treasurer of the county committee for the county in which the extra long staple cotton covered by the report was produced, or his successor in office, is hereby authorized and empowered to receive, for and on behalf of the Secretary, each report required pursuant to this section. Each report shall be mailed or delivered directly to the said treasurer. Notwithstanding any other provision of this paragraph, each report on Form MQ–82—Cotton in connection with the purchase of extra long staple cotton marketed without the use of the means of identification provided by §§ 722.1142 to 722.1186 may be mailed or delivered directly to the treasurer of the county committee from whom the unexecuted copy of the form was obtained.

(i) *Penalty for failure or refusal to keep records or make reports.* Any person engaged in the business of purchasing extra long staple cotton from producers who fails to keep any records or make any report as required by this section or who makes any false report or false record shall, as provided for in section 373 (a) of the act, be deemed guilty of a misdemeanor and upon conviction thereof shall be subject to a fine of not more than $500 for each such offense.

§ 722.1178 *Records to be kept and reports to be made by transferees.* Each transferee who acquires extra long staple seed cotton or extra long staple lint cotton from the producer thereof shall keep the same records and make the same reports which are required to be kept and made by buyers pursuant to § 722.1177 in every case in which the penalty is collected by the transferee as provided for in § 722.1170, and in every other case shall execute the applicable certificates which are necessary to enable the producer to keep the records and make the reports required of him.

§ 722.1179 *Records to be kept by warehousemen and others.* Each warehouseman, processor (including compressor), common carrier, and other person, as defined in section 373 (a) of the act, who buys, stores, processes (including compressing), transports as a common carrier, or otherwise deals with extra long staple cotton from, for, or on behalf of the producer thereof shall make available, for examination and inspection by the Secretary, or by any authorized representative of the Secretary, the records kept in his business concerning such cotton, for the purpose of ascertaining the correctness of any report made or record kept pursuant to §§ 722.1142 to 722.1186 or of obtaining the information required to be furnished in any report pursuant to §§ 722.1142 to 722.1186 but not so furnished. The Secretary, in conformity with section 373 (a) of the act, hereby finds such records to be necessary to enable him to carry out, with respect to extra long staple cotton, the provisions of the act.

§ 722.1180 *Records to be kept and reports to be made by producers*—(a) *Necessity for records and reports.* Each person who produces in 1954, or who produced in any previous year, extra long staple cotton which is subject to the provisions of §§ 722.1142 to 722.1186 shall, in conformity with section 373 (b) of the act, keep the records and make the reports prescribed by this section, which records and reports the Secretary hereby finds to be necessary to enable him to carry out, with respect to extra long staple cotton, the provisions of the act.

(b) *Farms for which marketing cards are issued.* A record and report of the extra long staple cotton marketed in connection with a farm for which one or more marketing cards were issued shall not be required unless requested by the county committee, as provided in paragraph (e) of this section.

(c) *Extra long staple cotton marketed to persons not within the United States, including Puerto Rico.* In each case where extra long staple cotton for which a marketing certificate has been issued pursuant to § 722.1158 is marketed to any person not within the United States (including Puerto Rico), the producer shall enter the name and address of the buyer or transferee and indicate in the space provided for the signature of the buyer or transferee on each copy of the marketing certificate that such person is not within the United States (including Puerto Rico). The producer shall retain his copy of the certificate and the county office's and buyer's copies shall be mailed or delivered by such producer to the treasurer of the county committee for the county in which the certificate was issued not later than 15 calendar days next succeeding the day on which the extra long staple cotton was marketed.

(d) *Farm operator's report.* The operator of the farm in connection with which a farm marketing excess is determined shall, upon written request of the county committee, file with the treasurer of the county committee for the county in which the farm is located a farm operator's report on Form MQ–98—Cotton showing for the farm the following information or any part thereof as specified in such request: (1) The date harvesting of the 1954 crop of extra long staple cotton was completed on the farm, the date of the last ginning of such cotton produced on the farm in 1954, and the acreage planted to such cotton on the farm; (2) the total number of pounds of lint cotton ginned from the 1954 crop of extra long staple cotton; (3) the name and address of each ginner who ginned such cotton and the number of a net weight of the bales of such cotton ginned by him; (4) the total amount of 1954 crop extra long staple cotton marketed in seed; (5) the total amount of 1954 crop extra long staple lint cotton marketed; (6) the amount of unmarketed extra long staple cotton of the 1954 crop on hand; (7) the total number of pounds of extra long staple lint cotton produced in the 1954 crop year; (8) the name and address of each buyer or transferee of 1954 crop lint or seed extra long staple cotton and the amount thereof marketed to him; and (9) the amount of penalty paid by the producer or collected by the buyer or transferee. In each case where the producer is making an application for a downward adjustment in the farm marketing excess pursuant to § 722.1152, such application shall be made on a farm operator's report (Form MQ–98—Cotton) not later than 30 days, or any extension of such period as provided in § 722.1152, after harvesting of extra long staple cot-

ton on the farm has been completed. However, the county committee may waive the requirement that such application be filed on a Form MQ–98—Cotton in cases where it determines that the evidence otherwise submitted by the producer is satisfactory evidence of the actual production of extra long staple cotton on the farm in 1954. Upon written request of the county committee, the operator of any other farm for which a farm marketing excess is not determined shall make a report on Form MQ–98—Cotton in the manner specified in this subsection not later than the date designated by the county committee in its request.

(c) *Manner of submitting reports.* The treasurer of the county committee for the county in which the extra long staple cotton covered by the report was produced, or his successor in office, is hereby authorized and empowered to receive, for and on behalf of the Secretary, each report required pursuant to this section. Each report shall be mailed or delivered directly to such treasurer.

§ 722.1181 *Data to be kept confidential.* Except as otherwise provided in this part, all data reported to or acquired by the Secretary pursuant to and in the manner provided in §§ 722.1142 to 722.1186 shall be kept confidential by all officers and employees of the United States Department of Agriculture, members of county committees and State committees, county agents, and the employees of such committees and county agents' offices, and shall not be disclosed to anyone not having an interest in or responsibility for any cotton, farm, or transaction covered by the particular data, record, information, report, or form, and only such data so reported or acquired as the Secretary deems relevant shall be disclosed by them to anyone not having such an interest or not being employed in the administration of the act and then only in a suit or administrative hearing under the provisions of the act.

§ 722.1182 *Enforcement.* It shall be the duty of the county committee to report in writing to the State committee forthwith each case of failure or refusal to make any report or keep any record as required by §§ 722.1142 to 722.1186 and each case of making any false report or record. It shall be the duty of the State committee to report each such case in writing, in quintuplicate, to the Director with a view to the institution of proceedings by the United States Attorney for the appropriate district, under the direction of the Attorney General of the United States, to enforce the provisions of the act.

SPECIAL PROVISIONS AND EXCEPTIONS

§ 722.1183 *Experimental cotton farms.* The penalty shall not apply to the marketing of any extra long staple cotton of the 1954 crop grown only for experimental purposes on land owned or leased by a publicly-owned agricultural experiment station and produced at public expense by employees of the experiment station, or if the extra long staple cotton was produced by farmers pursuant to an agreement with a publicly-owned experimental station whereby the experiment station bears the costs and risks incident to the production of such cotton and the proceeds from the crop inure to the benefit of the experiment station: *Provided*, That such agreement shall be approved by the State committee prior to the issuance of a marketing card for the farm.

§ 722.1184 *Acreage planted to extra long staple cotton*—(a) *Underplanting the farm acreage allotment.* For any farm on which extra long staple cotton is planted in 1954 and the acreage of such cotton in 1954 is less than the farm acreage allotment by not more than the larger of 10 percent of the allotment or one acre, an acreage equal to the farm acreage allotment shall be deemed to be the acreage planted to extra long staple cotton on the farm in 1954, and the additional acreage added to the extra long staple cotton acreage history for the farm shall be added to the extra long staple cotton acreage history for the county and State.

(b) *No credit for overplanting the farm acreage allotment.* Any acreage planted to extra long staple cotton in 1954 in excess of the farm acreage allotment for the 1954 crop of extra long staple cotton shall not be taken into account in establishing State, county, and farm acreage allotments for the 1955 and subsequent crops of cotton.

§ 722.1185 *Availability of records.* The State and county committees shall make available for inspection by owners or operators of farms receiving extra long staple cotton acreage allotments all records pertaining to extra long staple cotton acreage allotments and marketing quotas.

§ 722.1186 *Designation of representatives of the Secretary to examine records*—(a) *Designation of representatives.* In order to carry out the provisions of §§ 722.1176, 722.1177, 722.1178, and 722.1179, relating to the examination of records, the Deputy Administrator is hereby authorized and directed to designate in writing an appropriate number of persons from the officers or employees of the Department of Agriculture to act as the authorized representatives of the Secretary for the purposes of said provisions.

(b) *Proof of designation.* Each person designated pursuant to this section shall be furnished with a copy of his designation, certified by the Deputy Administrator as proof of his authority to act as such authorized representative of the Secretary.

(c) *Authorization to administer oaths.* Each person designated pursuant to this section to act as the authorized representative of the Secretary is hereby authorized and empowered, pursuant to the act of Congress approved January 31, 1925 (sec. 1, 43 Stat. 803; 5 U. S. C. 521), to administer to or take from any person an oath, affirmation, or affidavit whenever such oath, affirmation, or affidavit is for use in any prosecution or proceeding under or in the enforcement of the extra long staple cotton marketing quota provisions of the act or §§ 722.1142 to 722.1186.

Done at Washington, D. C., this 19th day of April 1954.

[SEAL] J. A. McCONNELL,
Administrator, Commodity Stabilization Service.

[F. R. Doc. 54–3045; Filed, Apr. 21, 1954; 8:51 a. m.]

[7 CFR Part 728]

WHEAT

NOTICE OF DETERMINATIONS TO BE MADE WITH RESPECT TO MARKETING QUOTAS, NATIONAL, STATE, AND COUNTY ACREAGE ALLOTMENTS, AND FORMULATION OF REGULATIONS PERTAINING TO FARM ACREAGE ALLOTMENTS AND COUNTY NORMAL YIELDS FOR THE 1955 CROP OF WHEAT

Pursuant to the authority contained in applicable provisions of the Agricultural Adjustment Act of 1938, as amended (7 U. S. C. 1301, 1332, 1333, 1334, 1335), the Secretary of Agriculture is preparing to determine whether marketing quotas are required to be proclaimed for the 1955 crop of wheat, to determine and proclaim the national acreage allotment for the 1955 crop of wheat, to apportion among States and counties the national acreage allotment for the 1955 crop of wheat, and to formulate regulations for establishing farm acreage allotments and county normal yields for the 1955 crop of wheat.

Section 335 of the act provides that whenever in the calendar year 1954 the Secretary determines (1) that the total supply of wheat for the 1954–55 marketing year will exceed the normal supply for such marketing year by more than 20 per centum, or (2) that the total supply of wheat for the 1953–54 marketing year is not less than the normal supply for such marketing year and that the average farm price for wheat for three consecutive months of such marketing year does not exceed 66 per centum of parity, the Secretary shall, not later than July 1, 1954, proclaim such fact and a national marketing quota shall be in effect on the marketing of wheat during the 1955–56 marketing year.

Section 333 of the act provides that the national acreage allotment shall be that acreage which the Secretary determines will, on the basis of the national average yield for wheat, produce an amount thereof adequate, together with the estimated carry-over at the beginning of the marketing year for such crop and imports, to make available a supply for such marketing year equal to a normal year's domestic consumption and exports plus 30 per centum thereof; but such allotment for any year shall not be less than 55 million acres. Section 332 of the act requires that the Secretary, not later than July 15, 1954, shall ascertain and proclaim the total supply and the normal supply of wheat for the 1954–55 marketing year and the national acreage allotment for the 1955 crop of wheat.

As defined in section 301 of the act, for the purpose of these determinations, "total supply" for any marketing year is the carry-over of wheat for such marketing year, plus the estimated production of wheat in the United States during

the calendar year in which such marketing year begins and the estimated imports of wheat into the United States during such marketing year; "normal supply" for any marketing year is the estimated domestic consumption of wheat for the marketing year ending immediately prior to the marketing year for which normal supply is being determined, plus the estimated exports of wheat for the marketing year for which normal supply is being determined, plus 15 per centum of such consumption and exports, with such adjustments for current trends in consumption and for unusual conditions as deemed necessary; "normal year's domestic consumption" of wheat is the yearly average quantity of wheat that was consumed in the United States during the ten marketing years immediately preceding the marketing year in which such consumption is determined, adjusted for current trends in such consumption; "normal year's exports" of wheat is the yearly average quantity of wheat produced in the United States that was exported from the United States during the ten marketing years immediately preceding the marketing year in which such exports are determined, adjusted for current trends in such exports; "marketing year" for wheat is the period July 1–June 30; and "national average yield" of wheat is the national average yield of wheat for the ten calendar years preceding the year in which such national average yield is used, adjusted for abnormal weather conditions and for trends in yields.

Section 334 (a) of the act requires that the national acreage allotment of wheat for the 1955 crop, less a reserve of not to exceed one per centum thereof, be apportioned among the several States on the basis of the acreage seeded for the production of wheat during the ten calendar years 1944–1953 (plus, in applicable years, the acreage diverted under agricultural adjustment and conservation programs), with adjustments for abnormal weather conditions and trends in acreage during such period. Section 334 (b) of the act requires that the State acreage allotment of wheat for the 1955 crop, less a reserve of not to exceed 3 per centum thereof, be apportioned among the counties in the State on the basis of the acreage seeded for the production of wheat during the ten calendar years 1944–1953 (plus, in applicable years, the acreage diverted under agricultural adjustment and conservation programs), with adjustments for abnormal weather conditions and trends in acreage during such period and for the promotion of soil-conservation practices.

Section 334 (c) of the act requires that the allotment to the county be apportioned among the farms within the county on the basis of past acreage of wheat, tillable acres, crop-rotation practices, type of soil, and topography, and provides that not more than 3 per centum of the State allotment be apportioned to farms on which wheat has not been planted for harvest during any of the three marketing years immediately preceding the marketing year in which the allotment is made.

Section 301 (b) (13) of the act provides for the determination of county normal yields of wheat by taking the average yield per acre of wheat for the county during the ten calendar years immediately preceding the year in which such normal yield is determined, adjusted for abnormal weather conditions and trends in yields. Provision is also made that if for any year during such 10-year period the data are not available, or there is no actual yield, an appraised yield for such year shall be determined in accordance with regulations issued by the Secretary of Agriculture, and that such normal yield per acre for any county need be redetermined only when the actual average yield for the ten calendar years immediately preceding the calendar year in which such yield is being reconsidered differs by at least 5 per centum from the actual average yield for the 10 years upon which the existing normal yield per acre for the county was based.

Prior to making any of the foregoing determinations with respect to marketing quotas and national, State, and county acreage allotments for the 1955 crop of wheat and the formulation of regulations for the establishment of farm acreage allotments and county normal yields for the 1955 crop of wheat consideration will be given to data, views, and recommendations pertaining thereto which are submitted in writing to the Director, Grain Division, Commodity Stabilization Service, United States Department of Agriculture, Washington 25, D. C. All written submissions must be postmarked not later than fifteen days after the date of publication of this notice in the FEDERAL REGISTER.

Issued at Washington, D. C., this 19th day of April 1954.

[SEAL] J. A. MCCONNELL,
Administrator.

[F. R. Doc. 54-3024; Filed, Apr. 21, 1954; 8:47 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR Part 522]

EMPLOYMENT OF LEARNERS IN THE SINGLE PANTS, SHIRTS AND ALLIED GARMENTS, WOMEN'S APPAREL, SPORTSWEAR AND OTHER ODD OUTERWEAR, RAINWEAR, ROBES, AND LEATHER AND SHEEPLINED GARMENTS DIVISION OF THE APPAREL INDUSTRY

TERMS OF SPECIAL CERTIFICATE

Pursuant to section 14 of the Fair Labor Standards Act of 1938, as amended (Section 14, 52 Stat. 1068, as amended; 29 U. S. C. 214), the Administrator has heretofore issued regulations (§§ 522.160 through 522.168) providing for the employment of learners in the Single Pants, Shirts, and Allied Garments, Women's Apparel, Sportswear and Other Odd Outerwear, Rainwear, Robes, and Leather Sheeplined Garments Division of the Apparel Industry, at wages lower than the minimum wage applicable under section 6 of the act.

Such regulations have been re-examined in the light of recent changes in wage levels, administrative experience in the operation of the regulations, and after consultation with interested parties in the industry. All relevant information available indicates that it is necessary to amend the learner regulations insofar as they apply to all divisions of this industry, other than the Women's Apparel Division, by increasing the minimum learner wage from 60 cents per hour to 63 cents per hour for the first 320 hours of the learning period and from 65 cents per hour to 70 cents for the next 160 hours; by making the same increases for workers undergoing retraining; and by reclassifying the occupations and duration of the learning periods for the apparel industry other than the Women's Apparel Division.

Accordingly, notice is hereby given pursuant to the Administrative Procedure Act (60 Stat. 237; 5 U. S. C. 1001), that under the authority provided in section 14 of the Fair Labor Standards Act of 1938, as amended (section 14, 52 Stat. 1068; 29 U. S. C. 214), the Administrator of the Wage and Hour Division, United States Department of Labor, proposes to revise § 522.162 as hereinafter set forth.

1. The following paragraphs of § 522.162 are amended to read as follows:

a. Paragraph (a) (1) is amended to read as follows:

§ 522.162 *Terms of special certificates.*

* * *

(a) *Occupations for which certificates may be issued and duration of learning periods.* (1) In the Women's Apparel Division of the Apparel Industry, as defined in § 522.161 (a) (1), machine operating (except cutting), pressing, handsewing, and finishing operations involving hand-sewing, maximum learning period of 480 hours for any of these occupations,[1] but not more than a 320-hour learning period in such occupations if, within the previous two years, the worker has had 160 hours or more of experience in another of these occupations in any division of the industry.

b. Paragraph (a) (2) is renumbered and made (a) (3).

c. A new paragraph (a) (2) is added to read as follows:

(2) In all other divisions of the Apparel Industry, as defined in § 522.161 (a) (2), (3), (4), (5) and (6), sewing machine operating, final pressing, handsewing, finishing operations involving hand-sewing, maximum learning period of 480 hours for any of these occupations,[1] all other pressing and all other machine operating (except cutting), a maximum learning period of 160 hours,[1] but not more than a 320 hour learning period in such occupations where a maximum of 480 hours is authorized, if, within the previous two years, the worker has had 160 hours or more of experience

[1] If, within the previous two years, the worker has been employed in any division of the industry in an authorized learner occupation for less than the maximum learning period authorized for that occupation, the number of hours of previous employment should be deducted from the applicable learning period.

in another of these occupations in any division of the industry.

d. Paragraph (b) (1) (ii) is amended to read as follows:

(b) *Minimum rates of pay.* (1) * * *

(ii) Not less than 63 cents per hour for the first 320 hours, and not less than 70 cents per hour for the next 160 hours, if employed in any of the other divisions of the Apparel Industry, as defined in § 522.161 (a) (2), (3), (4), (5) and (6).

e. Paragraph (b) (1) (iii) is amended by deleting all the language subsequent to the semi-colon and inserting the following: "And any experienced worker in any one of the occupations shown in paragraph (a) (2) of this section for which a 480-hour learning period is authorized, who is being retrained in any other occupation shown in that paragraph, having such a 480-hour maximum period, shall be paid at not less than 63 cents per hour for the first 160 hours and not less than 70 cents per hour for the next 160 hours, if employed in any of the other divisions of the Apparel Industry, as defined in § 522.161 (a) (2), (3), (4), (5) or (6)."

f. Paragraph (b) (2) is amended by deleting the period at the end thereof and adding the following: "if employed in the Women's Apparel Division of the Apparel Industry, as defined in § 522.161 (a) (1); and at not less than 70 cents per hour if employed in any of the other divisions of the Apparel Industry, as defined in § 522.161 (a) (2), (3), (4), (5) or (6)".

g. Paragraph (b) (3) and (4) are renumbered (4) and (5) respectively, and a new paragraph (b) (3) is added as follows:

(3) A learner employed in any occupation for which a 160-hour learning period is authorized in paragraph (a) (2) of this section shall be paid 63 cents per hour if employed in any of the divisions of the Apparel Industry, as defined in § 522.161 (a) (2), (3), (4), (5) or (6).

Consideration will be given to any data, views, or arguments pertaining to the amendment of 29 CFR, Part 522, § 522.162, as proposed, which are submitted in writing to the Administrator of the Wage and Hour Division, United States Department of Labor, Washington 25, D. C., within 30 days from publication of this notice in the FEDERAL REGISTER.

Signed at Washington, D. C., this 19th day of April 1954.

WM. R. MCCOMB,
Administrator,
Wage and Hour Division.

[F. R. Doc. 54-3037; Filed, Apr. 21, 1954; 8:50 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Fiscal Service, Bureau of Accounts

[Dept. Circ. 570, Rev. Apr. 20, 1943, 1954 98th Supp.]

YORKSHIRE INSURANCE CO. OF NEW YORK

CORPORATIONS ACCEPTABLE AS SURETIES ON FEDERAL BONDS

APRIL 16, 1954.

Under date effective midnight ending December 31, 1953, "The Yorkshire Indemnity Company of New York", New York, New York, a New York Corporation, formally changed its name to that of "The Yorkshire Insurance Company of New York". A copy of the Restated Charter of The Yorkshire Insurance Company of New York, a certified copy of the By-laws, and a certificate from the Insurance Department of the State of New York certifying that the corporate name of The Yorkshire Indemnity Company of New York became and now is The Yorkshire Insurance Company of New York, have been received and filed in the Treasury.

Pursuant to an Instrument of Transfer and Assumption and a Domestication Agreement filed with the Insurance Department of the State of New York on December 15, 1953, The Yorkshire Indemnity Company of New York acquired all the business and assets and assumed all the liabilities of The Yorkshire Insurance Company, Limited, United States Branch.

The change in the name of The Yorkshire Indemnity Company of New York does not affect its status or liability with respect to any obligation in favor of the United States or in which the United States has an interest, which it may have undertaken pursuant to its authority under the act of Congress approved July 30, 1947 (U. S. C. secs. 6-13), to qualify as sole surety on such obligations.

Hereafter the name of the company will appear as "The Yorkshire Insurance Company of New York" on Treasury Form No. 356, which shows a list of the companies authorized to act as acceptable sureties on bonds in favor of the United States.

[SEAL] A. N. OVERBY,
Acting Secretary of the Treasury.

[F. R. Doc. 54-3034; Filed, Apr. 21, 1954; 8:49 a. m.]

Office of the Secretary

SPECIAL ASSISTANT TO THE SECRETARY

DELEGATION OF AUTHORITY WITH RESPECT TO DISBURSEMENT, ADMINISTRATION, SERVICING AND SALE OF LOANS

Laurence B. Robbins, as Special Assistant to the Secretary of the Treasury, is hereby authorized to perform, exercise, and administer all of the functions, powers, duties, and authority under section 409 of the Federal Civil Defense Act of 1950 vested in me by virtue of the provisions of section 104 of the Reconstruction Finance Liquidation Act (67 Stat. 231; Public Law 163, approved July 30, 1953) and to perform, exercise, and administer all of the functions, powers, duties, and authority under section 302 of the Defense Production Act of 1950, as amended, vested in me by virtue of the provisions of section 107 (a) (2) of the Reconstruction Finance Liquidation Act as supplemented by Executive Order No. 10489, dated September 26, 1953 (18 F. R. 6201).

[SEAL] M. B. FOLSOM,
Acting Secretary of the Treasury.

APRIL 1, 1954.

[F. R. Doc. 54-3035; Filed, Apr. 21, 1954; 8:49 a. m.]

POST OFFICE DEPARTMENT

ASSISTANT POSTMASTER GENERAL, BUREAU OF FACILITIES

DELEGATION OF AUTHORITY RESPECTING FUNCTIONS AND DUTIES OF PURCHASING AGENT

The following is the text of Order No. 55582, dated March 2, 1954, delegating certain authority to the Assistant Postmaster General, Bureau of Facilities, respecting functions and duties of the Purchasing Agent for the Post Office Department:

(a) Pursuant to authority of section 1 (b) of Reorganization Plan No. 3 of 1949 (63 Stat. 1066), all functions and duties heretofore vested in the Purchasing Agent for the Post Office Department are hereby transferred to the Assistant Postmaster General, Bureau of Facilities, who is hereby authorized to delegate to any officer or employee under his jurisdiction such of the functions and duties, transferred by this order, as he deems appropriate, except that the authority with respect to the "Procurement of Supplies and Services by the Postmaster General for Improvement of Postal Operations and Other Activities," delegated by the Administrator of General Services under date of April 10, 1951 (see Order No. 45931 of the Postmaster General, dated April 17, 1951, published in the Postal Bulletin of April 19, 1951), to the extent it is subject to redelegation, may be performed by a chief procurement officer for the Post Office Department designated by the Assistant Postmaster General, Bureau of Facilities.

(b) The office of Purchasing Agent is hereby abolished: *Provided*, That the office of Purchasing Agent, or such a form thereof as the Assistant Postmaster General, Bureau of Facilities, deems to be in the best interests of the Department, may be established by the Assistant Postmaster General, Bureau of

Facilities, on his own order, as a division or other unit of the Bureau of Facilities.

(c) All regulations, orders, instructions, and delegations of functions and duties in conflict with this order, or in conflict with such regulations, order, instructions, and delegations of functions and duties which may hereafter be made by the Assistant Postmaster General, Bureau of Facilities, under authority of this order, are hereby modified to the extent of such inconsistency.

(R. S. 161, 396; secs. 304, 309, 42 Stat. 24, 25, sec. 1 (b), 63 Stat. 1066; 5 U. S. C. 22, 1332-15, 369; Delegation of authority by the Administrator of General Services, dated April 10, 1951, 16 F. R. 3319)

[SEAL] LOUIS J. DOYLE,
Acting Solicitor.

[F. R. Doc. 54-3033; Filed, Apr. 21, 1954; 8:49 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

IDAHO

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

APRIL 15, 1954.

An application, serial number Idaho 04174 and 04836, for the withdrawal from all forms of appropriation under the public land laws, except mineral leasing of the lands described below was filed on September 5, 1951, and January 5, 1953, by Idaho Fish and Game Department. The purposes of the proposed withdrawal: C. J. Strike Snake River Wildlife Management Area.

For a period of 30 days from the date of publication of this notice, persons having cause to object to the proposed withdrawal may present their objections in writing to the Regional Administrator, Region I, Bureau of Land Management, Department of the Interior, at Swan Island Station, Portland 18, Oregon. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where proponents of the order can explain its purpose.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER, either in the form of a public land order or in the form of a Notice of Determination if the application is rejected. In either case, a separate notice will be sent to each interested party of record.

The lands involved in the application are:

BOISE MERIDIAN

T. 5 S., R. 4 E.,
Sec. 12, Lots 5, 6, 7,
Sec. 13, NE¼NW¼, NW¼NE¼,
Sec. 14, SE¼NE¼, SW¼SW¼, Lots 6 and 7,
Sec. 15, NE¼NE¼, SW¼NE¼, E½NW¼, NE¼SW¼,
Sec. 22, Lots 4 and 7, E½NE¼, SW¼SE¼,
Sec. 24, SE¼NE¼,
Sec. 26, W½W½, SE¼SW¼,
Sec. 27, Lots 1, 2, 3, 6, 7 and 8, E½NE¼, E½SW¼,
Sec. 34, Lots 2 and 9, SW¼SW¼,
Sec. 35, SW¼NE¼.
T. 5 S., R. 5 E.,
Sec. 17, Lots 1, 4, 5 and 6, SE¼NE¼,
Sec. 18, Lots 2, 3, 4, and 5, S½SE¼,
Sec. 19, Lots 1 and 2,
Sec. 20, Lot 2,
Sec. 21, Lots 1, 2, 3, 4, 5, 6, 7 and 8, E½NE¼, SW¼SE¼,
Sec. 22, Lots 1, 2, 3, 4, 5 and 6, W½NW¼,
Sec. 23, Lots 1, 2, 3, 4, 7 and 8,
Sec. 24, Lots 1, 2, 3, 4, 5, 6 and 7,
Sec. 27, Lot 1, N½NW¼, SE¼NW¼,
Sec. 28, N½NE¼.
T. 5 S., R. 6 E.,
Sec. 19, Lots 1 and 2,
Sec. 30, Lot 6,
Sec. 31, Lots 6, 7, 8 and 9, SE¼SW¼,
Sec. 33, S½NE¼,
Sec. 34, SW¼NW¼,
Sec. 35, Lots 1, 2 and 3.
T. 5 S., R. 7 E.,
Sec. 27, Lot 1,
Sec. 28, Lots 1, 2, 3, 4, 5, 6 and 7,
Sec. 29, Lots 1, 2, 3 and 4,
Sec. 31, Lots 3, 4, 5 and 8,
Sec. 32, Lots 1, 2, 3 and 4,
Sec. 33, Lot 1,
Sec. 34, Lots 1, 2 and 3,
Sec. 35, NW¼SW¼, S½SE¼.
T. 5 S., R. 8 E.,
Sec. 31, Lots 1, 2, 3 and 4,
Sec. 32, Lots 1, 2, 3 and 4,
Sec. 33, Lot 1.
T. 5 S., R. 9 E.,
Sec. 26, Lots 2, 3 and 4,
Sec. 32, Lots 1, 5 and 6,
Sec. 33, Lots 1, 2, 3, 4, 5, 6, 7 and 8,
Sec. 34, Lots 3 and 4.
T. 5 S., R. 10 E.,
Sec. 14, Lots 4 and 5,
Sec. 21, Lots 2 and 3,
Sec. 32, Lot 8.
T. 6 S., R. 4 E.,
Sec. 1, Lots 2, 3 and 4, S½NE¼,
Sec. 2, Lots 1, 2, 3 and 4, SW¼NE¼, SE¼NW¼,
Sec. 3, Lots 1, 2, 3 and 4, S½NE¼.
T. 6 S., R. 6 E.,
Sec. 1, Lots 1 and 2, SW¼NW¼, SE¼NW¼,
Sec. 2, SW¼, N½SE¼,
Sec. 3, Lots 3 and 4, SW¼NW¼, NE¼SW¼, N½SE¼, SE¼SE¼, SW¼SE¼,
Sec. 4, S½N½,
Sec. 5, Lots 1, 2, 3 and 4,
Sec. 6, Lot 1.
T. 6 S., R. 7 E.,
Sec. 1, Lots 1, 2, 3 and 4,
Sec. 2, Lots 1 and 4.
T. 6 S., R. 8 E.,
Sec. 1, Lot 6,
Sec. 3, Lot 12,
Sec. 4, Lots 4, 5, 8 and 9,
Sec. 5, Lot 1,
Sec. 6, Lot 5.
T. 6 S., R. 10 E.,
Sec. 6, Lots 1 and 2.

The area described aggregates 8,356.45 acres.

The lands described have an elevation of approximately 2,450 feet, and the topography ranges from steep slopes to open flat areas. Very little of the lands are agricultural in character. They are suitable for grazing of livestock and afford access to water in the Snake River for livestock.

Portions of the lands are within power site and reclamation withdrawals, and it has been determined that the withdrawal of the lands for the purposes proposed would be consistent with the multiple uses, subject to the administration of the lands by the Bureau of Land Management for grazing purposes in cooperation with the United States Fish and Wildlife Service and the Idaho Fish and Game Department.

JOSEPH A. GANONG,
Acting Regional Administrator.

[F. R. Doc. 54-3027; Filed, Apr. 21, 1954; 8:48 a. m.]

WASHINGTON

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

APRIL 15, 1954.

An application, serial number Washington 01214, for the withdrawal from all forms of appropriation under the public land laws, except mineral leasing of the lands described below was filed on January 22, 1954, by Washington Department of Fisheries. The purposes of the proposed withdrawal: Klickitat Salmon Hatchery.

For a period of 30 days from the date of publication of this notice, persons having cause to object to the proposed withdrawal may present their objections in writing to the Regional Administrator, Region I, Bureau of Land Management, Department of the Interior at Swan Island Station, Portland 18, Oregon. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where proponents of the order can explain its purpose.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER, either in the form of a public land order or in the form of a Notice of Determination if the application is rejected. In either case, a separate notice will be sent to each interested party of record.

The lands involved in the application are:

WILLAMETTE MERIDIAN

T. 7 N., R. 13 E.,
Sec. 33, S½SE¼.

The area described aggregates 80 acres.

The land described is in a Federal Power Reserve, and the Federal Power Commission has made a determination Docket No. DA-101, Washington, to the effect that the value of the land would not be injured or destroyed for power purposes by restoration under section 24 of the Federal Power Act.

The filing of the application for a withdrawal of the land for the purposes stated segregates the land from disposition under the public land laws pending a determination by the Secretary of the Interior. Therefore, since the land is segregated and is not subject to any form of entry or disposal, such as contemplated by the act of May 28, 1948 (62 Stat. 275; 16 U. S. C. sec. 818), in accordance with section 63.4 of the Bureau of Land Management Manual, no order of restoration of the land under the Federal Power determination will be issued or notice given to the State, but appropriate notation of the determination will be made on the records of the land office and included in any future order of res-

toration of the lands as provided in the act of May 28, 1948.

JOSEPH A. GANONG,
Acting Regional Administrator.

[F. R. Doc. 54-3028; Filed, Apr. 21, 1954; 8:48 a. m.]

ARIZONA

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

APRIL 14, 1954.

An application, serial number Arizona 04855, for the withdrawal from all forms of appropriation under the public land laws of the lands described below, was filed on May 4, 1953, by the Department of the Army. The purposes of the proposed withdrawal: Painted Rock Reservoir Project.

For a period of thirty days from the date of publication of this notice, persons having cause to object to the proposed withdrawal may present their objections in writing to the Regional Administrator, Region 5, Bureau of Land Management, Department of the Interior, at Post Office Box 1695, Albuquerque, New Mexico. In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where proponents of the order can explain its purpose.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER, either in the form of a public land order or in the form of a Notice of Determination if the application is rejected. In either case, a separate notice will be sent to each interested party of record.

The lands involved in the application are:

GILA AND SALT RIVER MERIDIAN

T. 4 S., R. 5 W.,
Sec. 31.
T. 5 S., R. 5 W.,
Secs. 6, 7, 8.
T. 4 S., R. 6 W.,
Secs. 19, 20, 21, 25 to 36, inclusive.
T. 5 S., R. 6 W.,
Secs. 1 to 6, inclusive, 9 to 12, inclusive.
T. 4 S., R. 7 W.,
Secs. 6, 7, 17 to 29, inclusive, 33 to 36, inclusive.
T. 5 S., R. 7 W.,
Secs. 1, 2, 3, 4, 10, 11.
T. 3 S., R. 8 W.,
Secs. 34, 35, 36.
T. 4 S., R. 8 W.,
Secs. 1 to 4, inclusive, 8 to 12, inclusive;
Sec. 13, N½, E½SW¼, SE¼,
Sec. 14, N½, SW¼, W½SE¼,
Secs. 15 to 36, inclusive.
T. 4 S., R. 9 W.,
Secs. 35, 36.
T. 5 S., R. 8 W.,
Secs. 1 to 12, inclusive.
T. 5 S., R. 9 W.,
Secs. 1 to 21, inclusive, 23, 24.
T. 5 S., R. 10 W.,
Secs. 11 to 14, inclusive;
Sec. 15, S½, NW¼,
Secs. 21, 22, 23, 24, 28, 29, 30,
Sec. 31, N½.
T. 5 S., R. 11 W.,
Secs. 25, 26, 33, 34, 35, 36.
T. 6 S., R. 11 W.,
Secs. 3 to 10, inclusive, 17.
T. 6 S., R. 12 W.,
Secs. 10 to 22, inclusive;
Sec. 23, N½N½,
Sec. 28, NW¼,
Sec. 29, N½, SW¼,
Sec. 30, lots 1, 2, 3, NE¼, E½NW¼, NE¼SW¼, SE¼.
T. 6 S., R. 13 W.,
Secs. 19 to 32, inclusive,
Sec. 33, N½, N½S½, SW¼SW¼,
Secs. 34, 35, 36.

The areas described, including both public and non-public land, aggregate approximately 118,310 acres.

E. R. SMITH,
Regional Administrator.

[F. R. Doc. 54-3015; Filed, Apr. 21, 1954; 8:45 a. m.]

Office of the Secretary

NEW MEXICO

RULES FOR ADMINISTRATION OF GRAZING DISTRICT NO. 7; MISCELLANEOUS AMENDMENTS

By virtue of the authority vested in me by section 2 of the act of June 28, 1934 (48 Stat. 1270, 43 U. S. C. 315a) the "Rules for the Administration of New Mexico Grazing District No. 7" approved September 3, 1949 (14 F. R. 5575), are amended as to subparagraph (c), and a new subparagraph (d) is added, to read as follows:

(c) Except as provided in subparagraph (d), free use grazing privileges may be accorded to any resident applicant in the district having not more than 50 sheep units, or an equivalent in animal units in other classes of livestock.

(d) Free use grazing privileges may be accorded to any resident Indian applicant in the district to the extent of 100 sheep units, or an equivalent in other classes of livestock, but not to exceed four horses: *Provided*, That this rule shall apply also to such resident Indian applicants within the Hogback, Adobe and Bernard communities of the San Juan Unit, notwithstanding the provisions of the Bureau of Land Management order of October 20, 1953 (18 F. R. 6788) whereby the San Juan Unit was added to New Mexico Grazing District No. 7: *Provided further*, That no free use grazing privileges will be authorized to any person who may be indebted to the United States by reason of delinquent grazing fees or trespass charges for unauthorized grazing use: *Provided further*, That in the issuance of free use grazing privileges any applicant having less than 100 sheep units shall henceforth be limited to the number of sheep units or their equivalent for which a license may be issued, or for which an applicant may be qualified, for the period July 1, 1954 to June 30, 1955, except that increases may be allowed by the district range manager whenever additional range or grazing privileges are available for such allocations.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1954.

[F. R. Doc. 54-3019; Filed, Apr. 21, 1954; 8:46 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 6523]

TUYA CUBAN EXPRESS CORP.

NOTICE OF HEARING

In the matter of the application of Tuya Cuban Express Corp. for a foreign air carrier permit authorizing indirect air transportation between Havana, Cuba, and points in the United States.

Notice is hereby given that pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 402 and 1001 thereof, the above-entitled proceeding is assigned for hearing on May 4, 1954, at 10:00 a. m., e. d. s. t., in Room 5132, Commerce Building, Fourteenth Street and Constitution Avenue NW., Washington, D. C., before Examiner Herbert K. Bryan.

Without limiting the scope of the issues in this proceeding, particular attention will be directed to whether transportation proposed herein will be in the public interest and whether the applicant is fit, willing and able to perform such air transportation and to conform to the provisions of the Civil Aeronautics Act and the rules, regulations and requirements of the Board thereunder.

For further details of the issues involved in this proceeding, interested persons are referred to the various orders entered in the proceeding and the Examiner's Prehearing Conference Report, which are on file with the Civil Aeronautics Board.

Notice is further given that any person other than parties of record desiring to be heard in this proceeding shall file with the Board, on or before May 4, 1954, a statement setting forth the issues of fact or law which he desires to controvert.

Dated at Washington, D. C., April 16, 1954.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 54-3038; Filed, Apr. 21, 1954; 8:50 a. m.]

DEPARTMENT OF AGRICULTURE

Commodity Credit Corporation

SALES OF CERTAIN COMMODITIES AT FIXED PRICES

APRIL 1954 DOMESTIC AND EXPORT PRICE LISTS

Pursuant to the Pricing Policy of Commodity Credit Corporation issued March 22, 1950, as amended January 9, 1953, (15 F. R. 1593, 18 F. R. 176) and subject to the conditions stated therein, the following commodities are available for sale in the quantities and at the prices stated. The offering of corn of the 1948-49 crops on the domestic list is effective as of April 6, 1954 for the remainder of the month and is a reduction of 20 cents per bushel from the price that was effective April 1, 1954. The offerings of nonfat dry milk solids and cheddar cheese on the export list are effective as of April 9, 1954 for the remainder of the month.

APRIL 1954 DOMESTIC PRICE LIST

Commodity and approximate quantity available (subject to prior sale)	Domestic price list
Corn, bulk, 170,000,000 bushels (1948-49 crops).	At points of production, basis in store, at market prices, but not less than 20 cents per bushel below the local 1953 corn loan rate for No. 3 yellow corn. In addition, off grade corn owned by CCC from any other crop will also be offered for sale at the same price. Sales will be made through County Agricultural Stabilization and Conservation Committees. The corn is stored in CCC bin sites.

APRIL 1954 EXPORT PRICE LIST

Commodity and approximate quantity available (subject to prior sale)	Export price list
Cheddar cheese Cheddarr, flats, twins and rindless blocks (standard moisture basis in carload lots only), 325,000,000 pounds.	U. S. Grade A and higher: F. a. s. U. S. port of export: 25.5 cents per pound. "In store" at location of stocks: F. A. s. price less export freight rate per pound to agreed port of export.[1] U. S. Grade B: F. a. s. U. S. port of export: 24.5 cents per pound. "In store" at location of stocks: F. a. s. price less export freight rate per pound to agreed port of export.[1]
Nonfat dry milk solids (in carload lots only): 455,000,000 pounds, spray; 85,000,000 pounds, roller.	All prices are subject to usua' adjustment for moisture content. Spray Process, U. S. Extra Grade: F. a. s. U. S. port of export: 11.75 cents per pound. "In store" at location of stocks: F. a. s. price less export freight rate per pound to agreed port of export.[1] Roller Process, U. S. Extra Grade: F. a. s. U. S. port of export 10 cents per pound "In store" at location of stocks: F. a. s. price less export freight rate per pound to agreed port of export.[1]

[1] "In store" means at the processor's plant or in warehouse but with any prepaid storage or handling charges for the benefit of the buyer.

(Sec. 407, 63 Stat. 1055; 7 U. S. C. 1427)

Issued: April 19, 1954.

[SEAL]

J. A. MCCONNELL,
Executive Vice President,
Commodity Credit Corporation.

[F. R. Doc. 54-3042; Filed, Apr. 21, 1954; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-1116, G-1152, G-1240, G-1317, G-1344, G-1379, G-1415, G-1417, G-1457, G-1509, G-1616, G-1625, G-1659, G-1725, G-1754, G-2057, G-2101, G-2234]

PANHANDLE EASTERN PIPE LINE CO. ET AL.

NOTICE OF OPINION NO. 269 AND ORDER

APRIL 16, 1954.

In the matters of Panhandle Eastern Pipe Line Company, Docket Nos. G-1116, G-1240, G-1317, G-1344, G-1417, G-1725, G-1754, G-2101; City of Port Huron, City of Marysville, City of St. Clair, Michigan municipal corporations, Docket No. G-1152; Southeastern Michigan Gas Company, Docket No. G-1415; Michigan Consolidated Gas Company, complainant v. Panhandle Eastern Pipe Line Company, defendant, Docket No. G-1379; Northern Indiana Fuel and Light Company, Docket Nos. G-1457, G-2234; Missouri Central Natural Gas Company, Docket No. G-1509; The Central West Utility Company, Docket No. G-1616; Michigan Gas Utilities Company, Docket No. G-1625; City of Auburn, Illinois, Docket No. G-1659; Missouri Public Service Company, Docket No. G-2057.

Notice is hereby given that on April 15, 1954, the Federal Power Commission issued its opinion and order adopted April 15, 1954, fixing rates in the above-entitled matters.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-3020; Filed, Apr. 21, 1954; 8:46 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3232]

GENERAL PUBLIC UTILITIES CORP.

NOTICE OF FILING REGARDING ISSUANCE AND SALE OF ADDITIONAL SHARES OF COMMON STOCK THROUGH SUBSCRIPTION WARRANTS

APRIL 16, 1954.

Notice is hereby given that General Public Utilities Corporation ("GPU"), a registered holding company has filed an application-declaration, and an amendment thereto, pursuant to the Public Utility Holding Company Act of 1935 ("act"), designating sections 6 (a), 7 and 12 (c) thereof and Rules U-42 and U-50 as applicable to the proposed transactions, which are summarized as follows:

A. GPU proposes to issue 606,423 additional shares of its authorized and unissued common stock, par value $5 per share, offering these first to the holders of its outstanding common stock by transferable subscription warrants carrying the right to subscribe for shares of such additional common stock on the basis of one share for each fifteen shares of common stock held of record. The duration of such offer, which will be approximately nineteen days, the record date, and the subscription price will be supplied by amendment.

B. No warrant holder will be permitted to subscribe for a fraction of a share of stock. In cases where the rights represented by the warrant or warrants accompanying a subscription aggregate in excess of 15 and are not exactly divisible by 15, the holder of such warrant or warrants will be permitted, upon the surrender of such warrant or warrants and the exercise of his subscription privilege for the maximum number of whole shares covered thereby, to apply any excess rights to the purchase of one additional share at the subscription price, subject to the availability, as described hereafter, to GPU of shares out of which such share may be allotted. If shares should not be available for such allotment, GPU will purchase the excess rights at the price to be paid for any rights which may be tendered for purchase as provided in the following paragraph C.

C. Up to a date to be specified by amendment, the initial record warrant holders may sell all or any portion of their subscription rights to GPU at a price per right which will be the greater of (1) one-fifteenth of the difference between (a) the last sale price of GPU common stock on the New York Stock Exchange on the date of receipt by GPU of the warrant evidencing such rights, and (b) the subscription price, or (2) a minimum price to be supplied by amendment.

D. Warrants will not be issued to record holders of less than fifteen shares. Instead, GPU will pay such holders cash in an amount per right which is the greater of (1) one-fifteenth of the difference between (a) the arithmetic average of the last sale price of GPU common stock on the New York Stock Exchange on the second, third and fourth business days immediately following the record date, and (b) the subscription price, or (2) a minimum price to be supplied by amendment. The shares thus made available to GPU are included in those proposed to be issued and will be available for allotment by GPU as described in paragraphs B, F and G.

E. The offering will not be underwritten nor will GPU enter into any dealer-manager arrangement. GPU does propose, however, to utilize the services of security dealers in soliciting the exercise of the warrants by the initial record holders thereof and in disposing of shares which become available by the making of cash payments to holders of less than fifteen shares, and by rights purchased by GPU, or by rights not exercised by the warrant holders. The soliciting compensation per share to be paid by GPU to the participating dealers will be specified by amendment.

F. GPU will offer to the record holders of fifteen shares or more of its common stock during a period of approximately fifteen days, which will begin not later than six months after the termination of the exchange period, the privilege of purchasing from GPU such number of shares of GPU common stock as, together with the shares theretofore held of record, will result in the holding by such holders of a multiple of ten shares, up to the next 100-share multiple, or any higher 100-share multiple, provided that GPU has shares available for the purpose. The price at which shares of GPU common stock will be sold pursuant to the foregoing privilege will be the

last sale price of GPU's common stock on the New York Stock Exchange on the date of the receipt by GPU of an application of a stockholder for the purchase of such shares except that no shares will be sold below the subscription price.

G. Following the termination of the exchange period and during such period as GPU may determine, which latter period will begin not later than six months after the termination of the exchange period, and end not later than December 31, 1954, participating dealers may purchase from GPU all or any part of such shares as GPU shall make available to them out of shares that had become available to it. The purchase price to be paid to GPU by participating dealers shall be the price then applicable to sales of GPU common stock by participating dealers as determined and announced by GPU on the day of such purchase, and shall not be (a) in excess of the last quoted price asked for shares of GPU common stock on the New York Stock Exchange plus 25 cents per share, or (b) less than the higher of (i) the last previous bid price for such stock or (ii) the subscription price. GPU will pay such participating dealers a purchase fee which will be specified by amendment. In the event any shares thus made available to participating dealers are not purchased by them within 24 hours after notice of availability, GPU may sell such shares to other persons at the price then applicable to sales by participating dealers, as determined and announced by GPU on the day of such sale, provided that an amount per share equal to the compensation to be paid to participating dealers may be allowed by GPU to dealers or brokers purchasing such shares who agree to sell such shares at the price applicable to sales by participating dealers on the date of such sale.

H. GPU may, during any phase of the offering, affect transactions designed to stabilize the market for the rights and shares, but in no event will it acquire, as a result of such transactions, a net long position in excess of 60,642 shares (10 percent of the additional shares to be issued).

GPU requests that the Commission grant an exemption from the competitive bidding requirements of Rule U-50 to the extent that such rule may be applicable to the sale of the additional common stock to participating dealers or others.

The net proceeds from the sale of the additional common stock will be used by GPU to retire short-term bank loans, to make additional investments in its domestic subsidiaries, or to reimburse its treasury for such investments theretofore made, and for other corporate purposes.

GPU states that no State or Federal regulatory agency, other than this Commission, has jurisdiction over the proposed transactions.

Notice is further given that any interested person may, not later than May 5, 1954, at 5:30 p. m., e. d. s. t., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law, if any, raised by said application-declaration which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. At any time after said date said application-declaration, as filed or as hereafter amended, may be granted and permitted to become effective as provided by Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transactions as provided in Rule U-20 (a) and Rule U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 54-3022; Filed, Apr. 21, 1954; 8:47 a. m.]

[File No. 70-3234]

EASTERN UTILITIES ASSOCIATES

ORDER AUTHORIZING ISSUE AND SALE TO BANK OF SHORT-TERM PROMISSORY NOTE

APRIL 16, 1954.

Eastern Utilities Associates ("EUA"), a registered holding company, having filed a declaration with this Commission pursuant to section 7 of the Public Utility Holding Company Act of 1935 ("act"), which is summarized as follows:

EUA proposes to issue and sell to The First National Bank of Boston an unsecured promissory note in the principal amount of $2,000,000. Said note will be outstanding for a period not to exceed six months from April 19, 1954, and will bear interest at the prime rate in effect on April 20, 1954 (April 19, 1954, being a legal holiday in Boston). Upon 10 days' written notice said note may be prepaid in whole or in part without premium.

At the present time EUA has outstanding bank indebtedness in the principal amount of $2,000,000 which bears interest at 3¼ percent per annum and matures April 19, 1954. The purpose of said proposed note is to extend or renew this bank indebtedness for a period not to exceed six months. It is contemplated by EUA that the proposed note will be retired through the sale of a sufficient number of its common shares to raise approximately $2,000,000 of equity capital at the earliest practicable date but not later than October 1, 1954, market conditions for the EUA shares being favorable.

EUA's expenses in connection with the issuance of said note, including counsel fees and expenses estimated at $600, are estimated not to exceed $700. It is stated that no State commission or Federal commission, other than this Commission, has jurisdiction over the proposed transactions.

It is requested that the Commission's order become effective upon issuance.

Due notice having been given of the filing of the declaration, and a hearing not having been requested of or ordered by the Commission, and the Commission finding that the applicable provisions of the act are satisfied and that no adverse findings are necessary, and deeming it appropriate in the public interest and in the interest of investors and consumers that said declaration be permitted to become effective forthwith:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act, and subject to the terms and conditions contained in Rule U-24, that said declaration be, and the same hereby is, permitted to become effective forthwith.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 54-3021; Filed, Apr. 21, 1954; 8:47 a. m.]

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 29150]

MINE RUN SALT FROM JEFFERSON ISLAND, LA., TO ANNISTON, ALA.

APPLICATION FOR RELIEF

APRIL 16, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: F. C. Kratzmeir, Agent, for carriers parties to schedule listed below.

Commodities involved: Salt, mine run, carloads.

From: Jefferson Island, La.

To: Anniston, Ala.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: F. C. Kratzmeir, Agent, I. C. C. No. 3903, supp. 40.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 54-2992; Filed, Apr. 20, 1954; 8:48 a. m.]

[4th Sec. Application 29151]

MOTOR-RAIL RATES IN THE EAST; SUBSTITUTED SERVICE

APPLICATION FOR RELIEF

APRIL 16, 1954.

The Commission is in receipt of the above-entitled and numbered applica-

tion for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: The New York, New Haven and Hartford Railroad Company and Star Transport Co.

Commodities involved: Semi-trailers, loaded or empty, on flat cars.

Between: Boston, Mass., New Haven, Conn., Providence, R. I., and Springfield, Mass., on the one hand, and Harlem River, N. Y., Elizabeth, or Edgewater, N. J., on the other.

Grounds for relief: Competition with motor carriers.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 54-2993; Filed, Apr. 20, 1954; 8:49 a. m.]

[4th Sec. Application 29152]

MOTOR-RAIL RATES IN THE EAST; SUBSTITUTED SERVICE

APPLICATION FOR RELIEF

APRIL 16, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: The New York, New Haven and Hartford Railroad Company and Textile Motor Express, Inc.

Commodities involved: Semi-trailers, loaded or empty, on flat cars.

Between: Boston, Mass., or Providence, R. I., on the one hand, and Harlem River, N. Y., Elizabeth or Edgewater, N. J., on the other.

Grounds for relief: Competition with motor carriers.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 54-2994; Filed, Apr. 20, 1954; 8:49 a. m.]

[4th Sec. Application 29153]

RADISHES FROM FLORIDA TO POINTS IN SOUTHERN, OFFICIAL, WESTERN TRUNK-LINE, AND SOUTHWESTERN TERRITORIES

APPLICATION FOR RELIEF

APRIL 16, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Radishes, without tops, carloads.

From: Points in Florida.

To: Points in southern, official, western trunk-line and southwestern territories.

Grounds for relief: Rail competition, circuity, to maintain grouping, and analogous commodity.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1402, supp. 7.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 54-2995; Filed, Apr. 20, 1954; 8:49 a. m.]

[4th Sec. Application 29154]

PAPER AND PAPER ARTICLES FROM CLYATTVILLE AND ESKAY, GA., TO OFFICIAL AND ILLINOIS TERRITORIES

APPLICATION FOR RELIEF

APRIL 19, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Paper and paper articles, carloads.

From: Clyattville and Eskay, Ga.

To: Points in official and Illinois territories.

Grounds for relief: Rail competition, circuitous routes, to maintain grouping, to apply rates constructed on the basis of the short line distance formula, and additional origins.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1349, supp. 50.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD, *Secretary.*

[F. R. Doc. 54-3030; Filed, Apr. 21, 1954; 8:48 a. m.]

[4th Sec. Application 29155]

TOBACCO STEMS FROM NORTH CAROLINA AND VIRGINIA TO POINTS IN WEST VIRGINIA, VIRGINIA, AND GEORGIA

APPLICATION FOR RELIEF

APRIL 19, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Tobacco stems, unground, in bulk, carloads.

From: Points in North Carolina and Virginia.

To: Charles-Town, W. Va., Mt. Jackson, Woodstock, Chilhowie and Berryville and Harrisonburg, Va., and Tifton, Ga.

Grounds for relief: Competition with rail carriers, circuitous routes, and to apply rates constructed on the basis of the short line distance formula.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1384, supp. 19.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-3031; Filed, Apr. 21, 1954; 8:49 a. m.]

[4th Sec. Application 29156]

FERRO-ALLOYS FROM EMCO, ALA., TO PENNSYLVANIA

APPLICATION FOR RELIEF

APRIL 19, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to schedule listed below.

Commodities involved: Ferro-manganese, ferro-silicon, silicon-manganese, zirconium-ferro-silicon and zirconium-ferro-silicon-titanium, carloads.

From: Emco, Ala.

To: Points in Pennsylvania.

Grounds for relief: Competition with rail carriers and circuitous routes.

Schedules filed containing proposed rates: C. A. Spaninger, Agent, I. C. C. No. 1376, supp. 18.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-3032; Filed, Apr. 21, 1954; 8:49 a. m.]